

**RESTRICTIONS ON CROSS-BORDER
MARKETING AND SELLING OF
FUNDS AND INVESTMENT MANAGEMENT & ADVISORY SERVICES
INTO
NORWAY
PART B**

11 September 2025

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1. BACKGROUND

1.1 Introduction

Please refer to the *Instructions to Counsel* that you have been sent in conjunction with this Part B of the Memorandum.

When preparing responses to Part B of the Memorandum, please also refer to the *European Framework Document* that you have been sent in conjunction with the Memorandum.

1.2 Structure of Part B

The questions in Part B of the Memorandum are set out in sections 3 to 11. These sections comprise the **Part B Memorandum Subject Matter**.

1.3 Definitions

Please refer to the definitions set out in Appendix 1 of the *European Framework Document*. Terms not defined in Appendix 1 of the *European Framework Document* have the following meaning:

Active Marketing cross-border	Marketing activities which extend beyond Passive Marketing. Where: (a) clients, or prospective clients, are located in your jurisdiction; (b) the OFI is headquartered in a jurisdiction different to your own and either has no licensed office in your jurisdiction or is not carrying out the marketing or selling through any licensed office in your jurisdiction; and (c) employees of the OFI are based in a different jurisdiction to your own and are employed by an entity within the OFI group which is headquartered in a different jurisdiction to your own.
EEA Passporting Entity	A MiFID II Investment Firm, CRD Credit Institution, UCITS ManCo or EEA AIFM authorised in another EEA country with appropriately scoped permissions and which has exercised its right to passport into the jurisdiction on the basis of its home state authorisation.
Fly-In Meeting	Employees of the OFI flying into your jurisdiction to carry out marketing activities.
Fly-Out Meeting	Marketing activities which take place offshore and which are directed at a person who is normally resident in your jurisdiction.
Fund	A collective investment undertaking, with or without legal personality, which raises capital from a number of investors with a view to investing it in accordance with a defined investment policy for the benefit of those investors. For the purposes of this Memorandum, local counsel have been instructed to assume that all Funds are offshore.
OFI	A bank, asset manager or other offshore financial institution e.g. distributor, which is marketing or providing financial products or

services and is headquartered in a different jurisdiction to your jurisdiction.

Part B Memorandum Subject Matter The contents of sections 3 to 11 of Part B of this Memorandum.

Passive Marketing Marketing or selling following an unsolicited approach by an investor. May also be known as "reverse-enquiry" or "reverse-solicitation".

1.4 Executive Summary

Marketing Funds via AIFMD Marketing Passport or PPR:

For background on AIFMD and other pieces of EU legislation referred to in this Memorandum, please see the *European Framework Document*.

Pre-Marketing

The Cross-Border Distribution of Funds Directive has been implemented into Norwegian law. Accordingly it is possible to undertake CBDF Pre-Marketing in respect of an AIF that is eligible to be marketed via the AIFMD Marketing Passport in compliance with the rules as implemented under Norwegian law. The CBDF Pre-Marketing Conditions will apply to such pre-marketing as well as the CBDF Third-Party Firm Requirements.

Furthermore, the Norwegian Ministry of Finance, has decided to regulate and allow CBDF Pre-Marketing to Non-Professional Investors in connection with the implementation of the CBDF Directive in Norway. The CBDF Pre-Marketing Conditions also apply in this context. In addition, CBDF Pre-Marketing to Non-Professional Investors may only be permitted if the relevant Fund is intended to be marketed to such investors. It is therefore a prerequisite for CBDF Pre-Marketing to Non-Professional Investors that the AIF, if it is to be marketed later, is marketed in accordance with the Non-Professional Investor Requirements.

Non-CBDF Pre-Marketing to assess investor's appetite in respect of an AIF prior to making a registration/notification to use the national private placement regime is not currently permitted according to Norwegian legislation.

AIFMD Marketing

Under the legislation implementing AIFMD in Norway, the NFSA is granted the authority to impose additional conditions to ensure that Norwegian investors are protected in connection with marketing undertaken pursuant to Article 36 or 42 of the AIFMD (including conditions relating to reporting requirements to the Norwegian authorities and investors as well as conditions on how sales may take place in Norway). To date no such additional conditions have been imposed although Norwegian counsel indicates that it is possible that special conditions could be issued by the NFSA on a case-by-case basis.

An OFI AIFMD Marketing an EEA AIF with an EEA AIFM into Norway must do so via the AIFMD Marketing Passport which applies in respect of Professional Investors only.

For AIFs where either the AIFM or the AIF have a registered office outside the EEA, the AIFMD Marketing Passport is subject to phased implementation and is not yet available. AIFMD Marketing of such AIFs to Professional Investors is possible (via either Article 36 or Article 42 of AIFMD) but only if made in compliance with the requirements deriving from the AIFMD as well as with the Prior Approval of NFSA.

Whether the AIFM is using the AIFMD Marketing Passport or applying for Prior Approval of NFSA to market via Article 36 or 42, it is necessary to consider the regulatory status of the OFI undertaking the marketing/selling. The OFI will be subject to the Licensing Requirement and will either need to be an EEA Passporting Entity or hold a Norwegian MiFID II licence unless the Third Country Firm Regime or one of the IMAS Licensing Exceptions applies. However, where a non-EEA AIFM has received the Prior Approval of the NFSA to market an AIF in Norway via Article 42 AIFMD, the non-EEA AIFM is permitted to market the relevant AIFs in Norway. If/when the necessary pre-requisites are met (e.g. necessary equivalence determinations are in place), it may also be possible in the future for a Third Country Passporting Entity to undertake Active Marketing/Selling of a Fund in Norway.

Passive Marketing (Reverse Enquiry)

Passive Marketing (reverse enquiry) in respect of Professional Investors is not caught by the AIFMD or the Licensing Requirement. Norwegian law permits the Passive Marketing of all types of AIFs and UCITS Funds (including Non-Passported UCITS Funds) to be sold to investors without the Fund having gone through the full notification/approval process where the sale is made on the basis of the Investor's First Approach.

Non-Passported UCITS Funds cannot be actively marketed or sold to investors in Norway. To actively market or sell AIFs or UCITS Funds to investors in Norway, it is necessary to complete the relevant notification/approval process.

Marketing Funds to the public:

UCITS Funds may be actively marketed to the public in Norway provided that the UCITS notification procedures are complied with.

It is possible for EEA AIFMs to apply to the NFSA to market an EEA AIF or a non-EEA AIF to Non-Professional Investors. Approval will only be granted if the Non-Professional Investor Requirements are met. Non-EEA AIFMs cannot obtain marketing licences for marketing Closed-Ended AIFs to Non-Professional Investors in Norway under the current regime. Non-EEA AIFMs may in theory obtain marketing licences for marketing Open-Ended AIFs to Non-Professional Investors in Norway where the Non-Professional Investor Requirements are met.

The OFI will also be subject to the Licensing Requirement and will either need to be an EEA Passporting Entity or hold a Norwegian MiFID II licence unless one of the IMAS Licensing Exceptions applies. The position outlined above in respect of Passive Marketing (reverse enquiry) applies equally in respect of Retail Investors. The Third Country Firm Regime will not be relevant in this context as it only applies in respect of "eligible counterparties" only in Norway.

It is necessary to provide Facilities where a Fund is marketed/sold to Retail Investors.

A PRIIPs KID should be provided in relation to a UCITS or AIF marketed to Retail Investors.

Investment Management & Advisory Services (IMAS):

Marketing of IMAS is not caught by the AIFMD. Active Marketing and provision by the OFI of IMAS containing elements that refer to any financial instruments is caught by the Licensing Requirement and the OFI will either need to be an EEA Passporting Entity or hold a Norwegian MiFID II licence unless the Third Country Firm Regime or one of the IMAS Licensing Exceptions applies. Passive Marketing of IMAS is permitted on the basis of an Investor's First Approach. If/when the necessary pre-requisites are met (e.g. necessary equivalence determinations are in place), it may also be possible in the future for a Third Country Passporting Entity to undertake Active Marketing/Selling or provision of IMAS in Norway.

In addition, the Norwegian Ministry of Finance adopted a regulation on 30 November 2021, whereby UK regulated firms may offer the MiFID II service of Portfolio Management to certain professional clients (Norwegian AIFs, AIFMs, UCITS and UCITS ManCos only). UK regulated firms must notify the UK Financial Conduct Authority, and may provide Portfolio Management (and ancillary activities) under this regulation once the NFSA has received notification from the UK Financial Conduct Authority. The NFSA may lay down conditions for a firm's services and activities and issue corrective orders, including ordering a firm to terminate its services and activities. In local counsel's view, the latter is a safety mechanism, and it is not expected that the NFSA will lay down extensive conditions for UK firms on a general basis under this regulation. This regulation will apply beyond 2024, and until further notice.

Although not entirely clear, a UK investment firm offering portfolio management services or investment advice to clients in Norway on the basis of the Third Country Firm Regime or the separate portfolio management regime may on the face of it be subject to the SFDR, as the firm is regarded as either a "financial market participant" or a "financial advisor". However, pursuant to the Norwegian legislation implementing SFDR, the

NFSA will only supervise entities for compliance with the SFDR under their general supervisory powers, i.e. entities established in Norway.

Segregated Managed Accounts, single investor vehicles and family office undertakings:

Marketing of these arrangements and vehicles will not be caught by the AIFMD if they are structured to fall outside the definition of AIF. Marketing and provision by the OFI of IMAS containing elements that refer to any financial instruments is caught by the Licensing Requirement whether offered / marketed to a Single Investor Vehicle, a Segregated Managed Account, or a Family Office Undertaking, and the OFI will either need to be an EEA Passporting Entity or hold a Norwegian MiFID II licence unless either the Third Country Firm Regime or one of the IMAS Licensing Exceptions applies.

DEFINITIONS

For the purposes of this section 1.4, the underlined words in the foregoing Executive Summary have the following meanings:

AIFMD Marketing:

AIFMD Marketing is defined in Norwegian law as *"direct or indirect offering or placement of shares in alternative investment funds at the initiative of the manager or on behalf of the manager"*. No further general guidance has been given in the preparatory works for the laws implementing the AIFMD into Norway or by any other Norwegian governmental body with respect to the scope of the general marketing definition.

In terms of an AIF eligible for the AIFMD Marketing Passport, active marketing activities that go beyond the scope of **CBDF Pre-Marketing** will constitute AIFMD Marketing.

In terms of an AIF that must be marketed via the private placement regime, there is no guidance available as to the scope of this concept. Note, however, that the NFSA in relation to previous legislation which contained severe restrictions on marketing of "special funds" took a strict approach to a similar issue. The NFSA maintained in that context that any promotional initiative taken by a fund manager (or third party distributor) in order to generate interest in "special funds" (hedge funds) which led to subsequent sales of units in special funds would be regarded as not being carried out based on the **Investor's First Approach** and would therefore be an activity for which a licence was required. This strict attitude is likely to apply in the interpretation of AIFMD Marketing in this context unless, in local counsel's view, ESMA provides more liberal guidance on this issue.

CBDF Pre-Marketing:

The CBDF Directive amended the AIFMD by adding a new definition of 'pre-marketing' as follows:

"[the] provision of information or communication, direct or indirect, on investment strategies or investment ideas by an EU AIFM or on its behalf, to potential professional investors domiciled or with a registered office in the Union in order to test their interest in an AIF or a compartment which is not yet established, or which is established, but not yet notified for marketing in accordance with Article 31 or 32, in that Member State where the potential investors are domiciled or have their registered office, and which in each case does not amount to an offer or placement to the potential investor to invest in the units or shares of that AIF or compartment;"

The definition of 'pre-marketing' is implemented in Norwegian law by the inclusion of the definition translated to Norwegian in the AIFMA Section 1-2 letter m. The definition of 'pre-marketing' in the AIFMA Section 1-2 letter m aligns with the definition of CBDF Pre-Marketing in section 30a AIFMD.

CBDF Pre-Marketing Conditions:

CBDF Pre-Marketing may only be permitted if the information presented:

1. is not sufficient for investors to be able to commit to acquire units or shares in a particular AIF;

2. does not constitute subscription forms or similar documents, whether they are in the form of a draft or final version; and
3. does not constitute articles of association, prospectus or offer documents in final version for a not yet established AIF.

Whether a document falls within the scope of CBDF Pre-Marketing will be an issue of substance and not just form (i.e. being labelled as “draft”). The following conditions apply:

- Appropriate disclaimer to be included – e.g. see Appendix 1.G.
- All AIFMs shall ensure that the pre-marketing is adequately documented.
- Note that following any CBDF Pre-Marketing, an 18-month restriction will apply on being able to rely on a reverse enquiry from an investor in respect of the shares of an AIF referred to in the pre-marketing activities or the shares of an AIF set up as a result of the pre-marketing activities.
- It is important to check that neither the AIF itself nor any other AIF of the AIFM with a similar investment strategy/idea has been de-notified in the 36-month period prior to the pre-marketing activities being conducted. CBDF Pre-Marketing is prohibited in this context.
- An **Informal Letter** should be submitted to the applicable regulator within a two-week period following the beginning of the CBDF Pre-Marketing activities.

CBDF Third-Party Firm Requirements:

A third party firm can only engage in **CBDF Pre-Marketing** where it is a MiFID II Investment Firm, a CRD Credit Institution, a UCITS ManCo, an EEA AIFM or a MiFID II tied agent.

Facilities:

The CBDF Directive introduced the “facilities” concept in order to refer to the facilities to be made available when marketing a UCITS Fund or AIF to **Retail Investors**. These “facilities” can be provided electronically without a presence/local agent in Norway. Please refer to section 6.1(c)(iv) of the Memorandum for more details.

Informal Letter:

The CBDF Directive introduces a requirement for an Informal Letter to be sent within 2 weeks of beginning pre-marketing activities. The Informal Letter shall:

- specify in which Member States the pre-marketing was conducted and over what time period;
- be sent in paper form or by electronic means; and
- provide details of the activity undertaken for example information on the investment strategies presented and, where relevant, a list of the AIFs that were **CBDF Pre-Marketed**.

The requirements regarding the Informal Letter depend on the particular fact-pattern as follows:

1. *CBDF Pre-Marketing to Professional Investors*

(a) into Norway by a non-Norwegian EEA AIFM in respect of its EEA AIF

The non-Norwegian EEA AIFM is required to send the letter to its home Member State regulator. The EEA AIFM should check the process that applies for submitting this letter to its home Member State regulator and whether any additional requirements apply.

(b) by Norwegian AIFM in respect of its EEA AIF

At this stage, local counsel have no further details on how the notification shall be submitted. The NFSA has indicated that it will be necessary to expand the NFSA's registers and adapt internal systems in order to follow up the notifications in an appropriate manner. Currently, an Informal Letter is sent to the NFSA (post@finansstilsynet.no) within two weeks of the pre-marketing commencing, describing the market sounding (period and jurisdictions), the investment strategies or ideas and a list of relevant funds or share classes being pre-marketed.

2. CBDF Pre-Marketing to Non-Professional Investors

As CBDF Pre-Marketing to Non-Professional Investors is not covered by the CBDF Directive, local counsel understand that there will be a separate notification system to the NFSA for both Norwegian and non-Norwegian EEA AIFMs. Currently, an Informal Letter is sent to the NFSA (post@finansstilsynet.no) within two weeks of the pre-marketing commencing, describing the market sounding (period and jurisdictions), the investment strategies or -ideas and a list of relevant funds or share classes being pre-marketed.

Investor's First Approach:

Funds

Reverse enquiry has traditionally been interpreted "narrowly" by the NFSA.

There is legal precedent for reverse enquiries being permitted in respect of Funds that are open-ended "securities funds", and while no formal guidance exists in terms of other types of Funds, local counsel think it is likely that the NFSA will take a similar approach to AIFs and UCITS Funds.

Counsel recommend complying with the following conditions:

- Each separate transaction with a particular investor must be preceded by a separate reverse enquiry.
- A reverse enquiry can be general provided that the later initiative to engage in transactions relating to specific Funds is made by the investor.
- There is a risk that any active marketing activity (including general marketing) in Norway could undermine the ability to later rely on reverse enquiry.
- Reverse enquiry should not be used as a strategy to carry out business in the Norwegian market as in practice it requires passive acceptance by the OFI to incoming business.
- The filing/retention of correspondence showing that the initiative to invest in a Fund was made by the investor is highly recommended, particularly where the investor is a **Non-Professional Investor**.
- If the OFI uses a standard form template filled out by the investor to confirm the initiative came from them to make the reverse enquiry, other correspondence should be kept in file, in case of enquiry from the NFSA. See wording in Appendix 1.A. that can be used in this context.

18-month restriction following CBDF Pre-Marketing of an AIF

The CBDF Directive introduces an 18-month restriction on relying on a reverse enquiry, where the reverse enquiry relates to the units/shares of an AIF that was pre-marketed or that was established as a result of pre-marketing.

Based on the Norwegian implementation of the CBDF Directive and the preparatory work, the 18-month restriction should be interpreted so that **CBDF Pre-Marketing** will preclude reverse enquiries from all investors in Norway, and not just those investors that actually received the pre-marketing.

Investment Management & Advisory Services

Counsel recommend complying with the following conditions:

- Assessment of whether the investor has taken the “first approach” must be evaluated on a case-by-case basis
- The investor must initiate each individual investment advisory situation. Each separate transaction with a particular investor must therefore be preceded by a separate reverse enquiry.
- Guidance from the NFSA is modest but in local counsel’s view the investor's approach should relate to a specific Investment Management & Advisory Service rather than being more general.
- The filing/retention of correspondence showing that the initiative was made by the investor is highly recommended, particularly where the investor is a Non-Professional Investor.
- If the OFI uses a standard form template filled out by the investor to confirm the initiative came from them to make the reverse enquiry, other correspondence should be kept in file, in case of enquiry from the NFSA. See wording in Appendix 3.A. that can be used in this context.

IMAS Licensing Exceptions:

Investment services such as Investment Management & Advisory Services related to “financial instruments” will not be subject to the **Licensing Requirement** in the following cases (although it should be noted that in practice these exceptions are unlikely to of little practical use to an OFI marketing/providing Funds or IMAS into Norway):

1. Investment services are only provided occasionally and in connection with another professional activity regulated by law or self-regulated by the profession itself;
2. Investment services are only provided to entities within one and same group of companies of the OFI;
3. Investment services are only provided in connection with the management of a scheme for employees ownership interests;
4. Only investment services as described in nos. 2 and 3 are provided;
5. Only investment advice in the course of another professional activity is performed, provided that no remuneration is paid for the investment advice;
6. Dealing on own account in Financial Instruments other than commodity derivatives or emission allowances or derivatives thereof and not providing any other Investment Services in Financial Instruments other than commodity derivatives or emission allowances or derivatives thereof unless the OFI: (i) is a market maker; (ii) is a member of or participants in a regulated market or an MTF or have direct electronic access to a trading venue; (iii) apply a high-frequency algorithmic trading technique; or (iv) deal on own account when executing client orders;
7. (i) Dealing on own account, including being market maker, in commodity derivatives or emission allowances or derivatives thereof, excluding persons who deal on own account when executing client orders; or
 - (ii) providing Investment Services, other than dealing on own account, in commodity derivatives or emission allowances or derivatives thereof to the customers or suppliers of their main business; provided that:
 - for each of those cases individually and on an aggregate basis this is an ancillary activity to the OFI's main business, when considered on a group basis,
 - the OFI is not part of a group the main business of which is the provision of Investment Services within the meaning of MiFID II Directive or the performance of any activity listed in Annex I to Directive 2013/36/EU, or acting as a market-maker in relation to commodity derivatives,
 - the OFI does not apply a high-frequency algorithmic trading technique; and

- the OFI report upon request to the competent authority the basis on which they have assessed that their activity under points (i) and (ii) is ancillary to their main business;
- 8. Transmission system operators, operators or administrators of an energy balancing system as well as other persons meeting the requirements of MiFID II Directive art. 2 (1) n); or
- 9. Operators with compliance obligations under Directive 2003/87/EC who, when dealing in emission allowances, do not execute client orders and who do not provide any Investment Services other than dealing on own account, provided that those persons do not apply a high-frequency algorithmic trading technique.

Investment services such as Investment Management & Advisory Services related to interests in partnerships are exempted from the Licensing Requirement in the following cases (provided that the partnership falls outside the scope of AIFMD or otherwise is not a collective investment undertaking within the meaning of MiFID II or the Norwegian Securities Trading Act):

- (i) where such interests are offered to clients which are classified as Professional Investors; or
- (ii) if the customers make investment commitments amounting to minimum NOK 5 million.

Licensing Requirement:

The provision of MiFID II Services generally subjects the service provider to a licensing requirement under MiFID II (either as an EEA Passporting Entity or holding a Norwegian MiFID II licence). In order to hold a Norwegian MiFID II licence, the OFI would need to establish a permanent establishment in Norway duly licensed by the NFSA, for example, a branch office.

While the activity of "marketing" of "financial instruments" such as Funds and "investment services" such as Investment Management & Advisory Services is in principle not subject to a NFSA licensing requirement under MiFID II, the NFSA has in their precedents expressed the view that if marketing of "financial instruments" or "investment services" relating to "financial instruments" forms an *integrated part* of the provision of an investment service to be carried out, the entity that is marketing will most likely be regarded as carrying out an investment service and therefore subject to licensing requirements in Norway by the NFSA. See section 6.4(b) below for further discussion regarding what might amount to "integrated" in this context.

If/when the necessary pre-requisites are met (e.g. necessary equivalence determinations are in place), it may also be possible in the future for a **Third Country Passporting Entity** to undertake activities caught by the Licensing Requirement. At present no such equivalence determinations have been made.

Non-CBDF Pre-Marketing:

Pre-Marketing of AIFs that can only be marketed/sold via the private placement regime i.e:

- EEA AIFMs and their Non-EEA AIFs (Article 36 AIFMD); and
- Non-EEA AIFMs and their marketing Non-EEA or EEA AIFs (Article 42 AIFMD).

Non-Professional Investors:

Investors that are not **Professional Investors**.

Non-Professional Investor Requirements:

Closed-Ended AIFs (only possible for EEA AIFMs)

The following requirements must be met:

- The EEA AIFM is licensed within the EEA;
- Business plan identifying the AIF and its home state is provided;
- Information on the AIF, including pre-investment disclosure is provided;

- A KID or similar document for the AIF is provided;
- Confirmation that the AIF is permitted to be marketed to **Non-Professional Investors** in its home state;
- An explanation of how marketing and sales will be executed in order to ensure marketing to Non-Professional Investors will take place in accordance with good business practice requirements, including a requirement to carry out MiFID II-style suitability testing prior to any AIF sale;
- If the AIF is established outside the EEA or is a feeder fund to such an AIF, the following additional requirements must be complied with:
 - the AIFM must comply with the requirements of the AIFMA and must evidence that another legal entity other than the AIFM carries out depositary tasks;
 - the AIFM must undertake sufficient measures in Norway to be able to make payments to investors, to redeem units and provide the Norwegian investors with the information which is required pursuant to the home state legal requirements;
 - satisfactory cooperation must be in place between the regulator of the AIF and the NFSA and the home state of the AIF must not be listed as a non-cooperating country by the FATF;
- The EEA AIFM must be member of an independent external board of complaints handling if marketing the AIF to Non-Professional Investors;
- Good business practice including MiFID II style suitability testing must be complied with in relation to marketing and sale of closed ended AIFs to Non-Professional Investors prior to any AIF sale;
- **Facilities** should be provided.
- Additional requirements may be set by the NFSA in order to ensure protection of investors in Norway, including disclosure duties and requirements on how sales to Non-Professional Investors in Norway shall take place.

Open-Ended AIFs

Approval for marketing of an open-ended AIF of a securities funds type to Non-Professional Investors may be granted by the NFSA if:

- Satisfactory cooperation is in place between the regulator of the AIFM and the NFSA;
- The AIFM and the AIF are both subject to satisfactory home state supervision;
- Home state regulations of the AIF and its management are complied with and provide investors in Norway with a level of investor protection at least at par with the protection obtained when investing in Norwegian "national funds" (non-UCITS funds);
- The AIFM undertakes sufficient measures in Norway to be able to make payments to investors, to redeem units and to provide the Norwegian investors with the information which is required pursuant to the home state legal requirements;
- The AIFM must be member of an independent external board of complaints handling if marketing the AIF to Non-Professional Investors;
- Good business practice including MiFID II style suitability testing must be complied with in relation to marketing and sale of open-ended AIFs which are "special funds" to Non-Professional Investors prior to any AIF sale;

- Marketing materials must clearly state if the AIF is a "special fund";
- **Facilities** should be provided
- Additional requirements may be set by the NFSA in order to ensure protection of investors in Norway, including disclosure duties and requirements on how sales to Non-Professional Investors in Norway shall take place.

Prior Approval of NFSA:

In order to obtain the approval from NFSA to market an AIF to **Professional Investors** it is necessary to comply with the requirements deriving from Article 36 or Article 42 (as applicable) of the AIFMD. For more information as to what is required to obtain such an approval please refer to section 7.1(a) of the Memorandum.

Please also refer to section 7.1(b) of the Memorandum for detail as to applicable time-frames and fees.

Professional Investors:

Means a "professional client" as defined in Annex II of the MiFID II Directive. Please refer to section 4.1 (Professional Investors and Retail Investors) of the *European Framework Document* for a summary of the types of investor who may fall within this definition.

Third Country Firm Regime:

On 11 September 2023, the Norwegian Ministry of Finance announced the introduction of a new permanent regime for third country firms in relation to the provision of investment services to eligible counterparties only in Norway. The new regime applied with immediate effect.

Eligible counterparties include investment firms, credit institutions, insurance companies, collective investment undertakings and their management companies, pensions undertakings and their management companies, other regulated financial institutions and public bodies at the national level (including central banks). In addition, the Norwegian Deposit Guarantee Scheme is also considered an eligible counterparty for the purpose of this provision.

For third-country firms to be able to provide investment services to eligible counterparties only in Norway, the following conditions must be met:

- (a) the third-country firm must have a licence in its home country, covering equivalent investment services to the services it provides and the investment activity it operates in Norway, and must be under supervision in its home state;
- (b) there must be a bilateral or multilateral agreement on supervision with the NFSA and the supervisory authorities in the third-country firm's home state; and
- (c) the third-country firm's home state cannot be on any of the FATF (Financial Action Task Force) lists, neither the "FATF black list", nor the "FATF grey list".

Local counsel has confirmed that no notification is required in order for a firm to use this route.

In relation to condition (b), the NFSA has clarified that the IOSCO Multilateral Memorandum of Understanding Concerning Consultation and Cooperation and the Exchange of Information ("IOSCO MMoU") meets this requirement. As of 12 September 2023, the IOSCO MMoU had 129 signatories, and including the UK. You can find an updated list of these signatory jurisdictions in Appendix A here: [Signatories to Appendix A and Appendix B List \(iosco.org\)](#).

Third Country Passporting Entity:

Pursuant to MiFIR, OFIs domiciled outside the EEA (i.e. in a Third Country) have the right to provide MiFID II services to eligible counterparties and Professional Investors in the EEA without the establishment of a branch in the relevant EEA jurisdiction. The Third Country OFI needs to apply and be registered with ESMA before it can passport within the EEA. Before such application/registration can be made, the requirements for an equivalence determination with the relevant Third Country would need to have been satisfied. At present no such equivalence determinations have been made.

2. GUIDELINES FOR COMPLETING PART B OF THIS MEMORANDUM

Please check the boxes below to **confirm** you have followed each of these guidelines:

Please **do**:

- (a) let us know if there are **upcoming legislative changes** in relation to the Part B Memorandum Subject Matter **before** continuing to complete Part B. If the changes are major, we may ask you to delay work on completion of Part B until the changes are in force; ☒
- (b) **confirm** that the questions in Part B **cover** all the issues, requirements, restrictions, exemptions or workarounds that could apply to: (i) the cross-border **marketing** and **sale** of Funds or Investment Management & Advisory Services into your jurisdiction and (ii) the cross-border **provision** of Investment Advice or Arranging into your jurisdiction in connection with Funds or Investment Management & Advisory Services; ☒
- (c) provide **focused answers**, which deal only with issues/requirements/exemptions/conditions that are **relevant to a financial institution** (e.g. bank/securities firm/credit institution/hedge fund/investment fund/pension fund/insurance firm) – please do **not** provide theoretical answers that could never apply in practice to a financial institution; ☒
- (d) ensure that you **answer all of the questions** posed in Part B (please note that certain questions comprise several separate questions, all of which must be answered); ☒
- (e) use the **defined terms** in section 1.3 of this Part B and in Appendix 1 of the *European Framework Document*; ☒
- (f) begin answers with "Yes" or "No", where possible, followed up with a **simple and concise** explanation; ☒
- (g) where publicly available free of charge, please provide (i) **a website link to any guidance** (e.g. guidance issued by the competent regulator) referred to in your responses; and (ii) an **English translation** of any such guidance; ☒
- (h) **complete Appendix 1, 2, 3 and 4 of this Part B**, which pull together all of the required and recommended legends, disclosures, risk factors and other forms of wording to be included in the communications referred to in this Part B; and ☒
- (i) **confirm** that you have read and agree with the contents of the *European Framework Document*. ☒

Please **do not**:

- (j) leave any answer **blank** – if a question is not applicable, please indicate this by stating "N/A" (and provide a brief explanation why it is not applicable); ☒
- (k) **modify** any question or the format of this Part B; ☒
- (l) qualify your answer with **additional factual assumptions** unless agreed with aosphere Limited; or ☒
- (m) **cross-refer** to answers to Part A of this Memorandum. Part A and Part B should be treated as separate standalone documents. ☒

3. SOURCES OF LAW; GUIDANCE; COMPETENT REGULATOR

Questions	Answers
(a) Please list the principal sources of law (whether based on specific legislative statutes, common/case law or equity (where applicable) or civil laws/codes and including constitutional laws) applicable to the cross-border marketing and sale of: (i) Funds (whether UCITS Funds or AIFs); and (ii) Investment Management & Advisory Services, to investors located in your jurisdiction. Please include the date that the relevant law(s) entered into force. It is not necessary to list the European directives and regulations referred to in section 3 of the <i>European Framework Document</i>.	<u>General</u> - Act no. 2 of 9 January 2009 on Marketing (the "MA"). <u>Funds</u> - Act no. 44 of 25 November 2011 on Securities Funds (the "SFA"). - Regulation no. 1467 of 21 December 2011 on Securities Funds (the "SFR"). - Act no. 28 of 20 June 2014 on Alternative Investment Fund Managers (the "AIFMA"). - Regulation 887 of 26 June 2014 on Alternative Investment Fund Managers (the "AIFMR".) - Act no. 40 of 21 June 2024 on the Packaged Retail and Insurance-based Investment Products Act (the "PRIIPs Act") <u>Investment Management & Advisory Services</u> - Act no. 75 of 29 June 2007 on Securities Trading (the "STA"). - Regulation no. 876 on Securities Trading (the "STR"). - Act no. 83 of 21 June 1985 on Partnerships (the "PA"). - Note that the SFA/STR and the AIFMA/AIFMR are relevant for UCITS Man Cos and AIFMs, respectively, when providing Investment Advice and Portfolio Management, which pursuant to the <i>European Framework Document</i> are services which are comprised by the definition of Investment Management & Advisory Services. - Third country Firm Exemption: STA section 9-36 (6) and the STR section 9-39a – services to eligible counterparties in Norway which fulfil the requirements set out in these sections.

	Regulation no. 3303 of 30 November 2021 on access for certain undertakings established in the United Kingdom of Great Britain and Northern Ireland to provide portfolio management to specified Norwegian professional clients located in Norway (the "Brexit Portfolio Management Permissions Regulation") On 1 August 2021 new provisions in the AIFMA came into force (implemented by way of reference in the AIFMA) regarding the establishment of European venture capital funds ("EuVECA") and European funds for social entrepreneurship in Norway ("EuSEF"), implementing EU Regulation (EU) 345/2013 (EuVECA Regulation), as well as two supplementary regulations and Regulation (EU) 346/2013 (EuSEF Regulation), as well as two supplementary regulations, in addition to Regulation (EU) 2017/1991 amendments to the two main acts. Additionally, Regulation (EU) 2015/760 on European long-term investment funds (EU) 2015/751 ("ELTIF") and Regulation (EU) 2017/1131 on money market funds (the "MMF Regulation") came into force on 1 January 2023 and 1 February 2023, respectively. Note that Regulation (EU) 2023/606 ("ELTIF 2.0") is yet to be included in the EEA Agreement. However, see section 3(d) below for latest status on ELTIF 2.0 implementation in Norway.
(b) Please list any guidance (e.g. bulletins, codes of practice, guidelines, etc.) issued by the competent regulator(s), which is relevant to the subject matter referred to in section (a) above. Please indicate whether guidance has binding (i.e. legally enforceable) or other status.	Precedents from the Norwegian Financial Supervisory Authority (<i>Finanstilsynet</i>, the "NFSA") exist in relation to cross-border marketing/selling of Funds and Investment Management & Advisory Services. Such precedents do not necessarily have binding effect, but provide an indication of current practice of the NFSA.
(c) Please provide a website link to the English language version of any such sources of law or guidance referred to in section (a) or section (b) above, if publicly available free of charge.	<u>Funds</u> - The SFA (unofficial translation from the NFSA): https://lovdata.no/NLE/lov/2011-11-25-44 - The SFR (unofficial translation from the NFSA): https://lovdata.no/SFE/forskrift/2011-12-21-1467 - The AIFMA (unofficial translation from the NFSA): https://lovdata.no/dokument/NLE/lov/2014-06-20-28 - The AIFMR (unofficial translation from the NFSA):

	https://lovdata.no/SFE/forskrift/2014-06-26-877 - The PRIIPS Act (English translation currently not available): https://lovdata.no/dokument/NL/lov/2024-06-21-40 <u>Investment Management & Advisory Services</u> - The STA (unofficial translation from the NFSA): https://lovdata.no/dokument/NLE/lov/2007-06-29-75/*&#x2a - The STR (unofficial translation from the NFSA): https://lovdata.no/dokument/SFE/forskrift/2007-06-29-876/*&#x2a - The PA (undated translation published on the web-site of the University of Oslo, Norway): https://app.uio.no/ub/ujur/oversatte-lover/data/lov-19850621-083-eng.pdf - Brexit Portfolio Management Permissions Regulation: https://lovdata.no/forskrift/2021-11-30-3303 (only available in Norwegian) - Third Country Firm Exemption: https://lovdata.no/forskrift/2007-06-29-876/§9-39a (only available in Norwegian)
(d) Are there any announced future changes to the laws listed in section (a) above? If so, please: (i) contact us before continuing if the changes are significant; and (ii) provide brief details (including expected date of entry into force and what the anticipated scope of the changes is to the extent relevant). For the purposes of answering this section you may wish to refer to section 11 of the <i>European Framework Document</i> where we discuss coming changes of laws in a European law context.	The Brexit temporary permissions regime ended on 1 October 2023 but please see discussion elsewhere in this Memorandum on the new Third Country Firm Regime that was introduced in September 2023. By way of reminder, in addition to the above, Norway has also previously introduced a route permitting UK regulated firms to offer portfolio management services to certain professional clients (Norwegian AIFs, AIFMs, UCITS and UCITS ManCos only) following a notification by the UK firm to the FCA. The NFSA may lay down conditions for a firm's services and activities and issue corrective orders, including ordering a firm to terminate its services and activities. In local counsel's view, the latter is a safety mechanism, and it is not expected that the NFSA will lay down extensive conditions for UK firms on a general basis under this regulation. A UK firm using the portfolio management exception that was introduced post-Brexit, would not currently be subject to MiFID II sustainability requirements. Local counsel note, however, that it is possible that the Norwegian Ministry of Finance could impose such requirements at a later date. This regulation will apply until further notice. There is limited information on the use of the exemption

in practice. On this basis, it is not possible to provide practical information on how to use this route.

On 16 July 2021, the full text of the free trade agreement (FTA) between the UK and Iceland, Norway and Liechtenstein (the EEA EFTA states) was published as well as various supporting documents.

Among the documents published in connection with the FTA we flag:

- a joint declaration on financial services, which affirms the intention of the parties to "support financial services market access through deference arrangements at each Party's discretion", including, but not limited to, equivalence decisions;
- a joint declaration on extending provisions to Guernsey, Jersey and the Isle of Man; and
- a joint declaration on extending provisions to Gibraltar.

On 20 June 2025, the Ministry also presented two bills to Parliament. One on Investment Firm Regulation (the "**IFR**") and Directive (EU) 2019/2034 on supervision of investment firms (the Investment Firm Directive, "**IFD**") and one on **ELTIF 2**. Counsel expects these bills to be adopted by Parliament in December (at the earliest), due to the upcoming elections in September. It is difficult to predict the timelines, but adoption in December is viable, which will allow for entry into force of ELTIF 2 and IFR/IFD in February 2026 (at the earliest). This will, however, also depend on the legislative processes in Liechtenstein and Iceland.

On 21 June 2024, a new Act concerning the Norwegian Financial Supervisory Authority (the "**NFSA Act**") was adopted. Notably the new Act strengthens the NFSA's independence, setting out that the NFSA generally should not be able to be instructed in individual cases, and the establishment of an appeals board for the NFSA's decisions. It is expected that the processing time for appeals will be substantially shorter with the new appeals board. Additionally, the NFSA Act introduces a new requirement for foreign institutions to disclose information to the NFSA. The NFSA Act entered into force on 1 April 2025.

AIFMD II

On 1 August 2025, the Norwegian Financial Supervisory Authority (**NFSA**) submitted a draft consultation paper on the implementation of AIFMD II into Norwegian law. As of 23 August 2025, the paper has not been made publicly available and has not been circulated for consultation. AIFMD II has not yet been incorporated into the EEA Agreement, and it remains uncertain

	whether the Norwegian implementation process will be delayed relative to the EU deadline of 16 April 2026. Implementation of AIFMD II in Norway will require the introduction of a specific exemption under the Financial Institutions Act to allow loan-originating AIFs to provide credit without holding a financing licence, subject to the conditions laid down in AIFMD II (including risk retention, concentration limits, and the national option to prohibit consumer lending). This would represent a significant expansion compared to the current regime, where lending activities are in practice confined to licensed financial institutions, save for narrow exemptions such as intra-group lending, vendor credit and isolated cases under Section 2-1. Prospectus Regulation On 14 November 2024, Regulation 2024/2809 amending the Prospectus Regulation 2017/1129 (the "PR3") was published in the Official Journal of the EU (the "PR3 Amendment Regulation"). Under PR3, the offer of transferable securities (including units or shares in certain closed-ended funds) to the public in an EEA Member State triggers a requirement to publish a prospectus. This requirement is subject to certain exemptions including the Value of Offering Exemption, which allows a Member State to exempt offers from the requirement to publish a prospectus where the total consideration is below EUR 8m. For further detail, see section 9 of this Memorandum. The PR3 Amendment Regulation will amend the Value of Offering Exemption (with effect from 5 June 2026) to exempt offers that have a total consideration in the EU below EUR 12m per issuer or offeror calculated over a 12-month period. Member States will continue to be able to set a lower threshold and exempt offers that have a total consideration in the EU below EUR 5m. In either case, the exemption is not available where an offer is subject to a prospectus passporting notification. In a Consultation Paper published 22 January 2025, the NFSA proposes to not adopt a lower threshold in Norway, meaning that it is likely that the EUR 12m threshold will be applicable when PR3 is implemented in Norway. Where the total consideration of an offer of securities to the public falls below the EUR 12m/5m threshold (as applicable), a Member State can still require the issuer to file and publish a document either meeting certain information requirements under PR3 (as amended) or national requirements equivalent to or lower than those requirements. When PR3 Amendment Regulation is implemented in Norway, issuers will according to the proposal in the above-mentioned Consultation Paper no longer be required to produce a national prospectus for offers below the EUR 12m threshold. Instead, issuers will be required to publish a document containing
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information equivalent to the summary requirements for an EEA prospectus (i.e. information set out in Article 7(3)-(10) and (12) of PR3).

The PR3 Amendment Regulation makes certain other changes to PR3 including changes to other prospectus exemptions and the rules governing the sequence, format and content of information to be included in a prospectus.

Directive on financial services contracts concluded at a distance

On 28 November 2023, the Directive on financial services contracts concluded at a distance (the **Directive**) was published in the Official Journal of the EU. The Directive includes measures applicable to financial services contracts concluded with consumers (defined as any natural person who is acting for purposes which are outside his trade, business, craft or profession) at a distance (e.g. online, via telephone or through other forms of remote marketing). Where other EU acts governing specific financial services (e.g. on consumer credit) contain equivalent rules e.g. rules on pre-contractual information, the rules of the other EU act apply (the Directive is therefore intended to act as a “safety net”).

In particular, the Directive includes rules relating to:

- providing adequate explanations about the proposed contract including certain pre-contractual information, essential characteristics of the proposed contract and specific effects it may have on the consumer e.g. the consequences of payment default;
- providing a 14-day right of withdrawal (although contracts related to services whose price depends on fluctuations in the market are excluded, e.g. those related to transferable securities, units in collective investment undertakings and certain futures, forwards, swaps and options); and
- adoption by Member States of measures addressing certain deceptive or manipulative practices on online interfaces (‘dark patterns’) e.g. the practice of giving more prominence to certain choices when asking a consumer to make a decision.

Consumer laws are generally outside the scope of Marketing Restrictions – Asset Management, but we are noting the development in this section due to the potentially wide scope of the new rules.

The Directive entered into force on 18 December 2023. Member States have until 19 December 2025 to publish measures necessary to comply with the Directive and until 19 June 2026 to apply those measures. The Directive is not yet incorporated into the EEA Agreement and it is currently

	not known when and how the Directive will be implemented into Norwegian legislation. Implementation in Norway is expected to be delayed compared to in the EU.
(e) Please provide the name of the competent regulator(s) .	<i>Finanstilsynet</i> – the NFSA <i>Finansdepartementet</i> – Ministry of Finance.
(f) Please provide a link to the competent regulator's website (if any) – the English language version if available.	NFSA: www.finanstilsynet.no/en/ . Ministry of Finance: https://www.regjeringen.no/en/dep/fin/id216/
(g) Art 5(1) of the CBDF Regulation requires regulators to publish and maintain on their websites up to date and complete information on the laws governing marketing requirements. Has the regulator in your jurisdiction published such information yet and if so please could you provide the relevant link(s)?	The ESMA summary document that collates all the links for the EU/EEA jurisdictions, features the following link for Norway for UCITS: https://www.finanstilsynet.no/en/licensing/fund-management-companies/marketing-of-foreign-ucits-in-norway/#:~:text=Foreign%20mutual%20funds%20domiciled%20in,Act%2C%20Section%209%2D3 For AIFs the following link is available: https://www.finanstilsynet.no/tillatelser/aif-forvalter/markedsforing-av-alternative-investeringsfond-aif/

4. SPECIFIC ISSUES RELATING TO THE IMPLEMENTATION OF AIFMD

Questions	Answers
4.1 Gold-plating/Super-equivalence	
(a) Please confirm whether the implementation of the AIFMD is as per the minimum requirements of the AIFMD or otherwise describe the gold-plating (super-equivalent) measures relevant only to marketing/selling an AIF via the private placement regime under Article 36 or Article 42.	The term "private placement regime" is used in this section and elsewhere in this survey. Note that the term "private placement" is neither defined in Norwegian legislation or in the AIFMA or the AIFMR nor commonly used in Norwegian official financial regulatory lingo. However, by "private placement regime" in the context of this Memorandum we understand a regulatory framework or rules related to non-public placement of units in a fund structure directed towards a limited number of investors and/or a certain type of investor e.g. institutional or Professional Investors, e.g. pursuant to Article 36 or 42 of the AIFMD. By the term "gold-plating" we understand that a Member State adopts legislation derogating from or exceeding the wording of the relevant EU directive/regulation. In our opinion, Norway has not implemented any gold-plating measures properly speaking in the AIFMA or the AIFMR. Note, however, that articles 36 and 42 of the AIFMD are implemented in sections 6-4 and 6-5 of the AIFMA respectively and that the NFSA is nevertheless granted the opportunity to impose additional conditions for granting marketing permission pursuant to sections 6-4 and 6-5 in order to ensure that Norwegian investors are protected, including conditions relating to reporting requirements towards Norwegian authorities and investors as well as conditions on how sales may take place in Norway. To date, no guidance with respect to which conditions may be relevant or imposed has been published by the NFSA. According to telephone conversations with the NFSA, no such guidance will be given, and any possible special conditions will be passed in relation to each individual application for marketing on a case-by-case basis. We are, however, aware that the NFSA's marketing authorisations customarily subject applicants to certain conditions which we, based on our experience, believe are fairly non-intrusive and typically are repeat specification of certain provision and certain notification requirements; please see section 7.1 for further details regarding marketing under Norwegian art. 36 and art. 42 implementing measures. We are not familiar with any conditions being imposed in relation to the examples given at section 4.1(a)(i)-(iv) of this question.
By way of example, please consider whether any additional local conditions have been imposed in order for an AIF to be	See general answer under section 4.1(a) above.

Questions	Answers
marketed/sold into your jurisdiction via the private placement regime in respect of: (i) reporting (dates/language/format);	Non-EEA alternative investment fund managers that have been granted authorisation to market alternative investment funds in Norway to Professional Investors in accordance with section 6-5 of the Norwegian Act on the Management of Alternative Investment Funds ('AIF Act') (Article 42 of the AIFMD) are required to report periodic information to the NFSA. Non-EU AIFMs under the Private Placement Regime are requested to follow the technical guidance published on the NFSA's English web site: https://www.finanstilsynet.no/en/reporting/fellesrapporterer/aifmd-annex-iv-reporting/ All AIFMs must submit the periodic AIFMD Annex IV reporting through www.Altinn.no. To report through Altinn.no, the AIFM must first register a user. The username must be included in the application form when applying for the authorisation to market AIFs in Norway. The NFSA requires that the username created on Altinn.no must be a generic email address, such as [Company Name]@company.com and match the email address for the account. Individual usernames will be not be accepted. The following guide shows how the Altinn user can be made: https://www.finanstilsynet.no/en/reporting/fellesrapporterer/aifmd-annex-iv-reporting/guide-how-to-create-a-user-in-altinn.no The AIFM has reporting obligations for all AIFs that the AIFM has been granted authorisation to market in Norway. At each quarter, no later than three weeks before reporting deadline, the NFSA will send reporting forms to the AIFM's Altinn.no account. There will be one form (KRT-1161) per AIFM and one form (KRT-1160) per AIF authorised to market in Norway. The reporting forms in Altinn.no are partially pre-filled, identifying the AIFM, and where applicable, the AIF. The reporting obligation can be met in one of two ways: Uploading an XML file or by filling out a reporting form. The XML files must adhere to the ESMA XSDs. Please see the following website for more information on how to report AIFMD (Annex IV) in Altinn.no: https://www.finanstilsynet.no/en/reporting/fellesrapporterer/aifmd-annex-iv-reporting/guide-how-to-report-/
(ii) auditing;	No such gold-plating requirement. See general answer under section 4.1(a) above.
(iii) requirement to appoint entities to perform depositary-like functions;	No such gold-plating requirement. See general answer under section 4.1(a) above.

Questions	Answers
(iv) the acquisition of holdings in issuers and non-listed companies in your jurisdiction pursuant to Article 26(7) of the AIFMD;	No such gold-plating requirement. See general answer under section 4.1(a) above.
(v) steps to prevent the AIF being marketed to Retail Investors; or	No such gold-plating requirement. See general answer under section 4.1(a) above and see also response at section 6.2(e) in relation to requirements when marketing to the public. It is best practice to include disclaimer language in written marketing materials confirming that they are intended for Professional Investors only.
(vi) requirements in respect of the regulatory status of the AIFM.	No such gold-plating requirement. See general answer under section 4.1(a) above.
(b) Where the laws of your jurisdiction draw a distinction between marketing using a national private placement regime conducted pursuant to Article 36 of the AIFMD as compared to Article 42 please can you set out the differences and the requirements that apply in respect of each type of marketing.	The same requirements apply in respect of marketing when using a national private placement regime conducted pursuant to Article 36 of the AIFMD and a regime conducted pursuant to Article 42 as implemented in sections 6-4 and 6-5 of the AIFMA. However, see the answer under section 4.1 (a) regarding the NFSA's opportunity to impose additional conditions for granting a marketing authorisation. Also, please see section 7.1 below for the difference in requirements set out pursuant to sections 6-5 and 6-4 of the AIFMA for obtaining marketing authorisation.
(c) Please confirm whether the implementation of the AIFMD is as per the minimum requirements of the AIFMD or otherwise describe the gold-plating (super-equivalent) measures relevant only to " marketing/selling an AIF via the AIFMD Marketing Passport ".	The implementation of the AIFMD is as per the minimum requirements of the AIFMD, thus there are no gold-plating measures.
By way of example, please consider whether any additional local conditions have been imposed in order for an AIF to be marketed/sold into your jurisdiction via the AIFMD Marketing Passport in respect of:	We are not familiar with any additional conditions being imposed in relation to the examples given in section 4.1(c)(i)-(vi) of this question. No such gold-plating requirement.
(i) reporting (dates/language/format);	
(ii) auditing;	No such gold-plating requirement.

Questions	Answers
(iii) requirement to appoint entities to perform depositary-like functions;	No such gold-plating requirement.
(iv) the acquisition of holdings in issuers and non-listed companies in your jurisdiction pursuant to Article 26(7) of the AIFMD;	No such gold-plating requirement.
(v) steps to prevent the AIF being marketed to Retail Investors;	No such gold-plating requirement. See general answer under section 4.1(a) above and see also response at section 6.2(e) in relation to requirements when marketing to the public. It is best practice to include disclaimer language in written marketing materials confirming that they are intended for Professional Investors only.
(vi) requirements in respect of the regulatory status of the AIFM.	No such gold-plating requirement.
4.2 AIFMD Marketing Passport	
Please refer to section 6.5 of the <i>European Framework Document</i> .	Yes. The position under section 6.5 of the <i>European Framework Document</i> applies. Article 32 of the AIFMD is implemented in sections 6-2 and 6-3 of the AIFMA.
(a) Please confirm whether the position set out in section 6.5 of the <i>European Framework Document</i> applies in your jurisdiction.	
(b) What language does the Fund documentation need to be in?	There is no statutory requirement in this respect. Generally, in addition to Norwegian, English and any of the Scandinavian languages would be acceptable for filings to the NFSA regarding Professional Investors. The same would also apply to marketing documents about the AIF that are provided to Professional Investors. While strictly outside of the AIFMD Marketing Passport's scope, disclosures or information to be provided to Non-Professional Investors under the AIFMA shall be provided in Norwegian.
(c) Are there any fees payable in your jurisdiction:	For 2025, the fee for an incoming AIFMD Marketing Passport notification is NOK 5,000 for EEA AIFs.
(i) upon receipt of an incoming AIFMD Marketing Passport notification; or	In addition to the notification fee, an on-going annual fee will also be payable. We note that all non-Norwegian managers of AIFs listed in the NFSA registry may be billed an annual fee of up to NOK 10,000. The fee is given as a range of up to NOK 10,000 to cater for how the NFSA divides its regulatory fees across various regulated entities. The fee will be sent to the registered
(ii) on an ongoing basis?	

Questions	Answers
	address connected to the manager's legal entity identifier (LEI). We understand that marketed Funds will be deregistered if the bill is not paid. The annual fee for 2025 is NOK 7,000. We note that managers listed in the NFSA registry should ensure that the registry is up to date in order to avoid an unnecessary burdensome dialogue when the bill is issued. In addition, managers should ensure that the LEI registered in the NFSA registry is up to date and be aware that the bill will be sent to the registered address connected to the LEI.
(d) Please outline the local arrangements (including any documentation that needs to be filed with the regulator in your jurisdiction) for marketing which an EEA AIFM marketing an EEA AIF via the AIFMD Marketing Passport is required to comply with in accordance with Article 32(5) of the AIFMD. If applicable, please cross-refer to your answers to sections 4.4(a) and 7.1(a).	Section 6-3 of the AIFMA which provides for EEA-domiciled AIFMs' right to market EEA AIFs to Professional Investors via the AIFMD Marketing Passport does not detail the documents which must be attached to an AIF notification from a non-Norwegian licensed EEA-domiciled AIFM. These requirements will as per our understanding be detailed in the home state regulations of the AIFM. The AIF notification should be expected to need to comply with the detailed requirements of Annex IV of the AIFMD. Such AIFs may be marketed to Professional Investors in Norway once the notification from the AIFM submitted to the home state regulator of the AIFMD has been forwarded to the NFSA. No specific format has to date been required for such AIF notifications, neither have language requirements been included in the AIFMA. We do, however, expect that English, Norwegian, Swedish and Danish languages, which are accepted for UCITS notifications, also will be acceptable for AIF notifications. For a definition of marketing under AIFMA please refer to section 4.4 (a). If an EEA AIFM intends to market EEA AIFs under its management also to Retail Investors in Norway, it must comply with the requirements as set out at section 6.2(e).
(e) (i) Are there any OFI notification/licensing or approval requirements before marketing via the AIFMD Marketing Passport can commence?	Yes. In cases where the OFI is not the AIFM but rather an intermediary appointed by an AIFM, the OFI must either be an EEA Passporting Entity or hold a Norwegian MiFID II licence unless the Third Country Firm Regime applies. This is because, as discussed in section 7.1(c) of this Memorandum, if the OFI's marketing/selling of a Fund constitutes the provision of "investment services" and the units of the Fund are comprised by the definition of "financial instruments" pursuant to the STA or partnership interests pursuant to the PA, licensing requirements will apply unless any exceptions are available or the "investor's first approach" principle is applicable. The relevant exceptions are set out in section 6.4(d). However, if such marketing activities do not constitute an "investment service", a third-party OFI may not need to be an EEA Passporting Entity or hold a Norwegian MiFID II licence. Hence unless an exception or the Third Country Firm Regime is available, in order to conduct

Questions	Answers
	active marketing of an AIF using the AIFMD Marketing Passport, the OFI either needs to be the AIFM of the AIF or an EEA Passporting Entity or apply for a Norwegian MiFID II licence. For a summary of the rules which apply in Norway where the OFI wishes to market an AIF where the AIFMD Marketing Passport is not available please refer to section 5(d). However, pursuant to Articles 46-49 of MiFIR, OFI's domiciled outside the EEA (i.e. in a Third Country) have the right to provide investment services or perform investment activities (with or without any ancillary services) to eligible counterparties in Norway and to Professional Investors, set out in Section I, Annex II of MiFID II Directive, established throughout EEA without the establishment of a branch. This requires that the OFI domiciled outside the EEA has applied and been registered with ESMA for the provision of investment services or performance of activities throughout the Union. Before such application/registration can be made, the requirements for an equivalence determination with the relevant Third Country would need to have been satisfied. At present no such equivalence determinations have been made. The necessary co-operation agreements would also need to be in place between the EU and the relevant third country. A Third Country OFI so registered is referred to in this Memorandum as a Third Country Passporting Entity.
(ii) Would the OFI notification/licensing or approval requirements discussed in (i) also apply where the OFI receives and responds to a reverse enquiry in relation to a Fund that benefits from the AIFMD Marketing Passport in your jurisdiction? For example, could a non-EEA OFI respond to a reverse enquiry regarding a Fund that benefits from the AIFMD Marketing Passport?	No. A non-EEA OFI could respond to a reverse enquiry regarding a Fund that benefits from the AIFMD Marketing Passport. See section 5 for more information on reverse enquiries and the conditions applicable to an Investor's First Approach.
(f) Is an intermediary, local distributor or local agent required in order to market via the AIFMD Marketing Passport?	No, there is no such requirement. Furthermore, it should be noted that an OFI which wants to market units or shares in a EEA AIF would not be able to solely rely on an intermediary (with a licence) in order to market, as the passporting requirement lies with the EEA AIFM for the marketing of units or shares in a EEA AIF or non-EEA AIF. Notwithstanding the fact that the AIFM remains responsible and an AIFMD Marketing Passport

Questions	Answers
	is required, it is possible for the AIFM to appoint an intermediary to carry out the marketing activities in respect of an AIF, provided (i) the intermediary is appropriately licensed to conduct these activities in Norway, i.e. the intermediary will have to have proper MiFID II licences (provided the third-party's activities would constitute regulated investment services), such as licences to provide Investment Advice, reception and transmission of orders and Execution of Orders on Behalf of Clients etc, and (ii) such activities are "at the initiative of" or "on behalf of" the AIFM.
(g) Could an OFI be appointed as a tied agent of an EEA regulated entity in order to market/sell an AIF to investors in your jurisdiction? If so, (i) must the EEA regulated entity be incorporated in your jurisdiction or can it be passported into your jurisdiction; (ii) must the tied agent be incorporated in the EEA; and (iii) do any licensing requirements apply to the tied agent?	The AIFMA does not allow for tied agents to market/sell AIFs on behalf of AIFMs, regardless of the AIFM being Norwegian or foreign. However, tied agents of appropriately authorised EEA MiFID Investment Firms may market/sell an AIF to investors in Norway. The tied agent must be incorporated in the EEA and registered in a public register kept by the Member State in which the tied agent is established. No licensing requirements apply to the tied agent as such. Note that the STA and STR sets out certain limitations and requirements for the use of tied agents, such as suitability assessment requirements, that the tied agent can only offer services from a place of business (unless the tied agent is a credit institution or insurance company) and requirements for a written agreement.
(h) Can an OFI actively market an AIF in your jurisdiction after 20 working days (from the date of receipt of the notification file by the home Member State regulator), as set out in section 6.5 of the <i>European Framework Document</i>? If not, please set out how soon active marketing may commence following the notification.	Pursuant to AIFMA section 6-3, the OFI can actively market the AIF from the time the home state authorities has notified the OFI that the AIF passport notification has been sent to NFSA.
(i) Please provide a link to the local regulator's website (even if in the local language only) where information on the notification procedure for incoming passported AIFs is set out?	https://www.finanstilsynet.no/konsesjon/aif-forvalter/markedsforing-av-alternative-investeringsfond-aif/ Note: regulator website currently does not host such links.

Questions	Answers
(j) Is it recommended or mandatory to include certain disclaimers/warnings in the written marketing materials for a Passport AIF? If so, provide recommended wording in Section D of Appendix 1 and 2 of this Memorandum.	Yes. See Section D of appendices 1 in respect of marketing to Professional Investors. As referred to in Appendix 2.D, where the AIF is a Closed-Ended Fund, it may also be necessary to include wording confirming whether the offer is being made pursuant to a prospectus exemption. Where the communication amounts to a “marketing communication” within the scope of ESMA’s Funds Marketing Communications Guidelines, see disclaimer wording in Appendix 4D.
4.3 Co-operation Agreements	
(a) With reference to section 6.7 of the <i>European Framework Document</i>, please confirm the current status of the Memoranda of Understanding entered into by your jurisdiction and the competent authorities of non-EEA jurisdictions.	The NFSA has entered into a Memoranda of Understanding with all Third Country regulators listed on: https://www.esma.europa.eu/document/aifmd-mous-signed-eu-authorities
4.4 Definition of “AIFMD Marketing” and/or “Pre-Marketing”	
Please refer to section 6.3 of the <i>European Framework Document</i>. (a) With reference to section 6.3 of the <i>European Framework Document</i>, is there any law or guidance in your jurisdiction regarding the definition of “marketing” in the context of AIFMD (i.e. AIFMD Marketing)? Is it possible to distinguish between specific marketing activities that trigger the requirements deriving from the AIFMD (i.e. AIFMD Marketing), including the requirement to make a registration/notification, and permitted marketing activities which fall outside the scope of the AIFMD (i.e. Pre-Marketing) and which may be conducted prior to making the notification/registration filing or during such process?	The definition of marketing in Article 4 no 1 letter (x) of the AIFMD has been implemented in section 1-2 letter h) of the AIFMA. "Marketing" is defined as "<i>direct or indirect offering or placement of shares in alternative investment funds at the initiative of the manager or on behalf of the manager</i>". No further general guidance has been given in the preparatory works to the AIFMA or by any other Norwegian governmental body with respect to the scope of marketing definition. Following the implementation of the CBDF Directive, in terms of an AIF eligible for the AIFMD Marketing Passport, active marketing activities that go beyond the scope of CBDF Pre-Marketing constitutes AIFMD Marketing. In terms of an AIF that must be marketed via the private placement regime, there is no guidance available as to the scope of this concept. Note, however, that the NFSA in relation to previous legislation which contained severe restrictions on marketing of "special funds" took a strict approach to a similar issue. The NFSA maintained in that context that any promotional initiative taken by a fund manager (or third party distributor) in order to generate interest in "special funds" (hedge funds) which led to subsequent sales of units in special funds would be regarded as not being carried out based on the Investor’s First Approach and would therefore be an activity for which a licence was required. This strict attitude is likely to apply in the interpretation of AIFMD

Questions	Answers
	Marketing in this context unless, in local counsel's view, ESMA provides more liberal guidance on this issue.
Harmonised CBDF Pre-Marketing Regime	
In this section we are concerned with the harmonised CBDF Pre-Marketing regime which applies to EU AIFMs eligible to market EU AIFs via the AIFMD Marketing Passport.	
Please refer to section 6.3 of the <i>European Framework Document</i> and in particular the discussion regarding CBDF Pre-Marketing .	
(b) Where the CBDF Directive has been transposed into the national law of your jurisdiction please could you:	
(i) confirm that the concept of CBDF Pre-Marketing as implemented in your jurisdiction aligns with the definition of CBDF Pre-Marketing in section 30a AIFMD. ¹	Confirmed. The definition of CBDF Pre-Marketing is implemented in Norwegian law by the inclusion of a definition in the AIFMA Section 1-2 letter m. The definition of Pre-Marketing in the in the AIFMA Section 1-2 letter m) aligns with the definition of CBDF Pre-Marketing in section 30a AIFMD. The Norwegian Ministry of Finance, also decided to regulate and allow CBDF Pre-Marketing to Non-Professional Investors in connection with the implementation of the CBDF Directive in Norway. The CBDF Pre-Marketing Conditions also apply in this context. In addition, CBDF Pre-Marketing to Non-Professional Investors is only be permitted if the relevant Fund is intended to be marketed to such investors. It is therefore a prerequisite for CBDF Pre-Marketing to Non-Professional Investors that the AIF, if it is to be marketed later, is marketed in accordance with the rules in the AIFMA Chapter 7 and/or the rules in section 9-3 and 9-4 of the SFA (as applicable). As CBDF Pre-Marketing to Non-Professional Investors is not covered by the CBDF Directive, it is stated in the preparatory works that there will be a separate notification system to the NFSA and both Norwegian and EEA AIFMs must notify the NFSA within two weeks after having begun CBDF Pre-Marketing to Non-Professional Investors. Currently, an Informal Letter is sent to the NFSA (post@finanstilsynet.no) within two weeks of the pre-marketing commencing, describing

¹ As set out in section 6.3 of the *European Framework Document*, the definition of CBDF Pre-Marketing in 30a(1) AIFMD is as follows:

“pre-marketing” means provision of information or communication, direct or indirect, on investment strategies or investment ideas by an EU AIFM or on its behalf, to potential professional investors domiciled or with a registered office in the Union in order to test their interest in an AIF or a compartment which is not yet established, or which is established, but not yet notified for marketing in accordance with Article 31 or 32, in that Member State where the potential investors are domiciled or have their registered office, and which in each case does not amount to an offer or placement to the potential investor to invest in the units or shares of that AIF or compartment;’

Questions	Answers
	the market sounding (period and jurisdictions), the investment strategies or -ideas and a list of relevant funds or share classes being pre-marketed.
(ii) confirm whether the scope of permitted CBDF Pre-Marketing in your jurisdiction applies to AIFs not yet established as well as AIFs which are established but not yet notified for marketing passport purposes;	Confirmed. The scope of permitted CBDF Pre-Marketing in the Norwegian jurisdiction applies to AIFs not yet established as well as AIFs which are established but not yet notified for marketing, as also included in the definition of Pre-Marketing pursuant to the AIFMA section 1-2 letter m).
(iii) confirm whether the following activities/circulation of the following materials would fall within the scope of permitted CBDF Pre-Marketing :	
(A) discussions whether on the telephone, via email or at a Fly-In Meeting on investment strategies/ideas to test investor interest in an AIF (where Fund name is not mentioned);	The specific issue is not addressed in the preparatory works for the implementation of the CBDF Directive. However, the Norwegian implementation is aligned with Article 30a. Counsel's view is that the activities will most likely fall within the scope of permitted CBDF Pre-Marketing, as long as the information presented to potential professional investors does not allow investors to commit to acquiring units or shares, or constitute a subscription form or similar, see also (b)(iii)(E) regarding draft offering documents. Appropriate disclaimer to be included – see Appendix 1.G.
(B) discussions whether on the telephone, via email or at a Fly-In Meeting on investment strategies/ideas to test investor interest in an AIF (where Fund name is mentioned);	The specific issue is not addressed in the preparatory works for the implementation of the CBDF Directive. However, the Norwegian implementation is aligned with Article 30a. Counsel's view is that the activities will most likely fall within the scope of permitted CBDF Pre-Marketing, as long as the information presented to potential professional investors does not allow investors to commit to acquiring units or shares, or constitute a subscription form or similar, see also (b)(iii)(E) regarding draft offering documents. Appropriate disclaimer to be included – see Appendix 1.G.
(C) pitchbook / presentation / term sheet / teaser document (whether in draft or final form);	The specific issue is not addressed in the preparatory works for the implementation of the CBDF Directive. However, the Norwegian implementation is aligned with Article 30a. Counsel's view is that the activities will most likely fall within the scope of permitted CBDF Pre-Marketing, as long as the information presented to potential professional investors does not allow investors to commit to acquiring units or shares, or constitute a subscription form or similar, see also (b)(iii)(E) regarding draft offering documents. Appropriate disclaimer to be included – see Appendix 1.G.

Questions	Answers
(D) DDQ (whether in draft or final form);	The specific issue is not addressed in the preparatory works for the implementation of the CBDF Directive. However, the Norwegian implementation is aligned with Article 30a. Counsel's view is that the activities will most likely fall within the scope of permitted CBDF Pre-Marketing, as long as the information presented to potential professional investors does not allow investors to commit to acquiring units or shares, or constitute a subscription form or similar, see also (b)(iii)(E) regarding draft offering documents. Appropriate disclaimer to be included – see Appendix 1.G.
(E) PPM / offering document / prospectus (in draft form);	Pursuant to AIFMA Section 6-6a (implementing the CBDF Directive Article 30a), the draft prospectus or offering documents shall not contain information sufficient to allow investors to take an investment decision and shall clearly state that (i) they do not constitute an offer or an invitation to subscribe to units or shares of an AIF; and (ii) the information presented therein should not be relied upon because it is incomplete and may be subject to change. Appropriate disclaimer to be included – see Appendix 1.G.
(F) Constitutional documents e.g. Memorandum, Articles of Association, LPA (in draft form)	The specific issue is not addressed in the preparatory works for the implementation of the CBDF Directive. The wording in the AIFMA Section 6-6a is aligned with Article 30a, and regulates that the information presented to potential professional investors as part of the CBDF Pre-Marketing cannot amount to constitutional documents of a not-yet-established AIF in a final form. Thus, Counsel's view is that the activities will most likely fall within the scope of permitted CBDF Pre-Marketing. Appropriate disclaimer to be included – see Appendix 1.G.
(iv) confirm that the following activities/circulation of the following materials would fall outside the scope of permitted CBDF Pre-Marketing and would trigger the AIFMD Marketing Passport notification requirement:	
(A) PPM / offering document / prospectus (in final form);	Confirmed. The information presented that amounts to prospectus or offering documents in a final form fall outside the scope permitted CBDF Pre-Marketing according to the AIFMA Section 6-6a.
(B) Constitutional documents e.g. Memorandum, Articles of Association, LPA (in final form)	Confirmed. Information presented that amounts to constitutional documents in a final form fall outside the scope permitted CBDF Pre-Marketing according to the AIFMA Section 6-6a.

Questions	Answers
(C) Subscription documentation (in draft or final form)	Confirmed. Information presented that amounts to subscription forms in a final or drafted form fall outside the scope permitted CBDF Pre-Marketing according to the AIFMA Section 6-6a.
(v) confirm whether there are any requirements/restrictions as regards the type of firm/OFI that can conduct the CBDF Pre-Marketing and if so please can you specify the requirements that apply. Specifically, has your jurisdiction implemented the requirement in the CBDF Directive which stated that a third party shall only engage in CBDF Pre-Marketing on behalf of an authorised EU AIFM where it is a MiFID II Investment Firm, a CRD Credit Institution, a UCITS ManCO, an EEA AIFM or MiFID tied agent. If implemented has there been any gold-plating or amendments to the scope of this requirement?	Pursuant to the AIFMA Section 6-6a (1) and Section 7-1a (2) the AIFM may engage a MiFID II Investment Firm or a MiFID II tied agent, a CRD Credit Institution, a UCITS ManCo or an EEA AIFM to conduct the CBDF Pre-Marketing or Pre-Marketing to Professional Investors and to Retail Investors, respectively.
(vi) confirm whether the restriction on being able to rely on an investment arising from a reverse enquiry which applies for the 18 month period following CBDF Pre-Marketing having been conducted has been implemented in your jurisdiction? If so, please provide any relevant details such as whether the restriction only applies to investors that were the recipients of the CBDF Pre-Marketing activities or to all investors in your jurisdiction;	Confirmed. The restriction is included in the AIFMA Section 6-6a (5) (and correspondingly for CBDF Pre-Marketing to Retail Investors in the AIFMA Section 7-1a (7)). Any subscription made by Investors within 18 months of the EU AIFM commencing the pre-marketing of units or shares of an AIF in the context of Pre-Marketing, or of an AIF established as a result of the pre-marketing, shall be considered to be the result of marketing and shall be subject to the applicable notification procedures referred to in Articles 31 and 32. According to the AIFMA Section 6-6a (5) all subscription of units or shares in the relevant AIF within 18 months following the CBDF Pre-Marketing will be covered by the restriction and shall be subject to the applicable notification procedures referred to in Articles 31 and 32. See (c)(iv) below. Based on the Norwegian implementation of the CBDF Directive and the preparatory work, the 18-month restriction should be interpreted so that CBDF Pre-Marketing will preclude reverse enquiries from all investors in Norway, and not just those investors that actually received the pre-marketing.

Questions	Answers
(vii) confirm whether the implementation of the CBDF Pre-Marketing is as per the minimum requirements of the CBDF Directive or otherwise describe the gold-plating (super-equivalent) measures relevant only to CBDF Pre-Marketing if you have not already done so within your other responses to the other sub-sections of this section 4.4(b);	No gold-plating measures are implemented in the AIFMA Section 6-6a and CBDF Pre-Marketing is in line with the minimum requirements of the CBDF Directive.
(viii) confirm whether any information has been provided regarding the informal letter that is to be provided to the AIFM's home member state in connection with CBDF Pre-Marketing to Professional Investors in your jurisdiction. Where your jurisdiction is the AIFM's home member state and CBDF Pre-Marketing is to be conducted in your jurisdiction or on a cross-border basis into another jurisdiction, please can you provide any details on how the informal letter should be submitted.	According to the AIFMA Section 6-7 a Norwegian AIFM shall, within two weeks after having begun Pre-Marketing, send a notification (in paper form or by electronic means) to the NFSA. At this stage, we have no further details on how the notification shall be submitted. The NFSA has indicated that it will be necessary to expand the NFSA's registers and adapt internal systems in order to follow up the notifications in an appropriate manner. Currently, an Informal Letter is sent to the NFSA (post@finanstilsynet.no) within two weeks of the pre-marketing commencing, describing the market sounding (period and jurisdictions), the investment strategies or -ideas and a list of relevant funds or share classes being pre-marketed.
Non-CBDF Pre-Marketing Regime	
In this section we seek to identify whether it is possible to conduct any pre-marketing activities in relation to AIFs that must be marketed/sold via the national private placement regime (either via Article 36 or Article 42 AIFMD). Pre-Marketing of such AIFs has not been harmonised by the CBDF Directive. However, it is anticipated that the new CBDF regime may impact pre-marketing activities in this context, particularly given that recital 12 of the CBDF Directive specified that non-EU managers should not be advantaged over EU managers. Please refer to section 6.3 of the <i>European Framework Document</i> and in particular the discussion regarding Non-CBDF Pre-Marketing .	
(c) Is it permitted to conduct any Non-CBDF Pre-Marketing to assess investor appetite in respect of an AIF prior to making a registration/notification to use the national private placement regime? If so, please could you provide a definition of what would amount to permitted Non-CBDF Pre-Marketing.	The AIFMA Section 6-6a (8) specifically excludes non-EU AIFMs and non-EU AIFs from the pre-marketing regime. Consequently, Non-CBDF Pre-Marketing is not available for non-EU AIFMs and non-EU AIFs. It is unclear whether any form of 'pre-pre-marketing' would be feasible, as such activity must fall outside of the broad definition of pre-marketing in the AIFMA Section 1-2 letter m (" <i>direct or indirect information about investment strategies or investment ideas (...) to test the interest for an AIF which has not yet been established, or established but not yet received marketing</i> ").

Questions	Answers
	<i>authorisation</i> "). Counsel's view is that general information about the AIFM / brand marketing would be allowed but the risk of triggering the requirement to register the AIF with the NFSA (as outlined in section 7.1(a) below) would be greater where strategies or investment ideas are shared (even where they do not include the name of the Fund). Such 'pre-pre-marketing' would however likely exclude the possibility to later on to rely on reverse solicitation, and is an untested grey area. Consequently, specific advice should be obtained in each instance and caution is advised.
(i) Where Non-CBDF Pre-Marketing is permitted in your jurisdiction, please could you outline the types of marketing activities which would fall within the scope of such permitted Non-CBDF Pre-Marketing distinguishing if relevant between:	
(A) the status of the Fund (e.g. whether established or still under formation);	See (c) above.
(B) the types of activity conducted and/or materials that can be circulated (whether in draft or final form):	See (c) above.
discussions whether on the telephone, via email or at a Fly-In Meeting on investment strategies/ideas to test investor interest in an AIF (where Fund name is not mentioned);	See (c) above.
discussions whether on the telephone, via email or at a Fly-In Meeting on investment strategies/ideas to test investor interest in an AIF (where Fund name is mentioned);	See (c) above.
pitchbook / presentation / term sheet / teaser document	See (c) above.
DDQ	See (c) above.

Questions	Answers
• PPM / offering document / prospectus	See (c) above.
• Constitutional documents e.g. Memorandum, Articles of Association, LPA	See (c) above.
• subscription documents;	See (c) above.
(C) any specific “pre-marketing” activities to avoid on the basis that these will trigger the relevant requirements; and	See (c) above.
(D) any other relevant considerations in your jurisdiction (e.g. number or type of investor to whom the “pre-marketing” is done).	See (c) above.
(ii) Please could you confirm whether there is any requirement to inform the regulatory authorities about the Non-CBDF Pre-Marketing? ² If so, such a requirement applies please could you provide details of what is required e.g.	No. See (c) above.
(A) to whom must the notice be provided	See (c) above.
(B) what information is to be specified; and	See (c) above.
(C) what timeframe applies.	See (c) above.
(iii) any there any requirements/restrictions as regards the type of firm/OFI that can conduct the Non-CBDF Pre-Marketing and if so please can you specify the requirements that apply. ³	See (c) above.

² We note that the CBDF Directive stipulates that an informal letter be sent to the EEA AIFM’s home member state within two weeks of the CBDF Pre-Marketing activity commencing. This question seeks to identify the position that applies for Non-CBDF Pre-Marketing and whether this requirement for an informal letter has also been introduced in connection with Non-CBDF Pre-Marketing.

³ We note that the CBDF Directive stipulates that a third party shall only engage in CBDF Pre-Marketing on behalf of an authorised EEA AIFM where it is a MiFID II Investment Firm, a CRD Credit Institution, a UCITS ManCO, an EEA AIFM or a MiFID tied agent. As part of responding to this question could you consider whether a similar requirement applies to Non-CBDF Pre-Marketing.

Questions	Answers
(iv) confirm whether there are any restriction on being able to rely on an investment arising from a reverse enquiry following Non-CBDF Pre-Marketing having been conducted has been implemented in your jurisdiction?⁴ If so, please provide any relevant details such as whether the restriction only applies to investors that were the recipients of the Non-CBDF Pre-Marketing activities or to all investors in your jurisdiction;	Non-CBDF Pre-Marketing is not allowed in Norway, see (c) above. Generally, reverse enquiry is available for non-EU AIFMs and non-EU AIFs, assuming that the investment takes place at the exclusive initiative of the investor (i.e. no 'pre-pre-marketing', as per point (c) above). For completeness, please note the following regarding the 18 month restriction period applicable for EU AIFMs. The CBDF Directive presupposes that national legislation that implements the directive provisions should not be to the detriment of an EU AIFM compared to non-EU AIFM. According to the preparatory work for the implementation of the CBDF Directive in Norway, the new rules will clarify the framework for pre-marketing for EU AIFMs, however at the same time obligations are imposed on the EU AIFM, including restrictions on the right to receive subscriptions in the EU AIF following a passive sale for a period of 18 months after the Pre-Marketing started (see (b)(iv) above). Such sales shall be considered as a consequence of the Pre-Marketing, and require that the EU AIFM prior to the relevant subscription has notified the EU AIF for marketing. It is stated in the preparatory work for the implementation of the CBDF Directive in Norway that these requirements are not applicable and will <i>not</i> be enforceable against non-EU AIFMs who cannot base their pre-marketing on the notification system within the EEA, but which must have permission to market the fund to Professional Investors in Norway according to the AIFM-Act § 6-4 and 6-5 (Article 36 and 42 in the AIFMD). Any failure to comply with the prohibition to pre-market or marketing without authorisation for non-EU AIFMs or non-EU AIFs, may result in corrective orders from the FSAN, and may impair the ability to obtain future marketing authorisation.
4.5 Provision of Non-Core Services by an AIFM	
Please refer to section 8.3 of the <i>European Framework Document</i>. (a) Please confirm the position in your jurisdiction regarding the non-core MiFID II services which an AIFM may be authorised to provide pursuant to Article 6(4) of the AIFMD (e.g. Investment Advice and reception and transmission of orders (a type of	A Norwegian external AIFM may pursuant to section 2-2 third and fourth paragraphs of the AIFMA be granted permission to provide: i. management of portfolios of investments in accordance with mandates given by investors on a discretionary, client-by-client basis, ii. investment advice,

⁴ We note that the CBDF Directive introduced an 18 month restriction on reverse enquiries following the conduct of CBDF Pre-Marketing. As part of responding to this question could you consider whether a similar restriction applies to Non-CBDF Pre-Marketing.

Questions	Answers
Arranging)) and whether these may be provided by an AIFM authorised in another EEA member state on a cross-border basis into your jurisdiction.	iii. reception and transmission of orders in relation to one or more financial instruments, and iv. safe-keeping and administration in relation to shares or units of collective investment undertakings. These options are not available to internally managed AIFs, cf. section 2-2 fifth paragraph of the AIFMA. Pursuant to section 8-2 of the AIFMA, a non-Norwegian EEA AIFM which has obtained permission to manage an AIF and carry out one or more of the services mentioned in section 2-2 third and fourth paragraphs of the AIFMA (see no i. – iv. above), may provide such services in Norway from the point in time that the competent authority of the non-Norwegian EEA AIFM has notified the non-Norwegian EEA AIFM of its forwarding of the notification to the NFSA.
4.6 Small AIFMs	
Please refer to section 3.2 of the <i>European Framework Document</i> which deals with the requirements deriving from the AIFMD in respect of “Small AIFMs”. (a) Please outline the position as regards a Small AIFM wishing to market an AIF into your jurisdiction. If appropriate please cross-refer to your answers in section 7.1 (Private Placement Regime (AIFs and Non-Passported UCITS Funds))). Please ensure that your answer specifies whether any particular notification/approvals/registrations or authorisations are necessary and addresses the following scenarios: (i) Small EEA AIFM marketing EEA AIF; (ii) Small EEA AIFM marketing non-EEA AIF; (iii) Small Non-EEA AIFM marketing EEA AIF; and (iv) Small Non-EEA AIFM marketing Non-EEA	Article 3 of the AIFMD is implemented in section 1-4 of the AIFMA. A. Small EEA AIFM Small EEA AIFMs may only market an AIF (whether an EEA AIF or a non-EEA AIF) to Professional Investors in Norway provided that they have opted-up and obtained a home state AIFM licence. It is therefore not sufficient that a Small EEA AIFM is registered in its home member state – it must have opted up for full authorisation. Regardless of the above, a Small EEA AIFM may market a qualifying EuVECA fund or an EuSEF fund to Professional Investors within the EU/EEA upon a notification procedure. <u>Professional Investors</u> Provided a Small EEA AIFM has opted-up it must then either comply with the notification procedure in section 6-3 of the AIFMA (in order to market an EEA AIF to Professional Investors via the AIFMD Marketing Passport (for more detail see section 4.2 of this Memorandum which applies equally to Small authorised EEA AIFMs)) or the approval procedure in section 6-4 of the AIFMA (in order to market a non-EEA AIF to Professional Investors (for more detail see section 7.1(a) of this Memorandum which applies equally to Small authorised EEA AIFMs)). <u>Non-Professional Investors</u>

Questions	Answers
AIF.	Provided a Small EEA AIFM has opted up, it may then only market AIFs (whether EEA AIFs or non-EEA AIFs) to non-Professional Investors in Norway if the approval process of chapter 7 of the AIFMA (in relation to closed-ended AIFs) and/or of section 9-3 and 9-4 of the SFA (in relation to open-ended AIFs structured as securities funds) are complied with. For more detail refer to section 6.2(d) of this Memorandum which applies equally to Small authorised EEA AIFMs. Provided that a Small EEA AIFM has opted up and obtained a home state AIFM licence, marketing of an ELTIF fund to both Professional Investors and certain Non-Professional Investors may be conducted upon a notification procedure. To address the shortcomings of ELTIF 1.0, the EU has adopted "ELTIF 2.0," although it has yet to be implemented in Norway. ELTIF 2.0 offers improvements over its predecessor and has already seen increased adoption within the EU. This updated regulation came into effect in the EU on 10 January 2024. The timeline for its implementation in Norway remains uncertain. B. Small Non-EEA AIFM <u>Professional Investors</u> A Small Non-EEA AIFM must obtain a marketing licence from the NFSA in order to be able to market the AIF (whether non-EEA AIF or EEA AIF) to Professional Investors in Norway, cf. section 6-5 of the AIFMA. For more detail see section 7.1(a) of this Memorandum which applies equally to Small Non-EEA AIFMs. <u>Non-Professional Investors</u> A Small Non-EEA AIFM may under the current regime not obtain any permission from the NFSA to market the AIF (whether non-EEA AIF or EEA AIF) to non-Professional Investors in Norway.
4.7 Sub-funds	
(a) Please can you confirm whether in your jurisdiction, sub-funds will be treated as separate AIFs, whether the undertaking as a whole will be treated as an AIF or whether the undertaking as a whole and each sub-fund are treated as an AIF.	We assume that this section 4.7(a) relates to whether Norwegian legislation implementing the AIFMD treat "investment compartments" of the AIF, cf. the definition of AIF in Article 4 no. 1. (a) of the AIFMD, as a separate AIF. This issue is not addressed in the preparatory works of the AIFMA or in the wording of the AIFMA or the AIFMR. The NFSA has not published any guidance on this issue and umbrella structures with investment compartments/sub-funds do not

Questions	Answers
	exist under Norwegian law. However, since not explicitly addressed or discussed by the NFSA to date, we assume that this question will need to be based on an overall assessment of the legal characteristics of each specific investment vehicle. Under Norwegian law, it is not necessary to provide information in circumstances where there are some sub-funds that have not been notified in Norway.

5. PASSIVE MARKETING (REVERSE-ENQUIRY)

Questions	Answers
Please refer to section 7 of the <i>European Framework Document</i>. (a) Is marketing/selling of an AIF (whether Open-Ended or Closed-Ended) permitted following an unsolicited approach by an investor to an OFI? Please outline the legal basis of permitted reverse-enquiries considering the following (if relevant):	When considering whether a reverse enquiry may be permitted in respect of a Fund, it is necessary to distinguish between: (i) Open-Ended securities funds within the scope of the SFA (dealt with in (A) below) and (ii) AIFs governed by the AIFMA (dealt with in (B) below). A. Open-ended securities funds within the scope of the SFA Open-ended collective investment vehicles structured as securities funds (investing essentially in financial instruments and bank deposits) including (i) UCITS and (ii) AIFs when such AIFs are marketed to non-Professional Investors in accordance with the approval requirements of section 9-4 of the SFA, are governed by the marketing regime of the SFA. Marketing of UCITS can only take place subsequent to proper notifications having taken place. Marketing of AIFs to non-Professional Investors can only take place once NFSA approval in accordance with section 9-4 of the SFA has been obtained. Hence, understanding the notion of "marketing" in relation to securities funds is essential. "Marketing" is pursuant to section 9-7 of the SFR defined as "<i>inviting or encouraging the acquisition of rights in a securities fund</i>" which is "<i>intended for, or particularly likely to have effect in, Norway</i>". Such activities trigger the marketing restrictions of the SFA/SFR and require a notification (for a UCITS Fund) or NFSA approval (for AIFs to be marketed to non-Professional Investors). Passive sales of Open-ended securities funds (whether UCITS or AIFs) carried out based on the investor's first approach, without any prior illegal marketing of the securities fund having preceded the sale, has, however, generally been regarded by the NFSA as permitted without triggering marketing restrictions i.e. there is no requirement for a notification (for a UCITS Fund) or NFSA approval (for AIFs to be marketed to non-Professional Investors). Further there is no licensing requirement which applies in respect of the OFI to whom the investor's first approach was made and/or who is selling the Fund. In a NFSA Circular (Circular 11/2016), the NFSA has adopted a strict(er) interpretation of the first approach/reverse enquiry exemption from applicable licensing/registration/notification requirements in respect of retail investors. We find the legal basis for this position rather weak, and consider it to be based on the NFSA not finding it likely that retail investors truly are making the first approach (to OFIs/Funds), rather than the exemption not applying in respect of retail investors generally. Accordingly, maintaining a trail of evidence substantiating that the investor

actually was the one to initiate the contact (and, potentially, maintaining the initiative up to and including the subscription) is particularly important in respect of retail investors. It is also worth noting that the abovementioned circular only applies directly to Norwegian sub-threshold AIFMs. We do, however, find it likely that the NFSA will take the same view in respect of all subscriptions based on retail investors' alleged first approach.

Investments in securities funds made on behalf of a client by a discretionary portfolio manager would generally speaking be regarded as taking place based on the customer's first approach, based on the customer permitting the Fund investment in its investment mandate. Such conclusion presupposes, however, that the mandate has not been set up for the purpose of circumventing the marketing restrictions of the SFA/SFR.

The investor's first approach "exemption" has traditionally been interpreted narrowly by the NFSA. The NFSA has in a public report from an on-site inspection concluded that sales carried out on the customer's initiative after a hedge fund manager's presentation of hedge funds as an asset class (but not of any individual funds) were not sales truly based on the customers' first approach, but sales generated based on the fund manager's initiative. There is a risk that any active marketing activity (including general marketing) could undermine the ability to later rely on the Investor First Approach exemption.

B. AIFs governed by the AIFMA

All types of AIFs (whether closed-ended or open-ended) will be governed by the AIFMA when marketed to Professional Investors. In addition, closed-ended AIFs will be governed by the marketing restrictions of the AIFMA when marketed to non-Professional Investors.

The "marketing" definition of art. 4 (1) (x) of the AIFMD has been implemented in section 1-2 h) of the AIFMA and include "*direct or indirect offers to purchase or placement of units in alternative investment funds on the initiative of the investment manager or on behalf of the investment manager*".

No guidance exists in the preparatory works to the AIFMA or from the NFSA with respect to reverse solicitation in relation to the marketing restrictions of the AIFMA. The wording of the marketing definition of the AIFMA (referring to the initiative coming from the AIFM) suggests, however, that the marketing restrictions of the AIFMA should not apply to passive sales carried out based on the Norwegian investor's first approach to the AIFM for an investment in the AIF provided that no prior illegal marketing has been carried out by the AIFM. No formal guidance exists with respect to the application of the "investor's first approach-principle" in relation to

	AIFs where the first approach comes from a Professional Investor. However, we think it is likely that the NFSA will take a similar approach to the position outlined in (A) above. The CBDF Directive introduces an 18-month restriction on relying on a reverse enquiry, where the reverse enquiry relates to the units/shares of an AIF that was pre-marketed or that was established as a result of pre-marketing. Based on the Norwegian implementation of the CBDF Directive and the preparatory works, the 18-month restriction period should be interpreted so that CBDF Pre-Marketing will preclude reverse enquiries from all investors in Norway, and not just those investors that actually received the pre-marketing. Please note that the Investment Firms Regulation and Directive (Directive (EU) 2019/2033 and Directive (EU) 2019/2034), have not yet been implemented in Norway, and thus not either the amendments to MIFID II Article 42 regarding reverse enquiry. It is currently not clear whether this amendment could have any impact on the Norwegian regulator's general position on reverse enquiry.
(i) What constitutes a "reverse-enquiry"/"reverse-solicitation" within your jurisdiction?	Norwegian law does not have any specific "reverse-enquiry" regime for fund marketing. Whether marketing/selling of a Fund is permitted without obtaining any marketing or investment firm licence, must be based on an interpretation of the legislation pertaining to the specific instrument/investment service to be provided, as well as to precedent materials from the NFSA.
(ii) Must a "reverse-enquiry"/"reverse-solicitation" relate to a specific AIF or can it be more general?	It is Counsel's view that it may be argued that a general enquiry from the investor relating to Funds managed/offered by the OFI, as such should not exclude the applicability of the Investor's First Approach, provided that the later initiative to engage in transactions relating to specific Funds with the OFI is made by the investor.
(iii) Does it make a difference if there is a pre-existing relationship with the investor?	In terms of applying the Investor's First Approach, it should be noted that the fact that there is a pre-existing relationship with the investor is irrelevant to the assessment of whether an OFI will be regarded as having marketed a Fund.
(iv) Must each separate transaction with a particular investor be preceded by a "reverse-enquiry"/"reverse-solicitation"?	Our view is that each separate transaction with a particular investor must be preceded by a separate first approach in order for the OFI to rely on the Investor's First Approach. Note, however, that the licensing requirement exception based on the initiative taken from the investor will not pave the way generally for the OFI to approach the investor, and that it is our understanding that the investor must initiate each individual situation in order for the investor's first approach exemption to apply.

(v)	Is there a maximum number of potential investors an OFI may market/sell to in response to unsolicited approaches?	In terms of applying the Investor's First Approach, it should be noted that the number of investors approached with the investor is irrelevant to the assessment of whether an OFI will be regarded as having marketed a Fund.
(vi)	Does it matter if a third party intermediary made the approach on behalf of the investor?	The use of an intermediary on the initiative of the OFI will not have the result that no marketing is deemed to be carried out by the OFI. A third party intermediary appointed by the investor may, however, reach out to the OFI without voiding the OFI's ability to rely on the Investor's First Approach, as the third party intermediary will be deemed a representative of the investor, not the OFI. This presupposes that there is no pre-existing arrangement between the third party intermediary and the OFI (e.g. such as a distribution agreement).
(vii)	Does the investor need to be a particular type of investor e.g. a Professional Investor?	Whether the investor is Professional or Non-Professional is in principle irrelevant to the analysis of whether marketing has taken place, though please refer to our above text under section 5 (a) A regarding the NFSA's Circular 11/2016.
(viii)	Are there restrictions regarding future communications with investors known to the OFI on the basis of a "reverse-enquiry"/"reverse-solicitation"?	No formal guidance from the NFSA or any other sources of law exists enabling provision of the details of the content of future communications which would/would not be regarded as marketing which would impair the possibility of invoking the investor's first approach. As a general rule, communications by the OFI to investors known on the basis of a "reverse-enquiry"/"reverse-solicitation" risks voiding the OFI's ability to rely on the Investor's First Approach in the future.
(b)	Please confirm whether your response to (a) above would apply where an unsolicited approach is made in respect of a Non-Passported UCITS Fund by an investor from your jurisdiction. If the position would differ please specifically address the legal basis of permitted reverse enquiries, together with any conditions that apply relating to Non-Passported UCITS Funds, addressing the same issues set out in (i)-(viii) in (a) above.	Our response to 5 (a)(i)-(viii) above would apply where an unsolicited approach is made by an investor in respect of a Non-Passported UCITS Fund.
(c)	With reference to your responses to (a) and (b) above, please provide any applicable practical advice in respect of the "reverse-enquiry" regime in respect of Funds that you think is relevant. For example:	

(i)	are there particular compliance procedures which are advised?	There are no statutory or formal compliance procedures that have to be complied with in order to make use/benefit from the "first approach principle" in respect of Funds.
(ii)	are there any specific requirements regarding how investor documentation or application forms are provided to an investor known to the OFI on the basis of a "reverse-enquiry"?	We strongly advise OFIs to make their best effort to file/keep correspondence showing that the initiative to invest in a Fund offered by the OFI or to enter into an agreement with the OFI relating to investment services was made by the investor. See some sample disclaimer wording that could be used in the event of a reverse enquiry as set out in the Appendices below. If the OFIs use a standard form template filled out by the investor to confirm the initiative came from them to make the reverse enquiry, other correspondence should also be kept in file, in case of enquiry from the NFSA. The standard template language can serve as a useful reminder to both investor and firm and provides some evidence in writing. However, the NFSA is unlikely to recognise the contents of a confirmation based on standard template language if there are other circumstances indicating that some marketing activities were undertaken and it was not a true reverse enquiry. Use of a standard template also potentially gives the perception that the OFI regularly relies on this route. The example language should therefore only be used with care. The safest approach is for the OFI to stick to natural interactions with investors that approach them on the basis of a reverse enquiry, where the OFI is clear that they are only answering the investor's approach. The position outlined there applies equally where the reverse enquiry relates to an Investment Management & Advisory Service.
(iii)	please also consider whether it is possible for an OFI to receive a general confirmation from a potential investor that it is happy to be contacted about future opportunities?	Consents from investors confirming that they are happy to be contacted by the OFI in relation to Funds, will in our view, based on the current precedent materials from the NFSA, not be accepted under the "first approach" principle.
(iv)	are there any registration/notification/approval/licensing requirements which apply in respect of the OFI following an unsolicited approach regarding a Fund by an investor to an OFI?	No.
If the practical advice differs for AIFs as compared to Non-Passported UCITS Funds, please make sure your response deals with both types of Fund.		For further details, see our answer to section 5(a) above which applies to both AIFs and Non-Passported UCITS Funds.

(d) Is marketing/selling of Investment Management & Advisory Services permitted following an unsolicited approach by an investor to an OFI? Please outline the legal basis of permitted reverse-enquiries considering the following (if relevant):	Yes. Provided that no illegal marketing has preceded the sale, an OFI is permitted to execute Passive Marketing/sales of Investment Management & Advisory Services based on the investor's first approach. Generally speaking, the provision of "<i>investment services</i>" (see definition in section 6.4(b)A below) such as Investment Management & Advisory Services related to "<i>financial instruments</i>" (see definition in section 6.4(b) A below) in Norway is subject to licensing requirements set forth in the STA. Norwegian law previously did not provide for any specific reverse enquiry exemptions from the licensing/passporting regime of the STA. However, with the implementation of MiFID II into Norwegian law, the reverse solicitation regime of MiFID art. 42 for third country firms is now part of Norwegian law. Accordingly, third country OFIs may, on the exclusive initiative of the customer, provide investment services and/or investment activities to a customer. Such initiative by such clients shall, however, not entitle the third-country OFI to market new categories of investment products or investment services towards the customer without being duly authorised to provide such services in Norway. Otherwise (for EEA firms), to the extent that the initiative (first approach) for the specific Investment Management & Advisory Service from the OFI is taken by the investor, Norwegian licensing requirements are by the NFSA generally held not to apply. The assessment of whether the investor has taken the "<i>first approach</i>" must be evaluated on a case-by-case basis. There will be no requirement for an investment services licence where the "first approach" is taken by the investor. Note, however, that the licensing requirement exception based on the initiative taken from the investor will not pave the way generally for the OFI to approach the investor, and that it is our understanding that the investor must initiate each individual investment advisory situation in order for the investor's first approach exemption to apply. We strongly advise OFIs to file/keep correspondence showing that the initiative to enter into an agreement with the OFI relating to investment services was made by the investor. For the sake of good order, note that marketing of "<i>investment services</i>" and "<i>financial instruments</i>" as such is not dependent on obtaining a prior licence from the NFSA, since "<i>marketing</i>" in itself is not regarded as constituting an investment service. However, marketing of "<i>investment services</i>" where the marketing forms an <i>integrated</i> part of activities which would be regarded as amounting to provision of "<i>investment services</i>" will require an investment services licence provided that the services relate to "<i>financial instruments</i>". For more information see section 6.4(b) below.
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	Please note that as the Investment Funds Directive/Regulation has not been implemented yet in Norway, the appurtenant amendment to MiFID II Article 42 clarifying that also solicitation by person acting on behalf of an OFI undermines the ability to rely on the Investor's First Approach. However, based on presidents from the NFSA, local counsel's view is this, once implemented, will not impact the current position on the Investor's First Approach in Norway due to the strict interpretation of the Investor's First Approach exemption, as described in this section.
(i) What constitutes a "reverse-enquiry"/"reverse-solicitation" within your jurisdiction?	See our answer to question 5(d) above.
(ii) Must a "reverse-enquiry"/"reverse-solicitation" relate to a specific Investment Management & Advisory Service or can it be more general?	Yes. Guidance from the NFSA is modest but should in our view be expected to require the investor's approach to relate to a specific Investment Management & Advisory Service rather than being more general.
(iii) Does it make a difference if there is a pre-existing relationship with the investor?	No. See our answer to question 5(a) A above.
(iv) Must each separate transaction with a particular investor be preceded by a "reverse-enquiry"/"reverse-solicitation"?	Yes. See our answer to question 5(a) A above.
(v) Is there a maximum number of potential investors an OFI may market/sell to in response to unsolicited approaches?	No.
(vi) Does it matter if a third party intermediary made the approach on behalf of the investor?	If an intermediary, such as a discretionary portfolio manager, makes the approach on behalf of the investor, the investor will be identified with the intermediary and regarded as having made the first approach, provided that no illegal marketing directed towards the intermediary has preceded the sale.
(vii) Does the investor need to be a particular type of investor e.g. a Professional Investor?	No, though recent NFSA statements might indicate otherwise. Please refer to 5(a) above for further details in this respect.
(viii) Are there restrictions regarding future communications with investors known to the OFI on the basis of a "reverse-enquiry"/"reverse-solicitation"?	See our answer to question 5(a) A above. Knowledge of the investor does not pave the way for future marketing of Funds or provision of Investment Management and Advisory Services.

(e)	Please provide any applicable practical advice in respect of the “reverse-enquiry” regime in respect of Investment Management & Advisory Services that you think is relevant. For example:	See our answer to question 5(c) above. No guidance from the NFSA exists on this matter.
(i)	are there particular compliance procedures which are advised?	See 5(c)(i).
(ii)	are there any specific requirements regarding how investor documentation or application forms are provided to an investor known to the OFI on the basis of a "reverse-enquiry"?	See 5(c)(ii). The position outlined there applies equally where the reverse enquiry relates to an Investment Management & Advisory Service.
(iii)	is it possible for an OFI to receive a general confirmation from a potential investor that it is happy to be contacted about future opportunities?	See 5(c)(iii).

6. MARKETING/SELLING TO THE PUBLIC

Questions	Answers
6.1 Passported UCITS Funds and Pre-Marketing of UCITS Funds	
Please refer to section 5.1 of the <i>European Framework Document</i> which deals with the notification process applicable to a Passported UCITS Fund.	
(a) Please confirm whether the position set out in section 5.1 of the <i>European Framework Document</i> applies in your jurisdiction.	The position set out in section 5.1 of the <i>European Framework Document</i> generally applies.
(b) Please confirm whether the implementation of the UCITS Directive is as per the minimum requirements of the UCITS Directive or otherwise describe the gold-plating (super-equivalent) measures relevant only to marketing/selling a Passported UCITS Fund in your jurisdiction.	The new PRIIPs Act entered into force in Norway on 1 October 2024. The following should be noted: • Foreign UCITS which are to be marketed to Non-Professional Investors in Norway will require a PRIIPs KID. • This requirement will apply to UCITS that have already been notified for marketing in Norway as well as to newly notified UCITS. • The PRIIPs KID should be prepared in Norwegian. • However, it will still be possible to provide a UCITS KIID exclusively to Professional Investors, cf. SFA section 8-4. In relation to the marketing/selling of a UCITS into Norway, please also take note of the following (in addition to the topics covered in (i) – (v) below): • Units in a passported UCITS may be sold directly from the head office of the management company of the UCITS, through a representative office in Norway or through a management company holding a licence or authorisation under the SFA sections 2-1, 3-3 (i.e. EEA OFIs having passported their UCITS Management Company licence) or 3-4 (non-EAA OFIs having applied for a specific Norwegian licence), a credit institution entitled to engage in financing activity in Norway, an insurance company entitled to engage in insurance activity in Norway or an investment firm entitled to provide investment services in Norway. • The UCITS shall in accordance with the SFA make the necessary arrangements for the purpose of making payments to unit-holders, redeeming units and providing such

	information as is required in the fund's home state as regards prospectuses, KID, annual and interim reports and the making public of the value of units. • All marketing in Norway offering sales of units of the UCITS shall make reference to the availability of the prospectus, the KID and the annual/half-yearly reports, and point out where these documents are available. The part B of the notification letter shall therefore include a statement that such information will be provided and included in all marketing material that will be offered to Norwegian investors. • The fund's articles of association, prospectus, KID, annual report and half-yearly report shall be made available to the NFSA on the management company's website in a format in common use. The NFSA shall be notified of any changes made to the above documents and, at the same time, details of where the documents are electronically available. The NFSA shall also be notified before any changes are made in the marketing of the UCITS Funds or in the event of changes regarding the fund's share classes. It is necessary to provide examples of marketing documentation, as for example the prospectus and KID, as part of the notification and notify the NFSA of any changes to those marketing documents, cf. SFA section 9-3. There is no statutory requirement to provide any documents other than those mentioned above when notifying the NFSA. • Where the marketing of a UCITS in Norway ceases, the NFSA shall be notified. The notification letter shall be signed by an authorised signatory of the securities fund or a third person empowered to act on the fund's behalf. The notification shall contain confirmation that the unit holders' interests will be safeguarded. • Standard notification letters and notification letters regarding changes in marketing or unit classes or regarding cessation of marketing shall be sent electronically to ucits.notifications@finanstilsynet.no. PRIIPs KID A foreign UCITS which is to be marketed to Non-Professional Investors in Norway is required to provide a PRIIPs KID (prepared in Norwegian). In addition, several existing Norwegian laws affects the distribution of packaged investment products, notably the Financial Institutions Regulation section 16-2, the Securities Trading Act section 9-5, the Insurance Contracts Act Chapter 1C and the Financial Contracts Act Chapter 3.
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(c) In relation to marketing/selling a Passported UCITS Fund in your jurisdiction, please briefly outline:	
(i) the notification process;	(i) Notification: Pursuant to section 9-3 first paragraph of the SFA, a UCITS Fund established in another EEA state may be marketed in Norway after the home state regulator of the UCITS Fund has notified the NFSA of the marketing of the fund in Norway. The notification must be made by using the standard UCITS Directive notification letter, cf. Annex I to Commission Regulation (EU) No 584/2010 of 1 July 2010. The notification letter must be completed by the UCITS Fund and forwarded to its home state regulator. Upon receiving the notification letter (and necessary enclosures, cf. below) the home state regulator shall forward the notification letter with enclosures to the NFSA. The notification letter must be enclosed with the following documents: • UCITS attestation from the home state regulator, cf. Annex II to Commission Regulation (EU) No 584/2010 of 1 July 2010 • The UCITS Fund's Articles of Association • The UCITS Fund's Prospectus • The UCITS Fund's/each Sub-Fund's KID • The UCITS Fund's newest annual report and (if available) semi-annual report Except for the KID, which as a general rule has to be translated into Norwegian, the above information and documents may be submitted in Norwegian, Swedish or Danish. The abovementioned information documents and KID can also be provided in English, provided that (i) the UCITS Fund has a minimum subscription amount equivalent to NOK 5 million, or (ii) the UCITS Fund is intended to be marketed solely to institutional investors on an individual basis and without the use of advertising or similar means, cf. the Regulation to the SFA section 9-2. The term "institutional investor" in this context is not defined under Norwegian law. Generally the term "institutional investor" is subject to a specific assessment in each individual case. Notably, there has been some regulatory focus on the term "institutional investor" recently, albeit in the context of the MiFID definition of "Other institutional investors whose main activity is to invest in financial instruments, including entities dedicated to the securitisation of assets or other financing transactions".

	In a letter dated 30 October 2008, the Ministry of Finance explained its understanding of the term institutional investor under Norwegian legislation, implementing rules succeeded by MiFID II. The Ministry of Finance held that the term "institutional investor" qualitatively requires more than the mere formalisation of investment activities through forming a limited company. The Ministry of Finance also assumed that an "institutional investor" is a legal person, such as a limited company or a foundation. Furthermore, in the opinion of the Ministry of Finance, the "decisive elements to fall under this [term] are whether the investor by its purpose, its ongoing activities, history, experience, knowledge and expertise, clearly appears to the outside world as a professional client [...]". In the Ministry of Finance's view, it is open for "a certain degree of discretion [...]", but its scope (outside of the ordinary professional client definition) should not be exaggerated. On the basis of the above, and to promote consistency between various rules under Norwegian law, Counsel believes that the term "institutional investor" under this provision normally would cover all per se professional clients under MiFID II and the STA. Retail Investors not meeting the conditions to reclassify as elective professionals, are not likely to be able to be treated as institutional investors.
(ii) timescales;	Pursuant to section 9-3 first paragraph of the SFA, the UCITS Fund may be marketed in Norway from the point in time the home state regulator has forwarded the notification to the NFSA. The supervisory authority of the UCITS home state shall according to the UCITS directive no later than 10 days after receipt of complete notification transmit the documents to the NFSA. According to guidance on the website of the NFSA, the NFSA will no later than five days after receipt of notification confirm to the host state regulator that it has received the notification.
(iii) costs, including any fees : (A) initially payable to the host regulator to passport the UCITS Fund; and (B) payable on an ongoing basis;	From 1 January 2025, the fee for an incoming UCITS Marketing Passport notification is NOK 5,000. In addition to the notification fee, an on-going annual fee will also be payable. We note that all non-Norwegian managers of UCITS listed in the NFSA registry may be billed an annual fee of up to NOK 10,000. The fee is given as a range of up to NOK 10,000 to cater for how the NFSA divides its regulatory fees across various regulated entities. The fee will be sent to the registered address connected to the manager's legal entity identifier (LEI). The fee for 2025 of NOK 7,000 was issued in April 2025, and applies to all foreign managers listed in the NFSA registry by 31 December 2024. Marketed funds will be deregistered if the bill is not paid and the final size of the ongoing fee remains somewhat unclear.

		We note that managers listed in the NFSA registry should ensure that the registry is up to date in order to avoid an unnecessary burdensome dialogue when the bill is issued. In addition, managers should ensure that the LEI registered in the NFSA registry is up to date, and be aware that the bill will be sent to the registered address connected to the LEI.
(iv)	with reference to the provisions regarding facilities agents in the CBDF Directive, please could you confirm: (A) what level of supervision/regulation will apply to any third-party providing facilities agent services in your jurisdiction (e.g. will this activity constitute a MiFID II service in your jurisdiction); and (B) whether there is any gold-plating of the provisions relating to facilities agents in your jurisdiction or any other commercial/market practice that has emerged that you are aware of and which you consider worth highlighting?	Pursuant to the AIFMA Section 7-6, parties performing the task related to facilities to Retail Investors in Norway (facilities agents) must be either the manager itself from the home state or through a representation office in Norway, or another AIFM or a MiFID firm authorised to provide such services in Norway (or a tied agent thereto), either on the basis that it is licensed in Norway or is licensed in another EEA Member State and has passported its licence into Norway. For UCITS, credit institutions and insurance companies are also allowed – either firms that are licensed in Norway or who have passported in from another EEA Member State. If the agent is a third party, a written agreement must be in place, specifying what services are not carried out by the fund, and ensure that the third party receives all necessary information and documents. No gold-plating is currently expected based on the implemented wording in the AIFMA Section 7-6.
(v)	what language , or languages, are to be used by the facilities agent;	According to the AIFMA Section 7-6, the materials to be offered to the investors shall be offered in Norwegian language and appear in a durable medium, and the materials can be offered electronically.
(vi)	what language the KIID or KID, as applicable, needs to be in;	The KID should be in Norwegian. Please note the opportunity to provide the information in English if the requirements set out in the answer in 6.1(c)(i) above are satisfied.
(vii)	what language the other documents to be filed need to be in;	The other documents may be submitted in English, Norwegian, Swedish or Danish. See our answer in 6.1(c)(i) above. The same applies to other documents. sent to investors as part of the marketing process.
(viii)	initial and ongoing filing requirements; and	With respect to initial filing requirements, please see our answer to the section "Notification" above in 6.1(c)(i). With respect to on-going filing requirements, section 9-3 second paragraph of the SFA, requires that the UCITS Fund shall notify the NFSA of any changes in documents mentioned under in

	bullet points no 2 – 5 under the section "Notification" above and shall concurrently state where the documents are electronically available. This implies that the UCITS Fund must notify the NFSA of any changes to the UCITS Fund's Articles of Association, the prospectus, the UCITS Fund's KID (or the UCITS Fund's sub-fund's KID) and provide the NFSA with the latest annual and semi-annual reports. In addition, the UCITS Fund shall give written notification to the NFSA of changes in how the UCITS Fund is marketed and of changes in relation to share classes before the changes are carried out. As opposed to the initial notification, the on-going notifications shall be made by the UCITS Fund directly to the NFSA and not take place on a regulator-to-regulator level. The NFSA may be informed electronically by using the following e-mail address: ucits.notifications@finanstilsynet.no With respect to UCITS-notifications, please see the following link to the NFSA's web-site:
(ix) Please could you provide a link to the local regulator's website (even if in the local language only) where information on the notification procedure for an incoming Passported UCITS Fund is set out.	https://www.finanstilsynet.no/en/licensing/fund-management-companies/marketing-of-foreign-ucits-in-norway/ Changes in the investment objectives, fees, managers etc., are as such not dependent on prior notification. However, if these changes are reflected in new versions of i.a. the prospectus of the UCITS Fund or the sub-fund's KID, changes in these new documents must be notified to the NFSA.
(d) whether an OFI can actively market a UCITS Fund in your jurisdiction after 10 working days (from the date of receipt of the notification file by the home Member State regulator), as set out in section 5.1 of the <i>European Framework Document</i> ?	An OFI can actively market a UCITS Fund in Norway from the time the home Member State regulator has notified the NFSA under the Passporting Rules (containing basic, consumer-friendly information about the UCITS Fund, the KID, a prospectus, annual report and half-yearly report) has been transmitted to the NFSA. As per section 5.1 of the <i>European Framework Document</i> a 10 working day timeframe is applicable here.
(e) (i) Is it permitted to conduct any “ pre-marketing ” activities in respect of a UCITS Fund in your jurisdiction to assess investor appetite either: (A) before committing to notify ; or (B) during the relevant notification process ? If so, please could you provide a definition of what would amount to permitted “pre-marketing” of a UCITS Fund.	No explicit statute permitting "pre-marketing" of a UCITS Fund currently exists in Norwegian law, and any ability to pre-market must be based on an interpretation of the SFA's definition of marketing. The NFSA's general approach to the definition of marketing has historically been quite strict. Therefore, there is a substantial risk that the NFSA will treat any attempt to pre-market as 'marketing' under the SFA, rather than Pre-Marketing, notwithstanding that a regime has now been introduced for CBDF Pre-Marketing.

	However, we note that since the harmonised regulation on CBDF Pre-Marketing only applies to AIFs eligible for the AIFMD Marketing Passport, the EU Commission is expected to conduct an assessment of the benefits of a harmonisation of the equivalent regulation for UCITS Funds.
(ii) Where “pre-marketing” of a UCITS Fund is permitted in your jurisdiction, please could you outline the types of marketing activities which would fall within the scope of such permitted “pre-marketing”, distinguishing if relevant between:	Please refer to 6.1(e) above.
(A) the types of materials that can be circulated (e.g. presentations, offering documents, subscription documents);	Please refer to 6.1(e) above.
(B) the status of the UCITS Fund (e.g. whether established or still under formation);	Please refer to 6.1(e) above.
(C) whether the documents are in draft or final form; and	Please refer to 6.1(e) above.
(D) any other relevant considerations in your jurisdiction (e.g. number or type of investor to whom the “pre-marketing” is done).	Please refer to 6.1(e) above.
(iii) Are there specific “pre-marketing” activities to avoid on the basis that these will trigger the UCITS notification requirement?	Please refer to 6.1(e) above.
(iv) Are there any registration/notification/approval/licensing requirements which apply in respect of the OFI pre-marketing a UCITS Fund in your jurisdiction?	No, but changes will occur as a consequence of the future implementation of Directive 2019/1160.
(f) (i) Are there any registration/notification/approval/licensing requirements which apply in respect of the OFI marketing/selling a Passported UCITS in your jurisdiction?	Active Marketing/Selling of the UCITS Fund is caught by the Licensing Requirement where the OFI is an entity other than the UCITS ManCo and the OFI will either need to be an EEA Passporting Entity or hold a local MiFID II Licence unless one of the IMAS Licensing

	Exceptions applies. The Third Country Firm Regime will not be relevant in this context as it only applies in respect of “eligible counterparties” in Norway. However, please also see discussion in section 4.2(e) above regarding the possibility in the future that an OFI based in a Third Country may be able to become a Third Country Passporting Entity and thereby conduct the relevant activity otherwise caught by the Licensing Requirement in Norway on the basis of that passport.
(ii) Would the OFI notification/licensing or approval requirements discussed in (i) also apply where the OFI receives and responds to a reverse enquiry in relation to a Fund that benefits from the UCITS Marketing Passport in your jurisdiction? For example, could an OFI respond to a reverse enquiry regarding a Fund that benefits from the UCITS Marketing Passport without triggering notification/licensing or approval requirements?	This is not clear. Pursuant to section 9-3 fourth paragraph of SFA only specific entities may conduct the sale of units in a notified UCITS Fund, see details under question 6.1(c)(iv). This provision seems to prevent a sale of a notified UCITS Fund on a reverse enquiry basis. However, provided there is in place a sales entity meeting the conditions of section 9-3 fourth paragraph of SFA (even if that entity is not involved in, or a party to, the response by the OFI), we believe that an OFI may respond to a reverse enquiry regarding a Fund that benefits from the UCITS Marketing Passport without triggering notification/licensing or approval requirements.
(g) Could an OFI be appointed as a tied agent of an EEA regulated entity in order to market/sell a UCITS Fund to investors in your jurisdiction? If so, (i) must the EEA regulated entity be incorporated in your jurisdiction or can it be passported into your jurisdiction; (ii) must the tied agent be incorporated in the EEA; and (iii) do any licensing requirements apply to the tied agent? If applicable, please cross-refer your answer to section 4.2(g) above.	The tied agent regime under SFA applies only to tied agents appointed by Norwegian UCITS ManCos. EEA investment firms may also appoint tied agents to market/sell a UCITS Fund to investors. The EEA investment firm can be passported into Norway. The tied agent must be incorporated in the EEA, but no licensing requirements apply to the tied agent as such (in addition to the appointment as a tied agent by the investment firm and its registration in the relevant register). Another alternative is using a representative office for specific UCITS/UCITS ManCos to conduct sale of Passported UCITS Funds in Norway. The representative office must be incorporated in Norway or operate as a branch in Norway. No licensing requirements apply to the representative office, however the Notification Letter must identify the OFI as a representative office for the specific Funds.
(h) Where an OFI is marketing a Passported UCITS Fund (registered outside your jurisdiction) which is an umbrella fund with sub-funds, is a fresh notification required in your jurisdiction for each new sub-fund?	Yes. Each sub-fund is as per current NFSA practice regarded as a separate fund by the NFSA for UCITS notification purposes.

(i) Is there a difference if the UCITS is self-managed as opposed to the UCITS appointing an external management company?	No.
(j) Is it recommended or mandatory to include certain disclaimers/warnings in the written marketing materials for a Passport UCITS Fund marketed to the public? If so, provide recommended wording in Section E of Appendix 1 of this Memorandum.	It is not mandatory to include disclaimers/warnings in the written marketing materials for a UCITS Fund marketed to the general public in Norway. However, disclaimers in various forms are frequently included by market participants on both marketing materials and prospectuses/KID's i.a. to make it clear that it is a UCITS which has completed the required formalities to market to the public in Norway. Disclaimers can be written in Norwegian, Danish, Swedish or English. For further details, see Section E of Appendix 1. Where the communication amounts to a “marketing communication” within the scope of ESMA’s Funds Marketing Communications Guidelines, see disclaimer wording in Appendix 4D. Under Norwegian law, it is not necessary to provide information in circumstances where there are some sub-funds that have not been notified in Norway. On this basis, local counsel does not advise using disclaimers as some other EU jurisdictions do. The information on Facilities to Retail Investors must be included when the marketing targets Retail Investors. This information is required under Norwegian law after the implementation of the CBDF. The marketing materials should include a reference as to where the prospectus, KID and annual and half-yearly reports can be found.
6.2 Non-Passported UCITS Funds and AIFs	
(a) Please confirm whether your response to section 5(a) would apply where the unsolicited approach is made in respect of an AIF by an investor which is a member of the public . If the position would differ, please specifically address the legal basis (if any) of permitted reverse enquiries from the public relating to AIFs.	As explained in section 5(a) there is no specific reverse-enquiry regime applicable in Norway. However, our response to section 5(a) continues to apply where the unsolicited approach (first approach) is made in respect of an AIF by an investor which is a member of the public. Note for the sake of good order in this respect that before the entry into force of the AIFMA, entities present in Norway were prohibited even from carrying out passive sales of special funds (open-ended non-UCITS funds) based on Non-Professional Investor's First Approach. It is unclear whether a PRIIPs KID is required when responding to an unsolicited approach. The obligation to draw of a PRIIPs KID is triggered when the PRIIP is "made available" to Retail Investors. There is no guidance from the NFSA. Counsel's view is that a prudent approach is to

	provide the Retail Investor with an appropriate disclaimer that no PRIIPs KID is prepared, and that the Fund is not "made available" to Retail Investors in Norway.
(b) Please confirm whether your response to section 5(b) would apply where the unsolicited approach is made in respect of a Non-Passported UCITS Fund by an investor which is a member of the public . If the position would differ, please specifically address the legal basis (if any) of permitted reverse enquiries from the public relating to Non-Passported UCITS Funds.	Yes. As explained in section 5(a) there is no specific reverse-enquiry regime applicable in Norway. However, our response to section 5(b) continues to apply where the unsolicited approach is made in respect of a Non-Passported UCITS Fund where the first approach is made by a non-professional investor/member of the public. It is unclear whether a PRIIPs KID is required when responding to an unsolicited approach. The obligation to draw of a PRIIPs KID is triggered when the PRIIP is "made available" to Retail Investors. There is no guidance from the NFSA. Counsel's view is that a prudent approach is to provide the Retail Investor with an appropriate disclaimer that no PRIIPs KID is prepared, and that the Non-Passported UCITS Fund is not "made available" to Retail Investors in Norway.
(c) Is active marketing/selling of: (i) a Non-Passported UCITS Fund or (ii) an AIF (registered outside your jurisdiction), to the public in your jurisdiction permitted without restriction?	(i) Non- Passported UCITS Fund : No. (ii) AIF : No.
(d) With reference to sections (a), (b) and (c) above, if possible, please provide a definition of "the public" as such term is interpreted in your jurisdiction. For example, "the public" are those investors that are not Professional Investors (i.e. which are Retail Investors).	Norwegian law does neither define nor use the term " <i>member of the public</i> " for regulatory purposes in respect to marketing of AIFs. The relevant distinctions in relation to marketing of AIFs under Norwegian law are "Professional" and "non-Professional Investors" (i.e. Retail Investors) as defined by MiFID II. See our answer to Question 6.2(a). Therefore for the purposes of this Memorandum, the term "the public" should include non-Professional Investors.
(e) If the answer to section (c) above is "No", are there certain requirements that either the OFI, the Non-Passported UCITS Fund or AIF (registered outside your jurisdiction) can fulfil so that active marketing/selling by the OFI of a Non-Passported UCITS Fund or AIF to the public in your jurisdiction is permitted? If applicable, please cross-refer to your section 9 in respect of those AIFs which fall within the scope of the Prospectus Regulation.	The reference to marketing "to the public" is, as previously explained, understood to include marketing to non-Professional Investors. Non-Passported UCITS Fund Active Marketing/selling of Non-Passported UCITS Funds to the public in Norway is not (in any event) permitted. Non-EEA AIFMs Non-EEA AIFMs cannot obtain marketing licences for marketing Closed-Ended AIFs to non-Professional Investors (i.e. the public) in Norway under the current regime.

In preparing your answer, please ensure that your analysis covers the following (or if these matters are not relevant to your jurisdiction, please explicitly state that in your response):

Non-EEA AIFMs may in theory obtain marketing licences for marketing Open-Ended AIFs to non-Professional Investors in Norway along the same lines as described below for Open-Ended AIFs in relation to EEA AIFMs.

EEA AIFMs

EEA AIFMs may obtain formal marketing approval from the NFSA to market both EEA AIFs and Non-EEA AIFs to non-Professional Investors in Norway. The conditions for obtaining such marketing licences differ to a slight extent depending on whether the AIF is a closed-ended AIF governed by the AIFMA or an open-ended securities funds style AIF governed by the SFA.

Closed-Ended AIFs

According to chapter 7 of the AIFMA with appurtenant regulations an approval for marketing of a closed-ended AIF to non-Professional Investors may be granted by the NFSA if:

- The EEA AIFM is licensed within the EEA;
- Business plan identifying the AIF and its home state is provided;
- Information on the AIF, including pre-investment disclosure is provided;
- A KID or similar document for the AIF is provided;
- The AIFs is confirmed permitted marketed to non-Professional Investors in its home state;
- An explanation of how marketing and sales will be executed in order to ensure marketing and sales to Non-Professional Investors will take place in accordance with good business practice requirements, including a requirement to carry out MiFID II-style suitability testing prior to any AIF sale:
 - If the AIF is established outside the EEA or is a feeder fund to such an AIF, the following additional requirements must be complied with:
 - the AIFM must comply with the requirements of the AIFMA and must evidence that another legal entity than the AIFM carries out depositary tasks;

	• the AIFM must undertake sufficient measures in Norway to be able to make payments to investors, to redeem units and provide the Norwegian investors with the information which is required pursuant to the AIFM's home state legal requirements; • satisfactory cooperation must be in place between the regulator of the AIF and the NFSA and the home state of the AIF must not be listed as a non-cooperating country by the FATF; • The EEA AIFM must be a member of an independent external board of complaints handling if marketing the AIF to non-Professional Investors: – Good business practice including MiFID II-style suitability testing must be complied with in relation to marketing and sale of closed ended AIFs to non-Professional Investors prior to any AIF sale; Additional requirements may be set by the NFSA in order to ensure protection of investors in Norway, including disclosure duties and requirements on how sales to non-Professional Investors in Norway shall take place. It is not possible to provide any details on specific disclosures that might need to be made, as it will depend on what NFSA requires on a case-by-case basis. • Material changes to fund documentation which has previously been provided to the NFSA in relation to the initial marketing application of a closed ended AIF to non-Professional Investors in Norway will need to be notified by the AIFM to the NFSA at least one month prior to the implementation of the changes, or immediately in case of unplanned changes, cf. section 7-1 (4) cf. 6-1 (3) of the AIFMA. <u>Open-Ended AIFs</u> According to section 9-4 of the SFA with appurtenant regulations, an approval for marketing of an open-ended AIF of a securities funds type to non-Professional Investors may be granted by the NFSA if: • Satisfactory cooperation is in place between the regulator of the AIFM and the NFSA; • The AIFM and the AIF are both subject to satisfactory home state supervision;
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- Home state regulations of the AIF and its management are complied with and provide investors in Norway with a level of investor protection at least at par with the protection obtained when investing in Norwegian "national funds" (non-UCITS funds);
- The AIFM undertakes sufficient measures in Norway to be able to make payments to investors, to redeem units and to provide the Norwegian investors with the information which is required pursuant to the AIFM's home state legal requirements;
- The AIFM must be member of an independent external board of complaints handling if marketing the AIF to non-Professional Investors;
- Good business practice including MiFID II-style suitability testing must be complied with in relation to marketing and sale of open ended AIFs which are "special funds" to non-Professional Investors prior to any AIF sale;
- Marketing materials must clearly state if the AIF is a "special fund" (A "special fund" is defined as a securities fund which is compliant with the rules of sections 7-2 to 7-7 of the SFA, cf. section 1-2 first paragraph no 6 of the SFA.);
- Additional requirements may be set by the NFSA in order to ensure protection of investors in Norway, including disclosure duties and requirements on how sales to non-Professional Investors in Norway shall take place. It is not possible to provide any details on specific disclosures that might need to be made, as it will depend on what NFSA requires on a case-by-case basis.

Changes in the procedures relating to sales of the units and in relation to special funds changes in the fund's articles, prospectus and KID or similar document must be forwarded to the NFSA, cf. sections 9-3 (2) and 9-4 (2) of the SFR.

Licence requirements apply in respect of the entity marketing the AIF to non-Professional Investors. It is our understanding that MiFID II licensed entities upon proper MiFID II notification of their services will be able to distribute AIFs to non-Professional Investors in Norway provided that the AIFM of the AIF has obtained necessary marketing licence to non-Professional Investors. Hence, it will not be necessary to use a Norwegian intermediary to market/sell interests in Norway if the OFI is an EEA Passporting Entity with the requisite authorisations in its home state. Sales from the AIFM or a properly MiFID II licensed

intermediary can take place on a cross border basis, based on the marketing licence from the NFSA or an appropriate MiFID II notification of the intermediary. The Third Country Firm Regime will not be relevant in this context as it only applies in respect of “eligible counterparties” in Norway.

Timing of the handling of marketing applications for AIFs to non-Professional Investors is uncertain.

From 1 January 2025, the fee for an incoming authorisation is NOK 25,000.

In addition to the authorisation fee, an on-going annual fee will also be payable. We note that all non-Norwegian managers of AIFs listed in the NFSA registry may be billed an annual fee of up to NOK 10 000. The fee will be sent to the registered address connected to the manager’s legal entity identifier (LEI). The bill for 2025 of NOK 7,000 was due to be issued in April 2025, and applies to all foreign managers listed in the NFSA registry by 31 December 2024. We understand that marketed funds will be deregistered if the bill is not paid. The size of the annual fee varies annually. This uncertainty is due to the fact that the annual fee is dependent on the total costs of the NFSA and their distribution across all the entities under supervision.

We note that managers listed in the NFSA registry should ensure that the registry is up to date in order to avoid an unnecessary burdensome dialogue when the bill is issued. In addition, managers should ensure that the LEI registered in the NFSA registry is up to date, and be aware that the bill will be sent to the registered address connected to the LEI.

Prospectus requirements

Closed-ended Non-UCITS Funds which qualify as "transferable securities" under MiFID II may also be obliged to prepare a prospectus pursuant to chapter 7 of the STA. For further details, see Section 9 below.

PRIIPs KID requirements

The PRIIPs Act entered into force in Norway on 1 October 2024. The PRIIPs Act incorporates the PRIIPs Regulation, and applies for manufacturers and distributors of PRIIPs as well as when providing advice on PRIIPs.

As a starting point no 'gold-plating' measures apply in Norway. The PRIIPs Act further contains necessary provisions on administrative measures, infringement fines and penalties, and a provision on confidentiality.

	However, the proposal for a PRIIPs Act also includes an authorisation for the Ministry to expand the scope of the PRIIPs Act, so that the Ministry, by enacting delegated regulations, may introduce requirements for equivalent information when offering other types of investment products than those covered by the PRIIPs Regulation. In the NFSA's consultation paper in 2017, the NFSA expressed the view that a number of pension products, all of which are excluded from the Regulation due to their special characteristics and objectives, should be covered by the Norwegian rules. At the time, the NFSA referred to, among other things, paid-up policies with investment options (<i>Nw. 'fripoliser'</i>) and individual pension schemes with investment options (<i>Nw. IPS</i>), including both pension savings agreements and pension insurance agreements. The Ministry believes that a broad consultation on any regulation expanding the scope of the PRIIPs Act should be carried out before any decision is made, and it remains to be seen whether the expanded scope becomes a reality.
(i) the impact (if any) of the marketing/sale being undertaken in respect of a Non-Passported UCITS Fund as compared to an AIF.	Active Marketing/selling of Non-Passported UCITS Funds to the public in Norway is not (in any event) permitted. Marketing/sale of an AIF may be undertaken after fulfilling requirements such as approval/notification, please see our general answer under 6.2(e)
(ii) the impact (if any) of the marketing/sale being undertaken in respect of an Open-Ended or a Closed-Ended AIF.	<u>Closed-Ended AIFs:</u> Marketing/sale of an Closed-Ended AIF may be undertaken after fulfilling certain requirements such as approval/notification, please see our general answer under 6.2(e). This applies for AIFs of EEA AIFMs only. Non-EEA AIFMs cannot obtain marketing licences for marketing Closed-Ended AIFs to non-Professional Investors in Norway. <u>Open-Ended AIFs:</u> Marketing/sale of an Open-Ended AIF may be undertaken after fulfilling certain requirements such as approval/notification, please see our general answer under 6.2(e)
(iii) the relevant criteria for determining whether investors are in your jurisdiction for the purposes of determining whether the Non-Passported UCITS Fund or AIF may be offered to the public.	No guidance is currently provided with respect to when investors shall be regarded as "being in Norway". Investors should in our view be regarded as "being in Norway" if they are present within Norwegian territory and jurisdiction (including when present in Norway on a temporary basis).
(iv) whether the requirements relating to facilities agents outlined in section 6.1(c)(iv)(A),	Yes, see section 6.1 (c) (iv).

6.1(c)(iv)(B), and 6.1(c)(v) above apply equally to an AIF being marketed to Retail Investors? If not, please could you specify the requirements that will apply.	
(v) whether it is necessary to use a local intermediary in order to market/sell interests in a Non-Passported UCITS Fund or AIF to the public in your jurisdiction.	Active Marketing/selling of Non-Passported UCITS Funds to the public in Norway is not (in any event) permitted. Licence requirements apply in respect of the entity marketing EEAs AIF and Non-EEA AIFs to non-Professional Investors. Non-EEA AIFMs cannot obtain marketing licences for marketing Closed-Ended AIFs to non-Professional Investors in Norway under the current regime. Non-EEA AIFMs may in theory obtain marketing licences for marketing Open-Ended AIFs to non-Professional Investors in Norway along the same lines as described below for Open-Ended AIFs in relation to EEA AIFMs. It is our understanding that MiFID II licensed entities upon proper MiFID II notification of their services will be able to distribute such AIFs to non-Professional Investors in Norway provided that the AIFM of the AIF has obtained necessary marketing licence to non-Professional Investors. Hence, it will not be necessary to use a Norwegian intermediary to market/sell interests in Norway if the OFI is an EEA Passporting Entity with the requisite authorisations in its home state. Sales from the AIFM or a properly MiFID II licensed intermediary can take place on a cross border basis, based on the marketing licence from the NFSA or an appropriate MiFID II notification of the intermediary.
(vi) whether there is requirement as to the language the Fund documentation needs to be in and are there any particular requirements that apply in connection to such documents?	AIF: • Disclosures made or information given to Non-Professional Investors under the AIFMA shall be in Norwegian. • No specific language format has to date been required for documents relating to Fund documentation in connection to Professional Investors in the AIFMA. We do, however, expect that English, Norwegian, Swedish and Danish languages, which are accepted for UCITS documentation, also will be acceptable for AIF fund documentation. • PRIIPs KID must be drawn up in Norwegian.

(f) Where it is possible to market: (a) an AIF or (b) Non-Passported UCITS Fund pursuant to a regime outlined in Section 6.2(e), please briefly outline applicable timescales, costs, initial and ongoing filing or other requirements.	(a) AIF: Timing of the handling of marketing applications for AIFs to non-Professional Investors is uncertain, however it may take up to 6-9 months depending on the complexity of each case, especially if the matter raises questions regarding investor protection. Initial and ongoing filing requirements, as well as the new fee regime applying from 2024, are described in section 6.2(e). (b) Non-Passported UCITS: Active Marketing/selling of Non-Passported UCITS Funds to the public in Norway is not (in any event) permitted.
(g) Are there any registration/notification/approval/licensing requirements which apply in respect of the OFI marketing/selling an AIF or Non-Passported UCITS Fund to the public in your jurisdiction?	(a) AIF: Yes, see section 6.2(e)(iv). (b) Non-Passported UCITS: Active Marketing/selling of Non-Passported UCITS Funds to the public in Norway is not (in any event) permitted.
(h) Could an OFI be appointed as a tied agent of an EEA regulated entity in order to market/sell an AIF or Non-Passported UCITS Fund to investors in your jurisdiction? If so, (i) must the EEA regulated entity be incorporated in your jurisdiction or can it be passported into your jurisdiction; (ii) must the tied agent be incorporated in the EEA; and (iii) do any licensing requirements apply to the tied agent? If applicable, please cross-refer your answer to section 4.2(g) above.	Yes, insofar as an AIF is concerned. EEA investment firms may appoint tied agents to market/sell an AIF to investors, provided that the relevant procedure in 6.2(e) is complied with. The EEA investment firm can be passported into Norway. The tied agent must be incorporated in the EEA, but no licensing requirements apply to the tied agent as such (in addition to the appointment as a tied agent by the investment firm and its registration in the relevant register).
(i) Would your answer to section (c) above differ if interests in the Non-Passported UCITS Fund or AIF being marketed/sold to the public constituted the re-sale of existing interests (i.e. a secondary offering) rather than the offering/placement of a new issue?	No.
(j) Where pursuant to section 6.2(e) above it is possible to market a Non-Passported UCITS Fund or an AIF to the	It is not mandatory to include disclaimers/warnings in the written marketing materials for an AIF marketed to the public in Norway. However, disclaimers in various forms are frequently

public in your jurisdiction, is it recommended or mandatory to include certain disclaimers/wording in the written marketing materials for a Non-Passported UCITS Fund or AIF marketed to the public? If so, please provide recommended wording in Section C of each of Appendix 1 and Appendix 2 (as applicable) of this Memorandum.	included by market participants on both marketing materials and prospectuses/information memorandums etc. See recommended wording in Section C of Appendix 1 and Appendix 2. Where the communication amounts to a “marketing communication” within the scope of ESMA’s Funds Marketing Communications Guidelines, see disclaimer wording in Appendix 4D. The information on Facilities to Retail Investors must be included when the marketing of the AIFs targets Retail Investors. This information is required under Norwegian law after the implementation of the CBDF. The marketing materials should include information on where the prospectus, KID and annual and semi-annual report can be accessed.
6.3 Other Mutual Recognition/Passporting Schemes	
Other than the AIFMD Marketing Passport referred to in section 4.2 above, the regime for Passported UCITS Funds referred to in section 6.1 above, and the EuVECA, EuSEF and ELTIF regimes referred to at sections 3.3 and 3.4 of the European Framework Document are there any existing or proposed regional arrangements for passporting or mutual recognition of Funds which facilitate the cross border marketing/selling of Funds into your jurisdiction (“Arrangements”)?	No.
(a) Please briefly describe any such Arrangements and the relevant rules, guidance or legislation. Please ensure that these sources are included in your responses to section 3 above.	Not applicable.
(b) If the Arrangements are already in force, if possible, please comment on how widely they have been used and whether any Funds have been marketed or sold in your jurisdiction on the basis of the Arrangements. Please give an indication of costs and timescales of using such Arrangements.	Not applicable.

(c)	If the Arrangements are not yet in force, if possible, please comment on their current status and expected timeline for implementation.	Not applicable.
(d)	Does a Fund have to be both domiciled and managed in one of the participating jurisdictions in order to benefit from the Arrangements, as implemented in your jurisdiction?	Not applicable.
(e)	Is any local presence required in your jurisdiction or would the regulator in your jurisdiction need to approve a Fund in any way before marketing / selling can take place there on the basis of the Arrangements?	Not applicable.
(f)	Do the Arrangements apply to both Open-Ended and Closed-Ended Funds ?	Not applicable.
(g)	Are there any registration/notification/approval/licensing requirements which apply in respect of the OFI marketing/selling such Funds in accordance with the Arrangements in your jurisdiction?	Not applicable.
(h)	Is there a requirement as to the language the Fund documentation needs to be in when marketing/selling pursuant to the Arrangements and are there any particular requirements that apply in connection to such documents?	Not applicable.
(i)	Where pursuant to this section 6.3 it is possible to market a Fund pursuant to the Arrangements in your jurisdiction, is it recommended or mandatory to include certain disclaimers/wording in the written marketing materials for such Fund marketed to the public? If so, please provide recommended wording in Section F of each of Appendix 1 and Appendix 2 (as applicable) of this memorandum.	Not applicable.
6.4 Investment Management & Advisory Services		
Please refer to section 8 of the <i>European Framework Document</i> .		

(a) Please confirm whether your response to section 5(d) would apply where the unsolicited approach in respect of Investment Management & Advisory Services is made by an investor which is a member of the public. If applicable, please cross-refer to your answer to section (b) or (d) below.	Yes, see section 5(d) above. Our response continues to apply where the unsolicited approach is made by a member of the public.
(b) Is marketing/selling of Investment Management & Advisory Services to the public in your jurisdiction permitted without restriction?	No. The following position applies: A. Investment Management & Advisory Services related to financial instruments The provision of "<i>investment services</i>" and performance of "investment activities" relating to "<i>financial instruments</i>" on a commercial basis in Norway is subject to licensing requirements set forth in chapter 9 of the STA which implements the EU MiFID II-Directive. Licensing requirements apply when such services are provided in Norway (within Norwegian jurisdiction), irrespective of whether such services are offered by an entity located within the Norwegian territory, or by a non-Norwegian entity established abroad acting on a cross-border basis. The definition of "investment services" and "financial instruments" under sections 2-1 and 2-2 of the STA accord with the MiFID II-definitions of these notions, which are set out below. Pursuant to section 2-1 first paragraph of the STA "investment services and activities" are defined as: i. reception and transmission of orders on behalf of clients in relation to one or more financial instruments, ii. execution of orders in relation to financial instruments on behalf of clients as further defined in section 2-3 (1) of STA as conclusion of agreements to buy or sell one or more financial instruments on behalf of clients, including the conclusion of agreements to sell financial instruments issued by an investment firm or a credit institution at the moment of their issuance, iii. dealing in financial instruments on own account as further defined in section 2-3 (2) of STA as trading against the proprietary capital of the investment firm or credit institution,

- iv. portfolio management as further defined in section 2-3 (3) of STA as discretionary management of investors' portfolios of financial instruments on a client-by-client basis based on a power of attorney from the investor,
- v. provision of investment advice in relation to financial instruments as further defined in section 2-4 first paragraph. "Investment Advice" is pursuant to section 2-3 (4) of STA defined as a personal recommendation to a client, either upon its request or at the initiative of the investment firm, in respect of one or more transactions relating to financial instruments,
- vi. placing of public offerings as mentioned in chapter 7 of the STA, placing of issues, as well as underwriting of issues or offers to acquire financial instruments, or
- vii. operation of a multilateral trading facility as defined in section 2-7 (5) of STA
- viii. operation of an organised trading facility.

We are of the opinion that that the definition of Investment Management & Advisory Services in the *European Framework Document* comprises the investment services no i, ii, iv and v above, and hence, that the provision/selling of such services to the public/Retail Investors in Norway is dependent on obtaining prior authorisation from the NFSA, provided that one or more the instruments to which the service relates fall within the definition of "financial instruments".

Pursuant to section 2-2 first paragraph of the STA, "*financial instruments*" are defined identically in Norwegian law with Annex I Section C of the MiFID II Directive and comprises i.a. Transferable Securities and Derivatives.

With respect to marketing, note that marketing of financial instruments or "investment services" relating to "financial instruments" in principle is not deemed to constitute the provision of an "investment service" pursuant to the STA as such and is not subject to any authorisation from the NFSA. However, the NFSA has in its precedents expressed the view that if marketing of "*financial instruments*" or "*investment services*" relating to "financial instruments" forms an *integrated* part of the provision of an investment service to be carried out, the entity will most likely be regarded as carrying out an investment service subject to licensing requirements in Norway. Note also that the NFSA in a specific matter has held that marketing on a one-to-one basis of a discretionary portfolio management agreement product related to currency derivatives actually amounted to provision of the investment service "reception and transmission of orders" and triggered the need for a licence. Hence, the marketing of the Investment Management and Advisory Services where the marketing forms an *integrated* part of the provision of the

investment services will require an investment services licence provided that the services relate to financial instruments.

No general guidance from the NFSA exists with respect to what marketing activities an OFI may be able to undertake without triggering licensing requirements, nor has the NFSA given any further guidance on what would amount to an "integrated" part of the provision of the investment services. Whether or not an OFI has marketed the Investment Management and Advisory Services in a manner that will require an investment services licence must be assessed on a case-by-case basis where all relevant facts to each specific case are assessed. If the client may submit orders in financial instruments or submit agreements related to investment services to the OFI based on the information provided by the OFI, the OFI is, however, generally regarded as providing services falling within the scope of the Norwegian licensing requirements.

In local counsel's view, activities may be deemed as "integrated" if the marketing goes beyond providing general information and involves guiding or influencing the decision-making process of potential clients regarding specific financial instruments or investment services.

Therefore, to avoid marketing activities that might be interpreted as "integrated", under the presumption that there also is a risk that the activities may be considered carried out "in Norway", and consequently prompt licensing requirements, certain measures could be implemented. Generally, the OFI should strive to maintain a level of objectivity in their communication, sharing factual, unbiased information about financial instruments and services, without any intent to influence client decisions. In order to clarify the intention behind sharing the information, the marketing information may also include disclaimers that explicitly state that the provided material is strictly for informational purposes and not intended as investment advice. See Appendix 3.A(iv) for wording that potentially could be used in this context.

OFIs should also avoid giving any personal recommendations in their marketing materials. Providing specific guidance or advice tailored to the circumstances of potential clients can blur the lines between marketing and offering investment services. Moreover, OFIs should prevent situations where clients could make direct transactions or agreements related to investment services based on the information shared in marketing activities. Allowing such direct actions could easily be seen as offering investment services, thus triggering licensing requirements.

Local counsel emphasises that the NFSA has provided limited guidance on this and so the risk that the NFSA considers it an integrated part cannot be excluded. Please also note that where general marketing of the Funds and Investment Management & Advisory Services as such does

not trigger licensing and regulatory requirements, there is a potential risk of impairing the possibility of invoking the investor's first approach exemption.

In respect of OFIs located and licensed to provide investments services relating to financial instruments within the EEA (and therefore an EEA Passporting Entity) they are, pursuant to the STA, entitled to rely on their home state licence to provide investment services in Norway, either through a Norwegian branch or on a cross-border basis upon notification to the NFSA.

A non-EEA located OFI will need to be licensed by the NFSA in order to provide investment services in the Norwegian market. Such licence may in theory be obtained for the establishment of a branch. No such licences have, however, to date been granted by the NFSA to act on a cross-border basis to non-EEA located entities. Pursuant to MiFIR art. 46 the EU Commission may, subject to certain conditions and procedures adopt an "equivalence decision" allowing third country firms to provide investment services and activities and ancillary services throughout the Union and the EEA-EFTA countries without the establishment of a branch. No such equivalence decisions have yet been made.

B. Investment Management and Advisory Services related to partnership interests

Interests in partnership structures (*Nw. "kommandittselskaper"*) are not defined as "financial instruments" pursuant to the STA. However, pursuant to section 9-1 of the STA, licensing requirements apply to the provision of investment services including marketing that is integrated to the provision of such investment services relating to interests in partnerships structures as defined in the PA and similar foreign structures when such services are offered on a commercial basis. Entities located and licensed to provide investment services relating to financial instruments within the EEA which are entitled pursuant to their home state regulations to provide investment services related to interest in partnerships based on their home state licence will be able to provide investment services in Norway in relation to interests in partnerships, either through a Norwegian branch or on a cross-border basis upon notification to the NFSA, cf. section 9-34 of the STA.

A non-EEA located entity will need to be licensed by the NFSA in order to provide investment services in the Norwegian market in relation to interests in partnerships, cf. section 9-36 of the STA. An exemption from the licensing requirements applicable to investment services related to partnership interests applies if such services are only provided based on a minimum commitment amount of NOK 5 million or to a Professional Investor (as defined by MiFID II Directive). If/when the necessary pre-requisites are met (e.g. necessary equivalence

	determinations are in place), it may also be possible in the future for a Third Country Passporting Entity to undertake Active Marketing/Selling or provision of IMAS in Norway.
(c) With reference to sections (a) and (b) above, if possible, please provide a definition of “the public” as such term is interpreted in your jurisdiction. For example, “the public” are those investors that are not Professional Investors (i.e. which are Retail Investors). Please refer to section 6.2(d) if applicable.	See section 6.2(a) above. For the purposes of this Memorandum the term “the public” is interpreted to mean “Non-Professional Investors”.
(d) If the answer to section (b) above is “No”, are there certain requirements that the OFI can fulfil so that marketing/selling by the OFI of Investment Management & Advisory Services to the public in your jurisdiction is permitted?	"Investment services" related to "financial instruments" in Norway are pursuant to section 9-3 second paragraph of the STA exempted from licensing requirements in the following cases: 1. Investment services are only provided occasionally and in connection with another professional activity regulated by law or self-regulated by the profession itself; 2. Investment services are only provided to entities within one and same group of companies of the OFI; 3. Investment services are only provided in connection with the management of a scheme for employees ownership interests; 4. Only investment services as described in nos. 2 and 3 are provided; 5. Only investment advice in the course of another professional activity is performed, provided that no remuneration is paid for the investment advice; 6. Dealing on own account in Financial Instruments other than commodity derivatives or emission allowances or derivatives thereof and not providing any other Investment Services in Financial Instruments other than commodity derivatives or emission allowances or derivatives thereof unless the OFI: (i) is a market maker; (ii) is a member of or participants in a regulated market or an MTF or have direct electronic access to a trading venue; (iii) apply a high-frequency algorithmic trading technique; or (iv) deal on own account when executing client orders; 7. (i) Dealing on own account, including being market maker, in commodity derivatives or emission allowances or derivatives thereof, excluding persons who deal on own account when executing client orders; or (ii) providing Investment Services, other than dealing on own account, in commodity derivatives or emission allowances or derivatives thereof to the customers or suppliers of their main business; provided that:

	— for each of those cases individually and on an aggregate basis this is an ancillary activity to their main business, when considered on a group basis, — the OFI is not part of a group the main business of which is the provision of Investment Services within the meaning of MiFID II Directive or the performance of any activity listed in Annex I to Directive 2013/36/EU, or acting as a market-maker in relation to commodity derivatives, — the OFI does not apply a high-frequency algorithmic trading technique; and — the OFI report upon request to the competent authority the basis on which they have assessed that their activity under points (i) and (ii) is ancillary to their main business; 8. Transmission system operators, operators or administrators of an energy balancing system as well as other persons meeting the requirements of MiFID II Directive art. 2 (1) n); or 9. Operators with compliance obligations under Directive 2003/87/EC who, when dealing in emission allowances, do not execute client orders and who do not provide any Investment Services other than dealing on own account, provided that those persons do not apply a high-frequency algorithmic trading technique. "Investment services" related to interests in partnerships provided on a commercial basis in Norway are exempted from licensing requirements (provided the partnership falls outside the scope of the AIFMD) if: i. such interests are offered to clients which are classified as professional clients according to the EU MiFID II Directive definition, or ii. if the customers make investment commitments amounting to minimum NOK 5 million. Also, only investment services provided on a commercial basis (i.e. with a purpose of generating profits) are subject to licensing requirements. The NFSA also takes the view that if the investment services are provided based on the customer's first approach, without the investment firm's prior marketing of its services, licensing requirements do not apply. For more detail see section 5(d) above. The Third Country Firm Regime will not be relevant in this context as it only applies in respect of "eligible counterparties" in Norway.
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(e) Could an OFI be appointed as a tied agent of an EEA regulated entity in order to market/sell Investment Management & Advisory Services to investors in your jurisdiction? If so, (i) must the EEA regulated entity be incorporated in your jurisdiction or can it be passported into your jurisdiction; (ii) must the tied agent be incorporated in the EEA; and (iii) do any licensing requirements apply to the tied agent? If applicable, please cross-refer your answer to section 4.2(g) above.	Yes, pursuant to STA section 10-22 an OFI may be appointed as a tied agent of an EEA regulated investment firm or credit institution in order to market/sell Investment Management & Advisory Services to investors in Norway, provided always that the investment firm or credit institution is a EEA passporting entity. The tied agent must be incorporated in the EEA, but no licensing requirements apply to the tied agent as such (in addition to the appointment as a tied agent by the investment firm and its registration in the relevant register). Please refer to section 6.2(g) for further details.
(f) Is there a requirement as to the language the written marketing materials need to be in when marketing/providing Investment Management & Advisory Services to the public and are there any particular requirements that apply in connection to such documents?	There is no statutory requirement in this respect when marketing to Professional Investors. However, when marketing Retail Investors it is required to provide the information in Norwegian. If there already is a relationship with the Retail Investors, the information must be written in Norwegian or another language which is expressly agreed upon, cf. the Financial Contracts Act section 3-1.
(g) Where pursuant to section 6.4(d) above it is possible to market/sell Investment Management & Advisory Services to the public in your jurisdiction, is it recommended or mandatory to include certain disclaimers/wording in the written marketing materials? If so, please provide recommended wording in Section C of Appendix 3 of this Memorandum.	No. It is not mandatory to include disclaimers/warnings in the written marketing materials related to Investment Management & Advisory Services to the public in Norway. However, disclaimers in various forms are frequently included by market participants on both marketing materials and prospectuses/information memorandums etc. See Section C of Appendix 3.

7. PRIVATE PLACEMENT REGIME

Questions	Answers
7.1 Private Placement Regime (AIFs and Non-Passported UCITS Funds)	
Please refer to section 6.6 of the <i>European Framework Document</i> which deals with the requirements deriving from the AIFMD in respect of the marketing/sale of AIFs via local private placement regimes. Please also refer to section 5.2 of the <i>European Framework Document</i> which describes the position applicable to the marketing/sale of a Non-Passported UCITS Fund. In providing your answers to sections (a) to (i) below please do not repeat information that is already contained in these sections of the <i>European Framework Document</i>. However, please do include information regarding any local requirements which are different or supplemental to the requirements outlined in those sections of the <i>European Framework Document</i>.	
AIFs	
(a) Is active marketing/selling by an OFI of interests in an AIF (whether Open-Ended or Closed-Ended) to investors in your jurisdiction via a private placement regime permitted? In preparing your answer, please ensure that your analysis covers the following (or if these matters are not relevant to your jurisdiction, please explicitly state that in your response):	The term "private placement" is neither defined in Norwegian legislation as such, in the STA, in the SFA, in the AIFMA nor commonly used in Norwegian regulatory lingo. However, by "private placement regime" in the context of this section 7.1 we understand a regulatory framework or rules related to non-public placement of units in a fund structure directed towards a limited number of investors or a certain type of investor e.g. institutional or Professional Investors. In this context, we understand that this section is intended to describe the rules which apply in Norway where the OFI wishes to market an AIF where the AIFMD Marketing Passport is not available and hence which must either be marketed pursuant to Article 36 or 42 of the AIFMD as such Articles have been implemented into Norwegian law. Please also refer to our answers to section 9 in respect of AIFs which fall within the scope of the Prospectus Regulation. It is our understanding that active marketing/selling by an OFI of interests in an AIF (whether the Fund will be subjected to the SFA or the AIFMA) in Norway can only take place based on requirements of relevant notifications and/or marketing approvals from the NFSA having been complied with. Further licence requirements are applicable in respect of the entity doing the marketing/selling e.g. distributor. <u>Marketing via Article 36 AIFMD</u> Section 6-4 of the AIFMA implements Article 36 AIFMD and applies in respect of an EEA AIFM marketing a non-EEA AIF. Marketing is only permitted upon the NFSA granting an approval in respect of the marketing of the non-EEA AIF. Such marketing licence may be granted by the NFSA, provided that:

	• The EEA AIFM, with the exception of the rules in chapter 5 of the AIFMA relating to depositary, must fulfil all the requirements laid down in the AIFMA and appurtenant rules in the AIFMR. • The EEA AIFM has proved that a company other than the EEA AIFM itself provides the depositary functions described in section 5-3 second through fourth paragraph of the AIFMA and appurtenant rules in the AIFMR (implementing article 21(7) through (10) of the AIFMD). • The EEA AIFM makes the arrangements necessary in Norway to ensure payments to investors, redemption of units and provision of the information which the AIFM is required to provide pursuant to the home state legal requirements. • Satisfactory cooperation is established between the AIF's home state regulator and the NFSA with respect to supervision. • That the AIF's home state is not listed on FATF's list of non-cooperative countries. The NFSA is granted the opportunity to impose additional conditions for granting marketing permission pursuant to sections 6-4 in order to ensure that Norwegian investors are protected, including conditions such as reporting requirements towards Norwegian authorities and investors as well as how sales shall take place in Norway. To date, no guidance with respect to which conditions may be relevant or imposed has been published by the NFSA. According to telephone conversations with the NFSA, no such guidance will be given, and any possible special conditions will be passed in relation to each specific application for marketing on a case-by-case basis. We are, however, aware that the NFSA's marketing authorisations customarily subject applicants to certain conditions which we, based on our experience, believe are fairly non-intrusive and typically are repeat specification of certain provisions of the law or certain notification requirements to the NFSA such as: • The NFSA shall be informed of any material changes to the information given in the application, • The NFSA shall be notified immediately if the conditions under which the authorisation was granted are no longer fulfilled, or if the marketing of the Fund in Norway shall cease, • The NFSA shall be informed of any changes to contact information disclosed,
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	• The authorisation presupposes that the AIFM will give information pursuant to the AIFM Act section 4-2 to investors before they invest (section 4-2 of the AIFMA implements art. 23 of the AIFMD), • The AIFM shall ensure that the AIF will only be marketed to Professional Investors as defined in the AIFMA section 1-2 (k), that payments can be made to investors, that investors can redeem their shares and that investors will be kept informed in accordance with the rules applicable in the country where the Fund is established, • The authorisation may be withdrawn should a breach of the conditions set out in this authorisation occur, and/or if the requirements set forth in section 6-4 of the AIFM Act (i.e. the section setting out the requirements for obtaining a marketing authorisation) and appurtenant regulations are no longer met. Whether subsequent changes to previously notified funds documentation relating to AIFs marketed to Professional Investors in Norway will need to be notified to the NFSA will as far as we understand be regulated by the home state regulations of the AIFM and be communicated on a regulator-to-regulator level. <u>Marketing via Article 42 AIFMD</u> Section 6-5 of the AIFMA implemented Article 42 AIFMD and applies in respect of a non-EEA AIFM marketing an EEA AIF or Non-EEA AIF. Marketing is only permitted upon the NFSA granting an approval in respect of the marketing of the AIF. Such marketing licence may be granted by the NFSA, provided that the following conditions are fulfilled, cf. section 6-5 of the AIFMA: • the AIF and the Non-EEA AIFM must be subject to satisfactory home state supervision and comply with their home state legal requirements • the Non-EEA AIFM must comply with disclosure duties pursuant to chapter 4 of the AIFMA (including pre-investment disclosures) • satisfactory cooperation is in place between the regulator of the AIF, the Non-EEA AIFM and the NFSA
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	• the Non-EEA AIFM makes arrangements necessary in Norway to make payments to the investors, redeem units and provide information which the AIFM is required to provide according to its home state regulations • the home state of the AIF is not FATF blacklisted The NFSA is granted the opportunity to impose conditions for granting marketing permission in order to ensure that Norwegian investors are protected, including conditions such as reporting requirements towards Norwegian authorities and investors as well as how sales shall take place in Norway. To date, no guidance with respect to which conditions may be relevant or imposed has been passed by the NFSA or the NMF. According to telephone conversations with the NFSA, no such guidance will be given, and any possible special conditions will be passed in relation to each specific application for marketing on a case by case basis. We are, however, aware that the NFSA's marketing authorisations customarily subject applicants to certain conditions which we, based on our experience, believe are fairly non-intrusive and typically are repeat specification of certain provisions of the law or certain notification requirements to the NFSA such as: • The NFSA shall be informed of any material changes to the information given in the application, • The NFSA shall be notified immediately if the conditions under which the authorisation was granted are no longer fulfilled, or if the marketing of the Fund in Norway shall cease, • The NFSA shall be informed of any changes to contact information disclosed, • The authorisation presupposes that the AIFM will give information pursuant to the AIFM Act section 4-2 to investors before they invest (section 4-2 of the AIFMA implements art. 23 of the AIFMD), • The AIFM shall ensure that the AIF will only be marketed to Professional Investors as defined in the AIFMA section 1-2 (k), that payments can be made to investors, that investors can redeem their shares and that investors will be kept informed in accordance with the rules applicable in the country where the Fund is established, • The authorisation may be withdrawn should a breach of the conditions set out in this authorisation occur, and/or if the requirements set forth in section 6-5 of the AIFM Act (i.e. the section setting
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	out the requirements for obtaining a marketing authorisation) and appurtenant regulations are no longer met. The AIFMA does not contain provisions requiring Non-EEA AIFMs which have received NFSA approval to market AIF to Professional Investors in Norway to notify the NFSA of changes to the Fund documents previously provided. The NFSA does, however typically make marketing approvals conditional upon the Non-EEA AIFM informing the NFSA of any material changes to the information given in the application materials.
(i) the impact (if any) of the marketing/sale being undertaken in respect of an Open-Ended or a Closed-Ended AIF. Where the rules of the private placement regime distinguish between Open-Ended or Closed-Ended AIF, please outline how the rules of your jurisdiction define an Open-Ended or a Closed-Ended AIF.	There is no impact on the analysis set out in relation to Article 36 or Article 42 depending on whether the AIF is Open-Ended or Closed-Ended.
(ii) whether there is any impact if the AIF is regulated in a specific country other than your jurisdiction e.g. 1940 Act Fund. If applicable, please cross-refer your answer to section 6.3.	Requirements apply in respect of the regulatory status of the OFI marketing the Fund. See section 7.1(a) above on the requirements of satisfactory supervisory cooperation arrangements, satisfactory home state supervision and the home state not being on the FATF's list of non-cooperative countries.
(iii) available exemptions which permit marketing/sale of AIFs to investors (e.g. based on type of investor, minimum investment amount, small number of investors, existing customer, tolerated practice, etc). If an exemption is available, please set out the criteria which must be satisfied in order to utilise it. Please include a discussion of any exemptions available to individual investors on the basis that they are high net worth/sophisticated . Please	No exemptions apply from the requirements deriving from Article 36 and 42 AIFMD other than that sales based on Norwegian investors' first approach to a Fund based outside the Norwegian jurisdiction is allowed without the Fund carrying a marketing licence, nor the distributor being MiFID II licensed. This presupposes that no prior illegal marketing has been carried out. See section 5(a).

comment on both formal “ black-letter law ” exemptions and accepted practice .	
(iv) the relevant criteria for determining whether an investor is in your jurisdiction for the purposes of determining how the private placement regime applies (e.g. the investor is incorporated, domiciled, has employees in your jurisdiction).	No guidance is currently provided with respect to when investors shall be regarded as "being in Norway". Investors should in our view be regarded as "being in Norway" if they are present within Norwegian territory and jurisdiction (including when present in Norway on a very temporary basis).
(v) any sensitivities depending on whether the investor is a potential or an existing client. If applicable, please cross-refer to your answers to section 9 in respect of those AIFs which fall within the scope of the Prospectus Regulation .	The analysis is not sensitive to whether the client is an existing or potential client.
(b) Are there registration/notification/approval/licensing requirements which apply in respect of an AIF before it can be marketed/sold to investors in your jurisdiction? Please outline what activity will trigger such requirements (cross-referring, if necessary, to section 4.4 which specifically covers the interpretation of the definition of the “AIFMD Marketing” in your jurisdiction) and the practical steps required to fulfil any such requirements (including links to relevant forms/information on the relevant regulator’s website).	Yes. As mentioned under section 7.1(a) above, where an AIFMD Marketing Passport is not available, a marketing permission in respect of the AIF must be obtained from the NFSA before the AIF may be marketed in Norway. An application form (including necessary documentation) must be submitted with the NFSA. The NFSA has developed application forms for use in connection with applications under sections 6-4 and 6-5 of the AIFMA (Article 36 and 42 AIFMD respectively). These forms are made available at the following website: https://www.finanstilsynet.no/konsesjon/aif-forvalter/markedsforing-av-alternative-investeringsfond-aif/ For a description of which activity will trigger such requirements, reference is made to section 4.4 which specifically covers the interpretation of the definition of the “AIFMD Marketing”.
(i) Please outline any applicable time periods (e.g. the amount of time between the submission of an	It is difficult to give guidance with respect to timescales for the NFSA's handling process as this will depend largely on the workload of the NFSA as well as to whether the content of the application fulfils all the requirements laid down in section 6-4 (Non-EEA AIFs managed by EEA AIFMs) or section 6-5 (Non-

	application and the issuance of an approval).	EEA AIFMs) of the AIFMA, as applicable. The handling time of such applications is currently between five to eight weeks from the date of submission.
(ii)	Are any fees payable, whether related to the: (A) initial notification/registration; or (B) on an ongoing basis?	From 1 January 2025, the fee for an incoming A36 application is NOK 8,000. The fee for an incoming A42 application is NOK 15,000. In addition to the application fee, an on-going annual fee will also be payable. We note that all non-Norwegian managers of AIFs listed in the NFSA registry may be billed an annual fee of up to NOK 10 000. The fee is given as a range of up to NOK 10 000 to cater for how the NFSA divides its regulatory fees across various regulated entities. The fee will be sent to the registered address connected to the manager's legal entity identifier (LEI). The bill was due to be issued in April 2025, and applies to all foreign managers listed in the NFSA registry by 31 December 2024. We understand that marketed funds will be deregistered if the bill is not paid. The annual fee for 2025 is NOK 7,000. We note that managers listed in the NFSA registry should ensure that the registry is up to date in order to avoid an unnecessary burdensome dialogue when the bill is issued. In addition, managers should ensure that the LEI registered in the NFSA registry is up to date, and be aware that the bill will be sent to the registered address connected to the LEI.
(iii)	Please provide a link to the local regulator's website (even if in the local language only) where information and/or notification/approval forms are set out for marketing an AIF via the private placement regime.	https://www.finanstilsynet.no/konsesjon/aif-forvalter/markedsforing-av-alternative-investeringsfond-aif/ No such forms available on website.
(iv)	Is there a requirement as to the language the Fund documentation needs to be in when marketing/selling pursuant to the private placement regime and are there any particular requirements that apply in connection to such documents?	No specific language format has to date been required relating to Fund documentation in connection to Professional Investors in the AIFMA. We do, however, expect that English, Norwegian, Swedish and Danish languages, which are accepted for UCITS documentation, also will be acceptable for AIF fund documentation.
(c)	Are there registration/notification/approval/licensing requirements which apply in respect of the OFI marketing/selling an AIF in your jurisdiction?	Yes. If the OFI's marketing/selling of the Fund constitutes the provision of "investment services" and the units of the Fund are comprised by the definition of "financial instruments" pursuant to the STA or partnership interest pursuant to the PA, licensing requirements will apply unless any exceptions are available or the "investor's first approach" principle is applicable.

Please outline the practical steps required to fulfil any such requirements in particular:	Hence, unless either the Third Country Firm Regime or another an exception is available, in order to conduct active marketing/selling as described in the paragraph above, the OFI either needs to be an EEA Passporting Entity or apply for a Norwegian MiFID II licence to perform these MiFID II services. However, where a non-EEA AIFM has received the Prior Approval of the NFSA to market/sell an AIF in Norway via Article 42 AIFMD, the non-EEA AIFM is permitted to market/sell the relevant AIFs in Norway.
(i) please could you provide a link to relevant forms/information on the relevant regulator's website (even if in the local language only); and	No such forms/information relevant.
(ii) are there any possible exemptions from such requirements?	Yes. The Third Country Firm Regime and see also section 6.4(d) for further details on other limited exceptions.
(d) (i) Is it: (A) necessary; or (B) permitted to use a local intermediary in order to market/sell interests in an AIF to an investor in your jurisdiction and, if so, on what basis? Please consider the position in relation to:	(A) No. Provided that the Fund is granted a marketing licence either pursuant to the SFA or the AIFMA and the OFI has the necessary permissions to market/sell the Fund into Norway, it is assumed that the OFI may carry out the marketing/selling on a cross-border basis without the use of a Norwegian intermediary. (B) It is permitted to use a local intermediary, however an OFI cannot avoid having to comply with the licensing and notification requirements of the relevant legislation by using a local intermediary. Note, however, that a Non-EEA OFI which is granted permission by the NFSA to carry out a UCITS fund management activity in Norway on a cross-border basis pursuant to section 3-4 of the SFA must have a representative in Norway that is granted sufficient powers to safeguard the interests of the Norwegian investors.
(A) a licensed third party intermediary;	See our general answer in section 7.1(d).
(B) an unlicensed local third party intermediary; or	See our general answer in section 7.1(d).
(C) a branch, representative office or other form of regulated place of business of the OFI in your jurisdiction.	See our general answer in section 7.1(d). Please note that there is a representative office regime in Norway but that it is unlikely to be of much use in the context of the scenarios explored in this section. An OFI is allowed to establish a representative office in Norway (FIA section 5-9), subject to a registration requirement. The term 'representative office' is defined in the FIA section 1-5 (7) as a " <i>marketing office in Norway which is established by a foreign financial undertaking, and which is not a branch</i> ". The NFSA has in its administrative practice assumed

	that a representative office's main purpose is to represent the OFI and the OFI's services, and that they do not have the opportunity to provide regulated services or carry out "active acquisition" of new customers. The NFSA have not given any further guidance on what types of marketing and to what level of contact with prospective customer could constitute 'active acquisition of new customers'. The distinction between "marketing and "active acquisitions of new customers" is not clear and must be assessed on a case-by-case basis. A degree of caution is advisable.
(ii) Where the key entity marketing/selling the Fund in your jurisdiction is in compliance with local licensing requirements, is it permitted for the sub-advisor/manager of the Fund to participate in the marketing activities (e.g. via Fly-In Meeting, telephone call, email) without itself being licensed in your jurisdiction? For example, can the sub-advisor/manager participate in the marketing/selling activities where the locally licensed entity acts as its chaperone?	Please note that there is no firm guidance from Norwegian authorities with respect to the marketing activities contemplated in this question. However, it is our best assessment that the participation of the sub-advisor/manager's employees in the marketing of the Fund in Norway is permissible. This conclusion assumes that the sub-advisor/manager's employees only participate in marketing activities that are supervised by the compliant key entity marketing/selling the Fund in Norway, that the marketing relates to the principal's services (meaning that the sub-advisor/manager's employees participate in the marketing in their capacity as employees of the sub-advisor/manager, which carries out delegated investment management tasks on behalf of the fund manager (and presumably to answer investment strategy queries or similar from investors)), and that the sub-advisor/manager's own services are neither marketed nor otherwise offered to Norwegian clients.
Non-Passported UCITS Fund	
(e) Please confirm, whether your response to (a) above would apply in respect of the active marketing/selling by an OFI of interests in a Non-Passported UCITS Fund to investors in your jurisdiction. If the position would differ please specifically address the legal basis of permitted active marketing/selling of Non-Passported UCITS Funds via a private placement regime in your jurisdiction, addressing the same issues set out in (a) above.	Our response to (a) above would not apply in respect of the active marketing/selling by an OFI of interests in a Non-Passported UCITS Fund, as such funds cannot legally be actively marketed or sold in Norway.
(f) Are there registration/notification/approval/licensing requirements which apply in respect of a Non-Passported UCITS Fund before it can be	Not applicable. Please see our answer to (a) above. Non-Passported UCITS may not be actively sold or marketed in Norway. However, subscriptions based on the investor's first approach may be permissible.

marketed/sold via the private placement regime to investors in your jurisdiction? In this section we are interested in steps required in respect of a Non-Passported UCITS Fund marketed/sold via a private placement regime only. Please do not refer to the notification process applicable to a UCITS Fund that is a Passported UCITS Fund, dealt with in section 6.1 of this Memorandum. Please outline what activity will trigger such requirements and the practical steps required to fulfil any such requirements (including links to relevant forms/information on the relevant regulator's website).	Please see section 5 for further details regarding the permissibility of reverse enquiry based on the investor's first approach.
(i) Please outline any applicable time periods (e.g. the amount of time between the submission of any application and the issuance of an approval).	Not applicable. Please see (f) above.
(ii) Are any fees payable, whether related to: (A) the initial notification/registration; or (B) on an ongoing basis? Please refer to section 7.1(b) above if applicable.	Not applicable. Please see (f) above.
(iii) Please provide link to the local regulator's website (even if in local language only) where information and/or notification/approval forms are set out for marketing Non-Passported	Not applicable. Please see (f) above.

UCITS Fund via the private placement regime.	
(g) Are there any registration/notification/approval/licensing requirements which apply in respect of an OFI marketing/selling a Non-Passported UCITS Fund in your jurisdiction? Please outline the practical steps required to fulfil any such requirements (including links to relevant forms/information on the relevant regulator's website) plus any possible exemptions from such requirements. Please refer to section 7.1(c) above if applicable.	Not applicable. Please see (f) above.
(h) Is it: (A) necessary; or (B) permitted to use a local intermediary in order to market/sell interests in a Non-Passported UCITS Fund to an investor in your jurisdiction and, if so, on what basis? Please consider the position in relation to:	Not applicable.
(i) a licensed third party intermediary;	Not applicable.
(ii) an unlicensed local third party intermediary; or	Not applicable.
(iii) a branch, representative officer or other form of regulated place of business of the OFI in your jurisdiction.	Not applicable.
Please refer to section 7.1(d) if applicable.	
General	
(i) Are there any other requirements (including any ongoing requirements) in order to comply with the rules/guidance applicable to the private placement regime in your jurisdiction for Funds	See our answer to section 7.1 above.

(whether AIFs or Non-Passported UCITS Funds) not dealt with elsewhere in this Part B Memorandum? For example are there any particular requirements that apply to a special category of investor in your jurisdiction which an OFI should bear in mind before marketing to such investors (i.e. based upon an investor being an insurance company, a sovereign wealth fund, an endowment, a foundation or a pension fund). Please do not refer to requirements applicable to Retail Investors which are dealt with in section 6 of this Memorandum.	
(j) Would your answer to question 7.1 differ if interests in the AIF or Non-Passported UCITS Fund being marketed/sold constituted the re-sale of existing interests (i.e. a secondary offering) rather than the offering/placement of a new issue?	No.
(k) Could an OFI be appointed as a tied agent of an EEA regulated entity in order to market/sell an AIF or Non-Passported UCITS Fund to investors in your jurisdiction? If so, (i) must the EEA regulated entity be incorporated in your jurisdiction or can it be passported into your jurisdiction; (ii) must the tied agent be incorporated in the EEA; and (iii) do any licensing requirements apply to the tied agent? If applicable, please cross-refer your answer to section 4.2(g) above.	Yes, an OFI could be appointed as a tied agent of an EEA regulated entity in order to market/sell an AIF (not Non-Passported UCITS) under the private placement regimes of AIFMD art. 36 or 42 to professional investors in Norway. The EEA investment firm can be passported into Norway. The tied agent must be incorporated in the EEA, but no licensing requirements apply to the tied agent as such (in addition to the appointment as a tied agent by the investment firm and its registration in the relevant register).

7.2 Sensitivities based on Structure and/or Investment Strategy (Funds)		
What we are seeking to draw out in this section is whether there are any particular requirements or restrictions that only apply to certain sorts of Fund (whether AIFs or UCITS Funds) when they are marketed or sold in your jurisdiction. You may have already dealt with these issues elsewhere in the Memorandum in which case please include a cross-reference to the applicable response. There is no need to repeat sensitivities already dealt with in Appendix 3 of the <i>European Framework Document</i>.		
(a) Are there particular requirements or restrictions which apply where an OFI wishes to market/sell a Fund (whether an AIF or a Non-Passported UCITS Fund) in your jurisdiction where such Fund is structured as: Please indicate your response by answering Yes/No for each type of Fund structure.		
OPEN-ENDED FUND (AIFs or Non-Passported UCITS Fund)		
	Yes/No	If the answer is “Yes”, please include a brief description and/or cross-reference to discussion of the applicable requirement or restriction.
corporate (unlisted)	No	
corporate (listed on an exchange including an ETF)	Yes	We note that the NFSA stated in a letter to the Oslo Stock Exchange that SPACs could be considered to be AIFs, and expressed concern that it would be difficult to envisage that suitability testing could be practiced if the AIF is listed.
limited partnership	No	
contractual	No	
trust	No	
sub-fund of umbrella	No	
master/feeder	No	
CLOSED-ENDED FUND (AIFs only)		
	Yes/No	If the answer is “Yes”, please include a brief description and/or cross-reference to discussion of the applicable requirement or restriction.
corporate (unlisted)	No	
corporate (listed on an exchange including an ETF)	Yes	We note that the NFSA stated in a letter to the Oslo Stock Exchange that SPACs could be considered to be AIFs, and expressed concern that it would be difficult to envisage that suitability testing could be practiced if the AIF is listed.
limited partnership	No	
contractual	No	
trust	No	
sub-fund of umbrella	No	
master/feeder	No	

Fund whose interests/units/shares are tokenised	No	The NFSA has not yet issued any guidance and there are no specific restrictions, but several issues may arise (depending on structure), especially with regards to ownership rights, taking of security, bankruptcy, taxation etc.
other	No	Slightly different marketing restrictions apply to open-ended AIFs structured as securities funds governed by the SFA and closed ended AIFs governed by the AIFMA when it comes to conditions for obtaining marketing approval to non-Professional Investors in Norway, cf. answer under section 6.2(e).

Fund whose interests/units/shares are tokenised	No	The NFSA has not yet issued any guidance and there are no specific restrictions, but several issues may arise (depending on structure), especially with regards to ownership rights, taking of security, bankruptcy, taxation etc.
other	No	Slightly different marketing restrictions apply to open-ended AIFs structured as securities funds governed by the SFA and closed ended AIFs governed by the AIFMA when it comes to conditions for obtaining marketing approval to non-Professional Investors in Norway, cf. answer under section 6.2(e).

- (b) Are there particular additional **requirements or restrictions** which apply where an OFI wishes to market/sell a Fund (whether an AIF or UCITS Fund) in your jurisdiction where such Fund's **investment strategy** is listed below, or involves investments in those types listed below.

Please indicate your response by answering Yes/No for each type of fund investment or strategy. There is no need to repeat sensitivities already dealt with in Appendix 3 of the *European Framework Document*.

OPEN-ENDED FUND (AIFs or Non-Passported UCITS Fund)			CLOSED-ENDED FUND (AIFs only)		
	Yes/No	If the answer is "Yes", please include a brief description and/or cross-reference to discussion of the applicable requirement or restriction.		Yes/No	If the answer is "Yes", please include a brief description and/or cross-reference to discussion of the applicable requirement or restriction.
hedge fund strategy	No		hedge fund strategy	No	
private equity investments	No		private equity investments	No	
real estate investments	No		real estate investments	No	

infrastructure investments	No		infrastructure investments	No	
debt or equity instruments	No		debt or equity instruments	No	
derivative investments	No		derivative investments	No	
fund of funds strategy	No		fund of funds strategy	No	
environmental, social and governance (ESG) strategy	Yes	Consideration should be given to the European Disclosure Regulation and the Taxonomy Regulation – Please see sections 3.9 and 10.4 of the <i>European Framework Document</i> . The Sustainable Finance Act entered force in Norway on 1 January 2023.	Environmental, social and governance (ESG) strategy	Yes	Consideration should be given to the European Disclosure Regulation and the Taxonomy Regulation – Please see sections 3.9 and 10.4 of the <i>European Framework Document</i> . The Sustainable Finance Act entered force in Norway on 1 January 2023
crypto-asset strategy	No	However, consideration should be given to ESMA's Q&A regarding AIFs investing in crypto-assets (Search a question European Securities and Markets Authority (europa.eu)). The NFSA has published a statement where it endorses the EU financial regulators general warnings on the risks of crypto-assets.	crypto-asset strategy	No	However, consideration should be given to ESMA's Q&A regarding AIFs investing in crypto-assets (Search a question European Securities and Markets Authority (europa.eu)). The NFSA has published a statement where it endorses the EU financial regulators general warnings on the risks of crypto-assets.
private credit/non-bank lending strategy	No	However, note that providing "financing activities" in Norway, i.e. to Norwegian borrowers is generally subject to prior authorisation from the NFSA (see Memorandum Part A for further details).	private credit/non-bank lending strategy	No	However, note that providing "financing activities" in Norway, i.e. to Norwegian borrowers is generally subject to prior authorisation from the NFSA (see Memorandum Part A for further details).
Sharia compliant strategy	No		Sharia compliant strategy	No	
other	No		other	No	

7.3 Private Placement Regime (Investment Management & Advisory Services)	
Please refer to section 8 of the <i>European Framework Document</i>. In providing your answers to sections (a) to (f) below, please do not repeat information that is already contained in that section of the <i>European Framework Document</i>. However, please do include information regarding any local requirements which are different or supplemental to those requirements. Please note that the provision of the Investment Management & Advisory Services of Investment Advice and Arranging are separately dealt with in sections 8.8 and 8.9 of this Memorandum. It is therefore not necessary to repeat this information here. (a) Is it possible for an OFI to actively <u>market/provide</u> Investment Management & Advisory Services to investors in your jurisdiction and, if so, on what basis? In preparing your answers please <u>ensure that your analysis covers the following</u> (or if these matters are not relevant to your jurisdiction, please explicitly state that in your response):	As explained under section 7.1 above, the term "<i>private placement</i>" or the concept of "<i>private placement regime</i>" does not exist under Norwegian law. However, by "<i>private placement regime</i>" in the context of this section 7.3 we understand a regulatory framework related to non-public offering to actively market or provide Investment Management and Advisory Services towards a limited number of investors or to a specific type of investors (e.g. institutional or Professional Investors), and which would be permitted without requiring any prior licensing in that country. With respect to marketing, note that marketing of "<i>financial instruments</i>" or "<i>investment services</i>" relating to "<i>financial instruments</i>" (and partnership interests) in principle is not deemed to constitute the provision of an "<i>investment service</i>" pursuant to the STA as such and is not subject to any authorisation from the NFSA. Hence, marketing of Investment Management & Advisory Services as such does not require any prior authorisation from the NFSA. For further details, see our answer to section 6.4(b) above. However, the NFSA has in publicly available precedents expressed the view that if marketing of "<i>financial instruments</i>" or "<i>investment services</i>" relating to "<i>financial instruments</i>" forms an <i>integrated</i> part of the provision of an investment service to be carried out, the entity will most likely be regarded as carrying out an investment service subject to licensing requirements in Norway. For more discussion on this point, please refer to section 6.4(b) above. Hence, with respect to the provision of Investment Management & Advisory Services in relation to "<i>financial instruments</i>", generally speaking, no private placement regime exists under Norwegian law. The OFI will either need to be an EEA Passporting Entity or apply for a Norwegian MiFID II licence. However, please also see discussion in section 4.2(e) above regarding the possibility in the future that an OFI based in a Third Country may be able to become a Third Country Passporting Entity and thereby conduct the relevant activity otherwise caught by the Licensing Requirement in Norway on the basis of that passport. We refer to the discussion in section 8 of the <i>European Framework Document</i> for analysis of the position regarding the impact of regulatory status of an OFI that is an EEA Passporting Entity, i.e. whether it is a MiFID II Investment Firm, UCITS ManCo, CRD Credit Institution or AIFM.
(i) available exemptions applicable to the marketing or provision of Investment	Third Country Firm Regime: On 11 September 2023, the Norwegian Ministry of Finance announced the introduction of a new permanent regime for third country firms in relation to the

Management & Advisory Services to investors (e.g. based on type of investor, minimum investment amount, small number of investors, existing customer, tolerated practice, etc.). If an exemption is available, please set out the **criteria which must be satisfied** in order to utilise it. Please include discussion of any exemptions available to individual investors on the basis that they are high net worth/sophisticated. Please comment on both formal "**black-letter law**" exemptions and **accepted practice**.

provision of investment services to eligible counterparties in Norway. The new regime applies with immediate effect.

Eligible counterparties include investment firms, credit institutions, insurance companies, collective investment undertakings and their management companies, pensions undertakings and their management companies, other regulated financial institutions and public bodies at the national level (including central banks). In addition, the Norwegian Deposit Guarantee Scheme is also considered an eligible counterparty for the purpose of this provision.

For third-country firms to be able to provide investment services to eligible counterparties in Norway, the following conditions must be met:

- (d) the third-country firm must have a licence in its home country, covering equivalent investment services to the services it provides and the investment activity it operates in Norway, and must be under supervision in its home state;
- (e) there must be a bilateral or multilateral agreement on supervision with the NFSA and the supervisory authorities in the third-country firm's home state; and
- (f) the third-country firm's home state cannot be on any of the FATF (Financial Action Task Force) lists, neither the "FATF black list", nor the "FATF grey list".

Local counsel has confirmed that no notification is required in order for a firm to use this route.

In relation to condition (b), the NFSA has clarified that the IOSCO Multilateral Memorandum of Understanding Concerning Consultation and Cooperation and the Exchange of Information ("IOSCO MMoU") meets this requirement. As of 12 September 2023, the IOSCO MMoU had 129 signatories, and including the UK. You can find an updated list of these signatory jurisdictions in Appendix A here: [Signatories to Appendix A and Appendix B List \(iosco.org\)](#).

Other exemptions/routes: Provision of Investment Management & Advisory Services, related to "limited partnerships" towards "Professional Investors" (as defined by MiFID II), or if the minimum commitment of the investors are of minimum NOK 5,000,000, is exempted from investment firm licensing requirements, see section 6.3 (b) above.

Note, however, that the exemption from licensing requirements applicable to investment services relating to "limited partnerships" does not relieve the AIFM of its obligations relating to product specific marketing restrictions, i.e. if the limited partnership is an AIF then it will be subject to the requirements deriving from the AIFMA.

	Further, sales based on Norwegian investors' first approach to an OFI based outside the Norwegian jurisdiction are allowed without the OFI carrying an investment firm licence. This presupposes that no prior illegal marketing has been carried out. For more detail refer to section 5(a) above. The Regulation on 30 November 2021, whereby UK regulated firms may offer the MiFID II service of Portfolio Management to certain professional clients (Norwegian AIFs, AIFMs, UCITS and UCITS ManCos only) is an additional exemption in this respect. UK regulated firms must notify the UK Financial Conduct Authority, and may provide Portfolio Management (and ancillary activities) under this regulation once the NFSA has received notification from the UK Financial Conduct Authority. The NFSA may lay down conditions for a firm's services and activities and issue corrective orders, including ordering a firm to terminate its services and activities.
(ii) the relevant criteria for determining whether an investor is in your jurisdiction for the purposes of determining how the private placement regime applies (e.g. the investor is incorporated, domiciled, has employees in your jurisdiction).	No guidance is currently provided with respect to when investors shall be regarded as "being in Norway". Investors should in our view be regarded as "being in Norway" if they are present within Norwegian territory and jurisdiction (including when present in Norway on a very temporary basis).
(iii) any sensitivities depending on whether the investor is a potential or an existing client.	The analysis is not sensitive to whether the client is an existing or potential client.
(b) Are there registration/notification/approval/licensing requirements which apply in respect of the OFI marketing/providing Investment Management & Advisory Services to investors in your jurisdiction? Please outline the practical steps required to fulfil any such requirements (including links to relevant forms/information on the relevant regulator's website) plus any possible exemptions from such requirements.	As mentioned above under section 7.3(a) no "private placement regime" exists in Norway for marketing and provision of Investment Management & Advisory Services to Norwegian investors. Hence, complying with the relevant licensing or passporting regime is necessary if an OFI shall carry out such activities in Norway unless an exemption/exclusion applies as described under 7.3(a)(i) above. A. EEA Passporting Entity An EEA Passporting Entity which pursuant to its home state licence may provide Investment Management & Advisory Services may carry out such activity in Norway either on a cross-border basis (freedom to provide services) or by the establishment of a branch (freedom of establishment) subject to complying with the relevant passporting regime of the MiFID II Directive (and the CRD for Credit Institutions permitted to provide MiFID II investment services), AIFMD and UCITS Directive as implemented in Norwegian legislation. B. Non-EEA OFI

	A Non-EEA OFI may not benefit from the passporting regime of the MiFID II Directive (and the CRD), AIFMD and UCITS Directive. However, a Non-EEA OFI may pursuant to the SFA and the STA apply for a specific licence from the NFSA to provide Investment Management & Advisory Services to investors in Norway. The NFSA has not published any standard forms to be used in this respect. Note that Non-EEA OFIs may not be granted any specific licence to provide Investment Management & Advisory Services pursuant to the AIFMA. <i>SFA:</i> Pursuant to section 3-4 of the SFA, a Non-EEA domiciled OFI may be granted a specific permission to provide services such as Investment Management & Advisory Services in Norway provided that they are also licensed to provide fund management activities, however, limited to Investment Advice and Portfolio Management, either on a cross-border basis or by the establishment of a branch in Norway. It is a requirement that the OFI is permitted to carry out such services in its home state and that the OFI is under satisfactory supervision in its home state. A Non-EEA domiciled OFI which is granted a permission to carry out securities funds fund management business in Norway on a cross-border basis shall have a representative in Norway that is granted sufficient powers to safeguard the interests of the Norwegian investors. Before the Non-EEA domiciled OFI may start its activities in Norway, satisfactory cooperation arrangements between the OFIs home state regulator and the NFSA must have been established. In the contexts of the SFA, such cooperation arrangements are only in place between (i) Norway and (ii) the USA and the EEA-countries. Most of the rules in the SFA and appurtenant regulations will apply to the Non-EEA OFI when conducting its business activities in Norway. We are not aware of any Non-EEA OFIs having been granted a permission to provide services on a cross-border basis or by way of a branch establishment in Norway pursuant to section 3-4 of the SFA. <i>STA:</i> Pursuant to section 9-36 of the STA, a Non-EEA OFI may be granted a specific permission to provide MiFID II style investment services such as Investment Management & Advisory Services in Norway either on a cross-border basis or by the establishment of a branch in Norway. It is a requirement that the OFI is permitted to carry out such services in its home state and that the OFI is under satisfactory supervision in its home state. We are not aware of any Non-EEA OFIs having been granted a permission to provide services on a cross-border basis or by way of a branch establishment in Norway pursuant to section 9-36 of the STA.
(c) (i) Is it: (A) necessary; or (B) permitted to use a local intermediary in order to market/provide Investment Management & Advisory Services to an investor in your jurisdiction and, if so, on	Generally, no. An OFI cannot avoid having to comply with the licensing and notification requirements of the relevant legislation by using an intermediary. However, a Non-EEA domiciled OFI that has been granted a permission to provide Investment Advice and Portfolio Management on a cross-border basis pursuant to section 3-4 of the SFA in

what basis? Please consider the position in relation to:	addition to securities funds fund management licence must have a representative in Norway that is granted sufficient powers to safeguard the interests of the Norwegian investors.
(A) a licensed third party intermediary;	See our general answer in 7.3 (c).
(B) an unlicensed local third party intermediary; or	See our general answer in 7.3 (c).
(C) a branch, representative office or other form of regulated place of business of the OFI in your jurisdiction.	See our general answer in 7.3 (c).
(ii) Where the key entity marketing/selling the IMAS in your jurisdiction is in compliance with local licensing requirements, is it permitted for a sub-advisor of an investment strategy e.g. sub-advisor of a Managed Account, to participate in the marketing activities (e.g. via Fly-In Meeting, telephone call, email) without itself being licensed in your jurisdiction? For example, can the sub-advisor/manager participate in the marketing/selling activities where the locally licensed entity acts as its chaperone?	Please note that there is no firm guidance from Norwegian authorities with respect to the marketing activities contemplated in this question. However, it is our best assessment that the participation of the sub-advisor's employees in the marketing of the investment strategy in Norway is permissible. This conclusion assumes that the sub-advisor's employees only participate in marketing activities that are supervised by the compliant key entity marketing/selling the IMAS in Norway, that the marketing relates to the principal advisor's services (meaning that the sub-advisor's employees participate in the marketing in their capacity as employees of the sub-advisor, which carries out delegated investment advisory tasks on behalf of the principal advisor (and presumably to answer investment strategy queries or similar from investors)), and that the sub-advisor/manager's own services are neither marketed nor otherwise offered to Norwegian clients.
(d) Could an OFI be appointed as a tied agent of an EEA regulated entity in order to market/sell IMAS to investors in your jurisdiction? If so, (i) must the EEA regulated entity be incorporated in your jurisdiction or can it be passported into your jurisdiction; (ii) must the tied agent be incorporated in the EEA; and (iii) do any licensing requirements apply to the tied agent?	Yes. See our answer to section 6.4(e).

If applicable, please cross-refer your answer to section 6.4(e) above.	
(e) Is there a requirement as to the language the written marketing materials need to be in when marketing/providing Investment Management & Advisory Services pursuant to the routes described in this section 7.3 and are there any particular requirements that apply in connection to such documents?	There is no statutory requirement in this respect. Generally, in addition to Norwegian, English and any of the Scandinavian languages would be acceptable.
(f) Are there any other requirements (including any ongoing requirements)?	Additional requirements may apply depending on the regulatory regime pursuant to which the OFI is granted a permission to provide services in Norway. A brief non-exhaustive overview is outlined below. <i>SFA</i>: EEA domiciled OFIs permitted to provide Investment Advice and Portfolio Management on a cross-border basis or by the establishment of a branch based on notification pursuant to section 3-3 of the SFA, shall inform the NFSA of any changes in the information provided in the initial notification letter before the change is effective. Non-EEA domiciled OFIs which are granted a permission to provide Investment Advice and Portfolio Management in Norway in addition to securities funds fund management activities on a cross-border basis or through a branch will be subject to basically all the rules in the SFA and appurtenant regulations, including inter alia capital requirements, requirements with respect to good business practice, periodic reporting requirements etc. <i>STA</i>: EEA domiciled OFIs will generally not be subject to governmental overview/supervision in Norway by the NFSA (save for surveillance of market activities), e.g. an EEA OFI will not be subject to any general periodic reporting requirements when providing Investment Management & Advisory Services in Norway on a cross-border basis. However, if the OFI should carry out Investment Management & Advisory Services in Norway through a branch established in Norway pursuant to sections 9-34 (EEA OFI) or 9-36 (Non-EEA OFI) of the STA, the OFI would be subject to local periodic reporting on a quarterly basis and local good business conduct requirements. The NFSA may also for statistical purposes require that branches of foreign investment firms submit other reports on their activity. Branches of EEA OFIs in Norway and Non-EEA OFIs granted a permission to provide services in Norway will in addition be subject to transaction reporting requirements pursuant to MiFIR in

	relation to transactions in financial instruments listed on a regulated market, including derivatives, whether traded on regulated market or not (OTC), with a financial instrument as the underlying asset. All entities providing investment services in Norway, including entities providing investment services on a cross border basis and through a branch, have a duty to report any observed market activities in breach of the market conduct requirements included in chapter 3 of the STA and the Market Abuse Regulation (EU) nr. 596/2014 (which entered into force in Norway on 1 March 2021).	
7.4 Sensitivities based on Investment Strategy (Investment Management & Advisory Services)		
What we are seeking to draw out in this section is whether there are any particular requirements or restrictions that only apply to certain sorts of Investment Strategy when Investment Management & Advisory Services are marketed or sold in your jurisdiction. You may have already dealt with these issues elsewhere in the Memorandum, in which case please include a cross-reference to the applicable response.		
(a) Are there particular additional requirements or restrictions which apply where an OFI wishes to market/provide Investment Management & Advisory Services using the private placement regime in your jurisdiction where the investment strategy is listed below, or involves investments in those types listed below. Please indicate your response by answering Yes/No for each type of investment or strategy.		
INVESTMENT MANAGEMENT & ADVISORY SERVICES		
	Yes/No	If the answer is “Yes”, please include a brief description and/or cross-reference to discussion of the applicable requirement or restriction.
hedge fund strategy	No	
private equity investments	No	
real estate investments	No	
infrastructure investments	No	
debt or equity instruments	No	
derivative investments	No	
fund of funds strategy	No	

environmental, social and governance (ESG) strategy	Yes	Consideration should be given to the European Disclosure Regulation and the Taxonomy Regulation – see sections 3.9 and 10.4 of the <i>European Framework Document</i> .
private credit/non-bank lending strategy	No	
Sharia compliant strategy	No	
other	No	

7.5 Investment Management & Advisory Services in respect of Single Investor Vehicles, Segregated Managed Accounts and Family Office Undertaking

Please refer to section 6.1 of the *European Framework Document*.

This question focuses on investment structures/investment vehicles which fall outside the definition of Fund (i.e. structures which fall outside the definition of AIF as set out in the AIFMD and which are not UCITS Funds).

(a) Please confirm whether the marketing or provision of the following investment structures/investment vehicles will be caught by the rules applicable to the marketing/provision of Investment Management & Advisory Services in your jurisdiction OR whether other domestic fund or marketing/offering restrictions will apply:

- (i) a vehicle, which makes investments into financial instruments or assets and which is prevented by national law, the rules or instruments of incorporation, or any other provision or arrangement of binding legal effect, from raising capital from more than one investor (a **Single Investor Vehicle**).
- (ii) a Segregated Managed Account.
- (iii) a family office undertaking, which makes investments into financial instruments or assets and where capital is invested in the undertaking

We understand that we in this section 7.5 shall assume that the investment vehicle will not be defined as an AIF or a UCITS. Based on this assumption and the description of Single Investor Vehicle and Family Office Undertaking, it is our opinion that marketing of units in such vehicles will not be comprised by the obligation to obtain an AIF product specific marketing permission pursuant to the SFA or the AIFMA.

Further, the provision of investment services such as Investment Management & Advisory Services related to "*limited partnerships*" towards "*Professional Investors*" (as defined by MiFID II), or if the minimum commitment of the investors are of minimum NOK 5,000,000, is exempted from investment firm licensing requirements. Hence, if the Single Investor Vehicle and the Family Office Undertaking satisfy these requirements, no licensing requirements apply. However, if the terms of these exemptions do not apply, then the licensing requirements set out in section 7.3(a) in relation to IMAS above will apply.

If the assets deposited on the segregated managed account may be invested in financial instruments, the investment firm licensing requirements set forth in the STA will generally apply. See section 6.3(b) for further details.

Hence, depending on the circumstances a licence may be required to provide the Investment Management & Advisory Services. However, no special/additional rules will apply purely based on the fact that the Investment Management & Advisory Services are marketed/provided in respect of a Single Investor Vehicle, a segregated managed account or a Family Office Undertaking.

by members of a Pre-Existing Group⁵, for the investment of whose private wealth the undertaking has been exclusively established (Family Office Undertaking). If other restrictions or rules are triggered, please outline (briefly) the position under local law and outline the key exemptions (if any).	
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⁵ A group of family members, irrespective of the type of legal structure that may be put in place by them to invest in an undertaking and provided that the sole ultimate beneficiaries of such legal structure are family members, where the existence of the group pre-dates the establishment of the undertaking. This shall not prevent family members joining the group after the undertaking has been established. For the purpose of this definition, “family members” means the spouse of an individual, the person who is living with an individual in a committed intimate relationship, in a joint household and on a stable and continuous basis, the relatives in direct line, the siblings, uncles, aunts, first cousins and the dependants of an individual.

8. MARKETING ACTIVITIES

Questions	Answers
The purpose of sections 5, 6 and 7 of Part B of this Memorandum is to identify to whom Funds (whether AIFs, Passported UCITS Funds or Non-Passported UCITS Funds) or Investment Management & Advisory Services can be marketed or sold in your jurisdiction. This section 8 addresses particular requirements which may apply depending on how such products or services are marketed or sold. Please refer to section 10 of the <i>European Framework Document</i>. Please note that in this section we do require answers to cover the position applicable to AIFs marketed via the AIFMD Marketing Passport, Passported UCITS Funds, Funds marketed pursuant to any private placement regime and Investment Management & Advisory Services. This section 8 also includes some questions on specific scenarios that may be relevant to an OFI in relation to its cross-border activities.	
8.1 Written Materials	
(a) Can marketing/selling of a Fund or Investment Management & Advisory Services to investors in your jurisdiction be conducted through the distribution of written marketing materials (whether by email or by physical delivery of documents)?	Funds (including UCITS Funds) and IMAS A. General remarks. Generally speaking marketing of a "Fund", either a UCITS or an AIF (covering both AIFs marketed via the AIFMD Marketing Passport and Funds marketed pursuant to any private placement regime), may not be carried out unless a prior marketing licence has been obtained (or notification procedures have been complied with) pursuant to the SFA or the AIFMA. As mentioned above, inter alia under section 7.3(a), marketing of "<i>investment services</i>"/Investment Management & Advisory Services is not regarded as the provision of an investment service if the marketing does not constitute an integrated part of the actual provision (i.e. selling) of the Investment Management & Advisory Services. Note, however, that prior marketing may have the consequence that the "investor's first approach principle" will not be applicable. For further details see our answer in section 5 above. We will in the following assume that the marketing of Investment Management & Advisory Services constitute an integrated part of the actual provision (i.e. selling) of the Investment Management & Advisory Services. Note that Norwegian securities regulations do not distinguish between the types of medium used for the marketing of a specific Fund or Investment Management & Advisory Services when evaluating whether marketing may be carried out and under which restrictions and/or licensing requirements.

	Note however that the MA prohibits marketing by email without the customer's consent. Such consent is not required in existing customer relationships where the seller has received the customer's email address in connection with a sale and the marketing is restricted to the seller's own goods, services or other performance corresponding to the one which the customer relationship is based upon. B. Marketing/selling by distribution of written materials: Marketing may be provided: i. in relation to a Fund (either a UCITS or an AIF (covering both AIFs marketed via the AIFMD Marketing Passport and Funds marketed pursuant to any private placement regime)), if the OFI is an EEA Passporting Entity and the relevant notifications/registration procedures under the SFA or AIFMA are complied with, or with respect to Non-EEA OFIs, if the OFI/the Fund has obtained a specific marketing licence pursuant to the SFA or the AIFMA. Note that Non-Passported UCITS Funds cannot be actively marketed or sold to investors in Norway. ii. in relation to Investment Management & Advisory Services, if the OFI is an EEA Passporting Entity and has complied with the relevant notifications procedures under the SFA, STA or AIFMA, or with respect to Non-EEA OFIs, if the OFI has obtained a specific licence to provide Investment Management & Advisory Services pursuant to the SFA or the STA, or where one of the exemptions/exclusions referred to in section 7.3(a)(i) applies. In section 4.2(e) we referred to the possibility in the future that an OFI based in a Third Country may be able to become a Third Country Passporting Entity and thereby conduct the relevant activity otherwise caught by the Licensing Requirement in Norway on the basis of that passport. However, we have not built this scenario into our answers in this section 8.1 as such passport is not yet available as no equivalence determinations have yet been made.
Please could you confirm whether your above response would apply to the following types of written marketing materials and, if applicable, note any particular considerations that would apply to that particular type of document:	

(i) offering memorandum (may also be referred to as the “private placement memorandum” or “information memorandum”);	UCITS: Yes Non-Passported UCITS: Non-Passported UCITS Funds cannot be actively marketed or sold to investors in Norway. AIF: Yes IMAS: Yes
(ii) marketing presentation (may also be referred to as the “pitch book” or “marketing deck”). Such presentations may include: • Investment strategy/philosophy/process • Biographies of key investment team members • Track record • Case studies of specific investments • Operational infrastructure/list of service providers terms	UCITS: Yes Non-Passported UCITS: Non-Passported UCITS Funds cannot be actively marketed or sold to investors in Norway. AIF: Yes IMAS: Yes
(iii) tear sheet (may also be referred to as the “fact sheet” or “profile”) Such tear sheets may include: • A brief description of strategy • Summary statistics • Terms • Service providers Please indicate if the analysis differs depending whether or not the tear sheet includes the name of a specific Fund(s) or services being marketed.	UCITS: Yes Non-Passported UCITS: Non-Passported UCITS Funds cannot be actively marketed or sold to investors in Norway. AIF: Yes IMAS: Yes
(b) Is it recommended or mandatory to include certain disclaimers/warnings in the written marketing materials? If so, please specify which type of written marketing materials will require such a disclaimer/warning, e.g. the offering document, presentations, pitch books, emails? Please provide recommended	It is not mandatory to include disclaimers/warnings in the written marketing materials for a Fund marketed to the public in Norway. However, disclaimers in various forms are frequently included by market participants on both marketing materials and prospectuses (and similar documents). See all Sections, except sections B, of each of Appendix 1, Appendix 2 and Appendix 3.

wording in Section A of each of Appendix 1, Appendix 2 and Appendix 3 of this Memorandum, along with an indication of whether such wording is mandatory or recommended. If applicable, please specify whether additional/alternative disclaimer language is required in respect of an AIF which falls within the scope of the Prospectus Regulation.	Where the communication amounts to a “marketing communication” within the scope of ESMA’s Funds Marketing Communications Guidelines, see disclaimer wording in Appendix 4D.
(c) Are there rules regarding the form/content of written marketing materials (including as to how performance data should be portrayed)? Please consider the following as part of your response: (i) Do these rules distinguish between the type of investor that such materials will be presented to? (ii) Do the national rules regarding form/content of communications with clients derive from, and are they broadly in line with, MiFID II or are there additional national requirements? Please also confirm that EEA OFIs which have no licensed office in your jurisdiction (i.e who are providing cross-border services, rather than services from an establishment in your jurisdiction) will not be required to comply with content requirements deriving from MiFID II as implemented in your jurisdiction but rather the equivalent requirements of its home EEA member state.	Funds (including UCITS Funds) and IMAS EEA OFIs and Non-EEA OFIs operating in Norway through a branch establishment pursuant to the STA or the SFA must comply with a range of requirements both with respect to the content of the marketing materials and with respect to good business practice etc. As the MiFID II Directive, UCITS Directive and AIFMD are implemented in Norwegian legislation, we refer to the summary in section 10 of the <i>European Framework Document</i>, which in our opinion gives a correct overview of the relevant legislation which will be applicable to the marketing materials. For Professional Investors the key requirement is that materials are “clear, fair and not misleading”. A range of additional requirements apply in respect of Retail Investors but the implementation in Norway is broadly in line with the requirements under MiFID II. We confirm that EEA OFIs which provide cross-border services into Norway (as opposed to services from an establishment) will not be required to comply with content requirements deriving from MiFID II Directive as implemented in the STA, but rather the equivalent requirements of its home EEA member state. Although not entirely clear, a firm offering services or investment advice to clients in Norway on the basis of the Third Country Firm Regime may on the face of it be subject to the SFDR, as the firm is regarded as either a "financial market participant" or a "financial advisor". However, pursuant to the Norwegian legislation implementing SFDR, the NFSA will only supervise entities for compliance with the SFDR under their general supervisory powers, i.e. entities established in Norway. There are no form or content requirements when using the Third Country Firm Regime, as long as the general requirements set out in section 1.4 of this Memorandum are satisfied. General Norwegian requirements relating to good business conduct and a prohibition against misleading marketing and the use of unfair commercial terms laid down in the MA, which implements Directive 2005/29/EC on Unfair Commercial Practices, will apply to anyone carrying out marketing activities in Norway whether on a cross border basis or through a branch. The MA is primarily an act applicable in relation to and protecting consumers. However, chapter 6 of the MA applies between commercial entities (non-consumers). Chapter 6 inter alia states that it is prohibited

	during the course of business, to perform acts which are in conflict with good business practice among persons/entities, and that it is prohibited in the course of business to use any representation which is likely to influence the demand for or supply of goods, services or other products if the representation must be considered unfair because it does not provide reasonable or sufficient guidance or introduces irrelevant matters. In addition it is necessary to have regard to the requirements in ESMA's Marketing Communication Guidelines for Funds. The NFSA has confirmed that it intends to comply with the ESMA's Marketing Communication Guidelines for Funds. These Marketing Guidelines apply to all marketing communications addressed to investors or potential investors in UCITS and AIFs (including those set up as EuVECAs, EuSEFs, ELTIFs and money market funds). In absence of a definition of what constitutes a "marketing communication" the Marketing Guidelines instead provide non-exhaustive examples of what may and may not qualify. Notably all mediums, including paper printed documents or information made available in electronic format, interviews, advertisements, documents made available on the internet, as well as webpages (including messages broadcast on any social media platform), video presentations, live presentations, radio messages or factsheets are within scope.
(d) Does the regulator of your jurisdiction require the OFI to retain a record of the recipients of distributed marketing materials?	It depends under which scenario the OFI distributes marketing materials. If a non-EEA OFI holds a licence from the NFSA or an EEA-OFI operates in Norway under an EEA Passport through a branch, the OFI must retain a record of the recipients of distributed marketing materials. If, the OFI distributes marketing materials on a reverse enquiry scenario, Norwegian law on retaining records does not apply. Norwegian counsel strongly advise OFIs to file/keep correspondence showing that the initiative to invest in a Fund/IMAS offered by the OFI was made by the investor.
(e) With reference to Art. 7 of the CBDF Regulation, will the competent authority in your jurisdiction require ex-ante/prior notification of marketing communications which UCITS ManCos/AIFMs intend to use directly or indirectly in their dealings with retail investors ? If so, please could you provide a link to the website that the	The NFSA and the Norwegian Ministry of Finance (the "NMF") has assessed the question regarding prior notification of marketing communications that UCITS ManCos/AIFMs intend to use in their marketing towards Retail Investors in the preparatory work for the implementation of the CBDF Directive.

competent authority is required to provide under Article 7(2) setting out the relevant procedure etc.	The competent authorities will at this stage not require prior notification in connection with the implementation of the CBDF Directive, however the NFSA has stated that rules regarding prior notification may be considered at a later stage, if deemed necessary.
(f) Art 4(3) of the CBDF Regulation requires that marketing communications shall specify where, how and in which language investors or potential investors can obtain a summary of investor rights and shall provide a hyperlink to such a summary, which shall include, as appropriate, information on access to collective redress mechanisms at Union and national level in the event of litigation. Has the regulator in your jurisdiction issued any guidance as to where information on access to collective redress mechanisms both in your jurisdiction and at EU level in the event of litigation can be accessed?	No such guidance has yet been published in the Norwegian jurisdiction.
(g) Are there any other considerations that an OFI should bear in mind before disseminating written marketing materials in your jurisdiction?	No.
8.2 Telephone	
(a) Can marketing/selling of a Fund or Investment Management & Advisory Services to investors in your jurisdiction be conducted through marketing by telephone?	Funds (including UCITS) and IMAS The requirements for marketing by telephone do not differ from the requirements described in our answer to section 8.1 above. Hence, please see our answer to section 8.1(a) above.
(b) Do specific additional requirements or restrictions apply in respect of cold calling of such investors?	Funds (including UCITS) and IMAS No, there are no specific restrictions on the content of marketing by way of cold-calling. The requirements for the contents of telephone marketing do not differ from the general requirements for marketing set out at section 8.1(a) above. Telephone marketing is however only permitted between 9 am and 9 pm on weekdays and prohibited on Saturdays, Sundays and other public holidays. The MA allows consumers to reserve themselves against telephone sales and addressed mail by registering in the public Reservation Register, in which event marketing towards such persons by telephone or addressed mail becomes prohibited. Telephone marketers are required to "wash" their contact lists against the Reservation Register prior to marketing by telephone or addressed mail. The prohibition does not apply to marketing by telephone and addressed mail in

	existing customer relationships, where the seller has received the customer's contact details in connection with a sale and the marketing is restricted to the seller's own goods, services or other performance corresponding to the one which the customer relationship is based upon. The customer must in a simple manner, free of charge be able to reserve himself against such type of communication when his name, address and telephone number are collected, as well as later in connection with marketing approaches. Note that the Norwegian Government has issued a green paper proposing to repeal this exemption that allows marketing based on previously received contact details. However note also that offers may be subject to a prospectus requirement as set out below at section 8.2(c) unless an exemption applies.
(c) Is it recommended or required to make certain oral disclaimers/warnings during the course of the telephone call? If so, please describe the requirements that apply. Please also provide recommended wording in Section B of each of Appendix 1, Appendix 2 and Appendix 3 of this Memorandum.	Where the communication amounts to a “marketing communication” within the scope of ESMA’s Funds Marketing Communications Guidelines, see disclaimer wording in Appendix 4D.
(d) Are there any other considerations that an OFI should bear in mind before conducting telephone calls with prospective investors in your jurisdiction? For example, is it mandatory that such telephone calls be recorded?	It depends under which scenario the OFI distributes marketing materials. If an EEA-OFI operates in Norway under an EEA Passport through a branch, the OFI is subject to certain Norwegian operational requirements implementing MiFID II and which is listed in MiFID II article 35 (8), however not the Norwegian organisational requirements implementing MiFID II, i.a. not the duty to record telephone calls with prospective investors which is regulated by the OFI's home Member state law. If a non-EEA OFI holds a licence from the NFSA the OFI is subject to Norwegian organisational requirements and must record telephone calls with prospective investors. If, the OFI conducts telephone calls with prospective investors on a reverse enquiry scenario, Norwegian law on recording of telephone calls does not apply.
8.3 Fly-In Meetings	
(a) Can marketing/selling of a Fund or Investment Management & Advisory Services to investors in your jurisdiction be conducted through a Fly-In Meeting?	Funds (including UCITS) and IMAS The requirements for marketing through a Fly-In Meeting do not differ from the requirements described in our answer to section 8.1 above. Hence, please see our answer to section 8.1(a) above.
(b) Are there any particular considerations that an OFI should bear in mind before conducting Fly-In Meetings with	UCITS: Yes, see general answer in section 8.1(a) above. Non-Passported UCITS: Non-Passported UCITS Funds cannot be actively marketed or sold to

prospective investors? For example, is there a risk that frequent Fly-In Meetings may trigger some local licensing or regulatory requirements?	investors in Norway. AIF: Yes, see general answer in section 8.1(a) above. IMAS: Yes, see general answer in section 8.1(a) above. In theory, it may be argued that if an OFI carries out Fly-In Meetings on a regular basis and inter alia for such purposes rents premises in Norway, or makes other arrangements of a permanent nature in Norway, it may be deemed to have established a permanent presence in Norway. This could trigger a need for an OFI to establish a branch in Norway. However, no guidance exists with respect to the acceptable frequency of Fly-In Meetings and permissible arrangements made in Norway without triggering the need to establish a branch. We recommend that the OFI should consult local counsel if the Fly-In Meetings/the activity in Norway develops into or takes the form of a more permanent presence.
8.4 Fly-Out Meetings	
(a) Do the licensing and regulatory requirements of your jurisdiction continue to apply to any marketing activities in connection with Funds or Investment Management & Advisory Services which take place at a Fly-Out Meeting?	UCITS: No. Norwegian licensing and regulatory requirements will only apply to the extent that the Funds/IMAS are marketed/sold within the Norwegian jurisdiction. Hence, if the Funds or IMAS are marketed/sold outside Norway no licensing requirements and regulatory requirements will apply to the OFI. Non-Passported UCITS: No. Norwegian licensing and regulatory requirements will only apply to the extent that the Funds/IMAS are marketed/sold within the Norwegian jurisdiction. Hence, if the Funds or IMAS are marketed/sold outside Norway no licensing requirements and regulatory requirements will apply to the OFI. AIF: No. Norwegian licensing and regulatory requirements will only apply to the extent that the Funds/IMAS are marketed/sold within the Norwegian jurisdiction. Hence, if the Funds or IMAS are marketed/sold outside Norway no licensing requirements and regulatory requirements will apply to the OFI. IMAS: No. Norwegian licensing and regulatory requirements will only apply to the extent that the Funds/IMAS are marketed/sold within the Norwegian jurisdiction. Hence, if the Funds or IMAS are marketed/sold outside Norway no licensing requirements and regulatory requirements will apply to the OFI.
(b) If the answer to section (a) above is “no”, are there any courses of action which could result in the requirements of your jurisdiction having extra-territorial effect? For example, would it be possible for the OFI to induce the resident to leave your jurisdiction to attend a meeting in an	Yes. If the resident of Norway is induced by the OFI to attend a Fly-Out-Meeting whereby the OFI will market its Funds/IMAS, the OFI could, depending on the specific contents of the materials/invitation, have the consequence of services being regarded as being provided in Norway in a manner which may trigger licensing requirements in Norway. This could have the consequence that Norwegian licensing and regulatory restrictions will be applicable to the OFI.

offshore office of the OFI without triggering the application of the licensing and regulatory restrictions in your jurisdiction?	
8.5 Internet/Social Media	
(a) Please outline the requirements in your jurisdiction which apply to a webpage which is targeted towards investors located in your jurisdiction (e.g. by writing it in the language of your jurisdiction or by sponsoring links generated when internet users in your jurisdiction search for particular terms via a search engine).	Marketing on web pages which are targeted towards investors in Norway may have the consequence of services being regarded as provided in Norway in a manner triggering licensing requirements, especially if the Norwegian language is used. We expect a licence to be required if the webpages are drafted in Norwegian or in another language but addressing Norwegian investors' situation specifically. Whether or not sponsored links generated when internet users in Norway search for particular terms via a search engine, e.g. Google, requires a prior licence is not entirely clear since guidance from the NFSA on this point does not exist. We expect that a licence from the NFSA is required if the search engine has a Norwegian domain (".no") or the search engine site is drafted in Norwegian or in another language but addressing Norwegian users specifically. Where the communication amounts to a “marketing communication” within the scope of ESMA’s Funds Marketing Communications Guidelines, it will also be necessary to comply with those guidelines and to include the necessary disclaimer.
(b) Does your jurisdiction impose requirements/restrictions in respect of webpages which have not been targeted towards investors in your jurisdiction but which are accessible from your jurisdiction?	No. Note, however, that use of the Norwegian language on a webpage is likely to be regarded as targeting customers in Norway. We expect a licence to be required if the webpages are drafted in Norwegian or in another language but addressing Norwegian investors' situation specifically.
(c) If the answer to section (b) is “yes”, what steps could an OFI take to reduce the regulatory risk in your jurisdiction as regarding marketing materials posted on non-targeted webpages? For example, by requiring an investor or potential investor to verify suitability through acceptance of a disclaimer, provide confirmation that he is not located in your jurisdiction, by making the pages password protected or through use of a secure portal to regulate information available to users?	If Norwegian investors are not targeted as such, by specific means such as the Norwegian language etc., we find that this risk of being regarded as marketing Funds or providing investment services in Norway to be more limited. However, the suggestion appears as an appropriate way of minimizing the risk of being accused of targeting the Norwegian market. The wording set out in Appendix 4.B. could be used to reduce the regulatory risk in this scenario.
(d) Please outline any requirements in your jurisdiction which apply to marketing activities which take place via social	No guidelines from the NFSA exist on this point. Marketing activities which take place via social media, forums or photo/video-sharing platforms and which are targeted towards Professional

	media (e.g. blogs, X Corp. (formerly known as Twitter), social networks (Facebook, LinkedIn), forums or photo/video-sharing platforms (e.g. YouTube, Instagram)) and which are targeted towards investors located in your jurisdiction e.g. (i) posts are written in the language of your jurisdiction or have direct relevance to investors in your jurisdiction or (ii) adverts are sponsored to appear on the user pages of investors based in your jurisdiction?	Investors located in Norway may have the consequence of the Funds/IMAS being regarded as offered/provided in Norway in a manner triggering licensing requirements. We expect a licence to be required if the text is drafted in Norwegian or in another language but addressing Norwegian investors' situation specifically. Please note that the NFSA has been issuing warnings to individuals acting as influencers that their activities may amount to regulated activity. OFIs may want to take note of such warnings e.g. https://www.finanstilsynet.no/nyhetsarkiv/nyheter/2022/finanstilsynet-presiserer-at-reglene-for-investeringsanbefalinger-ogsa-gjelder-for-privatpersoner/
(e)	Does your jurisdiction impose requirements/restrictions in respect of social media content which has not been targeted towards investors in your jurisdiction but is nevertheless accessible from your jurisdiction?	No guidelines from the NFSA exist on this point. Based on current precedents we would, however, not expect marketing via social media to trigger Norwegian licensing requirements if not drafted in Norwegian language or targeting the Norwegian market.
(f)	Please set out any practical advice which OFIs should follow in order to reduce the regulatory risk in your jurisdiction regarding marketing activities conducted via social media. For example, is it recommended that all posts contain either the full recommended disclaimer or is it ok to include a link to such disclaimer instead? On X Corp. (formerly known as Twitter), is the use of images a possible solution to the problem of character limitation e.g. by posting a disclaimer as an attachment to a tweet?	No guidance from the NFSA exists on this topic. However, we expect that the use of a disclaimer, either full text, link or attachment to a tweet, use of other language than Norwegian and not addressing the Norwegian investors' situation specifically will reduce the regulatory risk. In order to reduce the risk of regulatory risk for marketing material on a webpage or in respect of social media content, in both cases for which have not been targeted towards Clients in Norway, the wording in Appendix 4.B. can be used.
(g)	Are there any legends, risk factors, disclosures and disclaimers which are required or recommended by local counsel for inclusion in webpages and/or social media which contain marketing materials relating to Funds and/or Investment Management & Advisory Services and which may be accessed by investors located in your jurisdiction?	See the wording in Appendix 4.B. above for a disclaimer to use for non-targeted webpage. See disclaimers in Appendices 1 –3 for a targeted page that refers to either Funds or Investment Management & Advisory Services (as applicable). Where the communication amounts to a “marketing communication” within the scope of ESMA’s Funds Marketing Communications Guidelines, see disclaimer wording in Appendix 4D.
(h)	Please outline (or cross-refer to) any licensing/regulatory requirements in your jurisdiction which apply to virtual events/meetings (e.g. online web/video conferences/channels) involving marketing/selling activities relating to Funds and/or Investment Management & Advisory Services conducted with investors in your	No guidelines from the NFSA exist on this point. Marketing activities which take place via virtual events/meetings (e.g. online web/video conferences/channels) and where such Marketing activities are targeted towards investors located in Norway may have the consequence that Funds/IMAS being regarded as offered/provided in Norway in a manner triggering licensing or approval/notification requirements.

jurisdiction (e.g. virtual roadshows, presentations or promotional events).	Analysis would depend on the content of the virtual event/meeting. If Norwegian investors are not targeted as such, e.g. by specific means such as the Norwegian language, or through Norwegian web pages etc., we find that this risk of being regarded as marketing Funds or providing Investment Management & Advisory Services in Norway to be limited.
(i) Is it recommended or mandatory to include certain disclaimers/warnings in the materials presented/disseminated by means of virtual events/meetings relating to Funds and/or Investment Management & Advisory Services?	It is not mandatory to include disclaimers/warnings in the written marketing materials, e.g. in written presentation used in virtual events/ meetings involving marketing/selling activities relating to Funds and/or Investment Management & Advisory Services. It is however recommended and market practice to use wording as set out in Appendix 1-3 for specific funds or services. In order to reduce the regulatory risk for more general marketing material in presentations targeted towards Clients in Norway, the following wording can be used: <i>This communication is not directed at or intended for private individuals domiciled or resident [in Norway alternatively outside countries X, Y, Z] or businesses and other legal persons incorporated or having its place of business [in Norway alternatively outside countries X, Y, Z].</i> Where the communication amounts to a “marketing communication” within the scope of ESMA’s Funds Marketing Communications Guidelines, see disclaimer wording in Appendix 4D.
8.6 General Marketing	
(a) Please set out or cross-refer to any licensing and regulatory restrictions which may apply to general marketing by an OFI in your jurisdiction as follows: (i) general brand marketing that comprises the use of the OFI’s corporate name, logo, slogan or design scheme; (ii) publishing articles e.g. thought leadership pieces or research papers; and (iii) general marketing materials which refer to awards/customer testimonials. Does the analysis depend on the type of investor that is targeted e.g. Professional Investor, Retail Investor etc. or whether the activity takes place remotely or at a Fly-In Meeting ?	Funds (including UCITS) and IMAS General marketing of the type set out in (i), (ii) and (iii) should not trigger licensing requirements. However note that any general marketing may impair the possibility of subsequently invoking the investor's first approach exemption. See our answer to question 5(a) A above. The analysis does not depend on the type of investor that is targeted e.g. Professional Investor or Retail Investor, or whether the activity takes place remotely or at a Fly-In Meeting.

(b) Please set out or cross-refer to any licensing and regulatory restrictions which may apply to general marketing which involves general awareness-raising of product lines or service lines including discussion of general strategies (but without reference to a specific Fund (whether an AIF or Non-Passported UCITS Fund) or Investment Management & Advisory Service). Does the analysis depend on the type of investor that is targeted e.g. Professional Investor, Retail Investor etc. or whether the activity takes place remotely or at a Fly-In Meeting?	Funds (including UCITS) and IMAS Such general marketing could amount to Fund or IMAS marketing (and therefore subject to licensing and/or passporting requirements). See sections 5(a) A, 8.1(a) and 6.4(b) above. However, since no specific Fund is mentioned we think it is unlikely that the authorisation/notification requirements to market a Fund will be triggered. Such activity would also likely fall outside the scope of CBDF Pre-Marketing. Whether the general marketing triggers the Licensing Requirement will depend on whether it is regarded as an <i>integrated</i> part of any subsequent investment services. Reference is made to our answer to section 5(a) above regarding how general marketing may impair the possibility of subsequently invoking the investor's first approach exemption The analysis does not depend on the type of investor that is targeted e.g. Professional Investor or Retail Investor, or whether the activity takes place remotely or at a Fly-In Meeting.
(c) Please set out or cross-refer to any licensing and regulatory restrictions which may apply to general marketing which involves discussions which refer to particular characteristics of a Fund (whether AIFs or Non-Passported UCITS Funds) or Investment Management & Advisory Service (e.g. investment strategies or ideas) without referring to the name of the relevant Fund or Investment Management & Advisory Service? An example of this type of marketing would include a tear sheet which while it may not include the name of the relevant Fund or Investment Management & Advisory Service, may include a brief description of strategy, terms, summary statistics (e.g. relating to AUM, performance, risk) and/or a list of key service providers. Does the analysis depend on the type of investor that is targeted e.g. Professional Investor, Retail Investor etc. or whether the activity takes place remotely or at a Fly-In Meeting?	Funds (including UCITS) and IMAS Such general marketing could amount to Fund or IMAS Marketing (subject to NFSA licensing and/or EEA passporting requirements). See sections 8.1(a) and 6.4(b) above. Where no specific Fund is mentioned it is less likely that the authorisation/notification requirements to market a Fund will be triggered or the requirements relating to CBDF Pre-Marketing. However the risk is greater than in 8.6(b) above. Where there is a non-EEA AIFM or non-EEA AIF then see section 4.4(c) for a discussion of the feasibility of conducting pre-pre-marketing. The analysis does not depend on the type of investor that is targeted e.g. Professional Investor or Retail Investor, or whether the activity takes place remotely or at a Fly-In Meeting.
(d) Are there any rules regarding the form/content of written marketing materials which contain the type of information	Funds (including UCITS Funds) and IMAS There are no such specific rules.

referred to in 8.6(c) above e.g. tear sheets/snapshots of marketing presentations?	
(e) Are there any licensing or regulatory restrictions which may apply when an employee of an OFI is a speaker at a finance-related event in your jurisdiction?	Funds (including UCITS) and IMAS This would depend on the content of the speaker's presentation. There are no restrictions if the speaker does not promote or market the OFI's products and services.
(f) Are there any restrictions in relation to solely distributing business cards (paper or electronic)? Does the analysis depend on the type of investor that is targeted e.g. Professional Investor, Retail Investor etc. or whether the activity takes place remotely or at a Fly-In Meeting ?	There are no such specific restrictions. However, as the assessment of whether or not an OFI has conducted marketing in Norway in a manner that will require a licence is made on a case-by-case basis based on all relevant facts, distribution of business cards might be seen as one evidence of marketing taking place in Norway, especially when distributed to Retail Investors. The analysis does not depend on whether the activity takes place remotely or at a Fly-In Meeting.
(g) Is it recommended or mandatory to include certain disclaimers/warnings in any general marketing materials presented/disseminated?	It is not mandatory to include disclaimers/warnings in the general marketing materials in Norway. In order to reduce the regulatory risk for general marketing material in presentations targeted towards Clients in Norway, the wording in Appendix 4.A. could be used.
8.7 [Intentionally left blank]	
8.8 Investment Advice	
Please refer to section 8 of the <i>European Framework Document</i> . (a) Is it permitted for an OFI to provide Investment Advice in relation to a Fund or Investment Management & Advisory Services to an investor in your jurisdiction and, if so, on what basis? In preparing your answer, please ensure that your analysis covers the following (or if these matters are not relevant to your jurisdiction, please explicitly state that in your response):	Provision of Investment Advice will trigger a licence requirement under Norwegian law if it is provided in respect of <i>financial instruments</i> (i.e. those instruments specified in Section C of Annex I of MiFID II Directive). See details below and further references to relevant sections in this Survey therein.
(i) the impact (if any) if the provision of Investment Advice is being undertaken by, or on behalf of, an OFI benefiting from an EEA Passport (e.g. a MiFID II Investment Firm or a UCITS ManCo) compared with an OFI that does not.	Investment Advice in relation to a Fund Investment Advice in relation to a Fund constitutes an investment service (as described above) and consequently requires a MiFID II licence. The OFI needs to be either an EEA Passporting Entity, having passported the relevant licences for the provision of Investment Advice into Norway or, if an EEA Passport is not available to the OFI or the OFI is domiciled outside the EEA, will need to

	conduct these activities from a permanent establishment in Norway duly licensed by the NFSA. However, please also see discussion in section 4.2(e) above regarding the possibility in the future that an OFI based in a Third Country may be able to become a Third Country Passporting Entity and thereby conduct the relevant activity otherwise caught by the Licensing Requirement in Norway on the basis of that passport. Investment Advice in relation to Investment Management & Advisory Services Investment Management & Advisory Services are not financial instruments (but rather investment services) and consequently the provision of Investment Advice in relation to Investment Management & Advisory Services would <i>per se</i> not trigger a licence requirement. However, with reference to our response to section 5(c) above, if the Investment Advice in relation to the Investment Management & Advisory Services would contain elements that refer to any financial instruments, the Investment Advice would be deemed to be provided in respect of financial instrument require a licence. Licence requirements etc. An OFI which is otherwise authorised by an EEA member state to provide Investment Advice may passport into Norway and provide Investment Advice on the basis of its home state authorisation. We note that the OFIs would be providing cross-border services from its home jurisdiction into Norway (and would not have a permanent establishment in Norway). In such cases, the home member state rules apply to the OFI’s respective provision of Investment Advice in Norway.	
(ii)	the impact (if any) if the provision of Investment Advice is being undertaken by an AIFM authorised to perform Investment Advice as a non-core service pursuant to Article 6(4) of the AIFMD.	Yes see 8.8(a) above.
(iii)	available exemptions which permit the provision of Investment Advice. If an exemption is available, please set out the criteria which must be satisfied in order to utilise it. Please comment on both formal “black-letter law” exemptions and accepted practice.	The provision of Investment Advice to a Fund and Investment Management & Advisory Services to an investor in Norway are regarded as investment services under the STA, which is dependent on obtaining a prior licence from the NFSA as a MiFID II Investment Firm. A UCITS ManCo and an authorised AIFM, may also pursuant to the SFA and the AIFMA, respectively, obtain a licence to provide Investment Advice and Investment Management & Advisory Services, however only as non-core (ancillary) services. (See section 4.5 in relation to Non-Core Services in relation to AIFM and Section 10 (c) below in relation to UCITS Manco).

	Hence, unless the first approach principle is applicable (which may be the case if the Fund has solicited the Investment Advice or the investor has solicited the Investment Management & Advisory Services) or the Third Country Firm Regime applies, the OFI will need to obtain a specific licence from the NFSA in order to provide Investment Advice to a Fund or Investment Management & Advisory Services to investors in Norway. Note that passporting regimes are available for OFIs benefitting from an EEA Passport in relation to provision of Investment Advice to a Fund and Investment Management & Advisory Services. Possible IMAS Licensing Exceptions as set out at the Executive Summary may apply. Licensing requirements pursuant to Norwegian regulations will apply as a consequence of services subject to licensing requirements being offered "in Norway" (within Norwegian jurisdiction), irrespective of where the investor is incorporated etc. in Norway. Note, also that it is irrelevant whether the investor is a potential or existing client. For further details see our answer to section 6.3(b), 7.3(b) and 8.7(a).
(iv) the relevant criteria for determining whether an investor is in your jurisdiction for the purposes of determining whether the provision of Investment Advice is permitted (e.g. investor is incorporated, domiciled, has employees in your jurisdiction).	No guidance is currently provided with respect to when investors shall be regarded as "being in Norway". Investors should in our view be regarded as "being in Norway" if they are present within Norwegian territory and jurisdiction (including when present in Norway on a very temporary basis).
(v) any sensitivities depending on whether the investor is a potential or an existing client or whether such investor solicited the Investment Advice or not.	The analysis is not sensitive to whether the client is an existing or potential client. If the investor has solicited the Investment Advice or the investor has solicited the Investment Management & Advisory Services, the OFI need not obtain a specific licence from the NFSA in order to provide Investment Advice to a Fund or Investment Management & Advisory Services to investors in Norway on the basis of the first approach principle – see section 5(a).
(b) Does the regulatory regime in your jurisdiction applicable to the marketing/provision of Investment Advice extend to advice in relation to portfolio construction and/or manager selection? (i) If not, please could you briefly outline how the marketing/provision of advice in relation to	Most likely no. Generic advice on portfolio construction and manager selection not relating to a specific financial instrument recommended to a specific client is not considered to be Investment Advice. Investment Advice is restricted to a personal recommendation (recommendation made to a person in his/her capacity as an investor/potential investor/agent for an investor or potential investor) to buy, sell, subscribe for, exchange, redeem, hold or underwrite a particular financial instrument or to exercise or not to exercise any right conferred by a particular financial instrument cf. STA section 2-3 (4).

portfolio construction/manager selection is regulated in your jurisdiction, if at all.	
8.9 Arranging	
Please refer to section 8 of the <i>European Framework Document</i>. (a) Is it permitted for an OFI to provide Arranging services in relation to a Fund Investment Management & Advisory Services with an investor in your jurisdiction and, if so, on what basis?	Yes. However, licensing requirements may apply. See details below and further references to relevant sections in this Survey therein. MiFID II Considerations Arranging is in the <i>European Framework Document</i> defined as including the activity of reception and transmission of orders as defined in the MiFID II, which pursuant to the STA is regarded as an investment service, which if provided in relation to financial instruments is dependent on obtaining a prior licence as a MiFID II Investment Firm, unless any exceptions from the licensing requirement are applicable (see Third Country Firm Regime as well as IMAS Licensing Exceptions). An authorised AIFM (however not a UCITS ManCo) may also pursuant to the AIFMA obtain a licence to provide Arranging services, however only as non-core (ancillary) services (see section 4.5). Hence, unless the first approach principle is applicable (which may be the case if the Fund or the investor has solicited the Arranging services), the OFI will need to obtain a specific licence from the NFSA in order to provide Arranging services to a Fund or Investment Management & Advisory Services to investors in Norway. Note that passporting regimes are available for OFIs benefitting from an EEA Passport having passported the relevant licences into Norway in relation to Arranging services to a Fund and Investment Management & Advisory Services. If an EEA Passport is not available to the OFI or the OFI is domiciled outside the EEA, will need to conduct these activities from a permanent establishment in Norway duly authorised by the NFSA unless an exemption applies. Please also see the discussion in section 4.2(e) above regarding the possibility in the future that an OFI based in a Third Country may be able to become a Third Country Passporting Entity and thereby conduct the relevant activity otherwise caught by the Licensing Requirement in Sweden on the basis of that passport. Licensing requirements pursuant to Norwegian regulations will apply as a consequence of services subject to licensing requirements being offered "in Norway" (within Norwegian jurisdiction), irrespective of where the investor is incorporated etc. in Norway. Note, also that it is irrelevant whether the investor is a potential or existing client. For further details see our answers to sections 6.3(b) – 8.7 above. AIFMs

	Please note that the extension available to an AIFM to undertake certain MiFID II Services in addition to its core authorisation does not include provision of Execution of Orders on Behalf of Clients (although it does cover reception and transmission of orders (a type of Arranging)). Consequently, no EEA Passport is available for an AIFM authorised in another EEA member state in relation to Execution of Orders on Behalf of Clients and such AIFM may not provide Execution of Orders on Behalf of Clients in relation to one or more <i>financial instruments</i> on a cross-border basis into Norway.
In preparing your answer, please ensure that your analysis covers the following (or if these matters are not relevant to your jurisdiction, please explicitly state that in your response):	See our general answer in 8.8 (a).
(i) the impact (if any) if the Arranging is being undertaken by an AIFM authorised to perform reception and transmission of orders as a non-core service pursuant to Article 6(4) of the AIFMD.	
(ii) the impact (if any) if the Arranging is being undertaken by, or on behalf of, an OFI benefiting from an EEA Passport (e.g. a MiFID II Investment Firm or a UCITS ManCo) compared with an OFI that does not.	See our general answer in 8.8 (a).
(iii) available exemptions which permit the provision of Arranging. If an exemption is available, please set out the criteria which must be satisfied in order to utilise it. Please comment on both formal “black-letter law” exemptions and accepted practice .	See our general answer in 8.7 (a) (iii) which applies equally.
(iv) the relevant criteria for determining whether an investor is in your jurisdiction for the purposes of determining whether the provision of Arranging is permitted (e.g. investor is incorporated, domiciled, has employees in your jurisdiction).	No guidance is currently provided with respect to when investors shall be regarded as "being in Norway". Investors should in our view be regarded as "being in Norway" if they are present within Norwegian territory and jurisdiction (including when present in Norway on a very temporary basis).
(v) any sensitivities depending on whether the investor is a potential or an existing client or	See our general answer in 8.8 (a).

whether such investor solicited the Arranging or not.	
8.10 Subscription Documentation and Relationship Management	
Sections (a) to (c) below look at scenarios relating to the provision by an OFI to an investor of either: • Fund subscription documentation; or • contracts relating to the provision of Investment Management & Advisory Service(s). In relation to sections (a) and (c) below please can you briefly describe any relevant restrictions or considerations that apply or, if relevant, please cross-refer to other sections of the Memorandum. Are the below scenarios are permitted?	
(a) The OFI provides/sends: • Fund subscription documentation; or • a contract relating to the provision of Investment Management & Advisory Service(s) to a potential investor:	
(i) where the OFI and the investor are both in your jurisdiction (e.g. at a Fly-In Meeting); or	Position in relation to Funds (including UCITS Funds): Unless the OFI by these activities responds to the investor's first approach, the activities under this scenario requires either a licence from the NFSA or that the OFI operates under EEA passporting rules. Position in relation to IMAS: Unless the OFI by these activities responds to the investor's first approach, the activities under this scenario requires either a licence from the NFSA or that the OFI operates under EEA passporting rules.
(ii) where the OFI is outside your jurisdiction but the investor is in your jurisdiction (e.g. the OFI sends the documentation via email/post).	Position in relation to Funds (including UCITS Funds):

	Unless the OFI by these activities responds to the investor's first approach, the activities under this scenario requires either a licence from the NFSA or that the OFI operates under EEA passporting rules. Position in relation to IMAS: Unless the OFI by these activities responds to the investor's first approach, the activities under this scenario requires either a licence from the NFSA or that the OFI operates under EEA passporting rules.
(b) The: • Fund subscription documentation; or • a contract relating to the provision of Investment Management & Advisory Service(s) is signed:	
(i) where the relevant signatories for both parties are in your jurisdiction (e.g. at a Fly-In Meeting); or	Position in relation to Funds (including UCITS Funds): Unless the signing is completion of a process based on the investor's first approach, the activities under this scenario requires either a licence from the NFSA or that the OFI operates under EEA passporting rules. Position in relation to IMAS: Unless the signing is completion of a process based on the investor's first approach, the activities under this scenario requires either a licence from the NFSA or that the OFI operates under EEA passporting rules.
(ii) where the relevant signatories for the Fund or provider of the Investment Management & Advisory Service are outside your jurisdiction but the investor is in your jurisdiction (e.g. the signed documents are transmitted between the parties via email/fax/post/courier).	Position in relation to Funds (including UCITS Funds): Unless the signing is completion of a process based on the investor's first approach, the activities under this scenario requires either a licence from the NFSA or that the OFI operates under EEA passporting rules. Position in relation to IMAS: Unless the signing is completion of a process based on the investor's first approach, the activities under this scenario requires either a licence from the NFSA or that the OFI operates under EEA passporting rules.

(c) Will the location where documentation is signed by either party as described in either section (b)(i) or (ii) above affect whether the contract is deemed “booked” in your jurisdiction?	No.
(d) This question 8.10(d) focuses on relationship management and/or investor relations activities, which are conducted between an OFI and an investor once such investor has invested in a Fund and/or engaged the OFI to provide an Investment Management & Advisory Service. Such activities would, for example, involve the OFI: • updating the investor on its existing investments; and/or • providing account statements, transaction reports or periodic reports to the investor. Please confirm whether an OFI would be permitted to conduct such relationship management/investor relations activities: • on a cross-border basis; or • at a Fly-In Meeting in your jurisdiction. Alternatively, please describe any relevant restrictions or considerations that apply, if relevant cross-referring to other sections of the Memorandum. (e) For the purposes of this question, please presume that the marketing/selling activities that underpin the relationship between the OFI and the investor were conducted pursuant to permitted means in your jurisdiction and/or were conducted in another jurisdiction before the investor re-located to your jurisdiction. Please also presume that the relationship management/investor relations activities will not involve any further marketing/selling of other funds/services outside the scope of the existing relationship.	Funds (including UCITS) and IMAS There are no such specific restrictions, provided the underlying marketing/selling activities were conducted legally. However, it is important to ensure that these activities do not involve marketing or selling of new products or services outside the scope of the existing relationship. This analysis does not depend on whether the activity takes place remotely or at a Fly-In Meeting, nor if an intermediary initially conducted the distribution activity on the OFI's behalf.

8.11 Requests for Proposals (RFPs)	
This question 8.11 looks at the scenario where an OFI is asked to respond to a request for proposal, request for information or similar process (an RFP) from an investor in your jurisdiction.	
(a) Please could you outline whether there are any registration/notification/approval/licensing requirements which apply where an OFI responds to an RFP in respect of a Fund from an investor in your jurisdiction? If appropriate, please cross-refer to other sections of the Memorandum in your response.	This would depend on the content of the RFP. There are no registration/notification/approval/licensing requirements if the OFI's response to a RFP in respect of a Fund does not promote or market the OFI's products and services in relation to the Fund. In local counsel's view, an RFP will most likely fall outside the definition of marketing in Article 4 no 1 letter (x) of the AIFMD and section 1-2 letter h) of the AIFMA, where "marketing" is defined as "direct or indirect offering or placement of shares in alternative investment funds at the initiative of the manager or on behalf of the manager".
(b) Could the activity of responding to an RFP regarding a Fund fall within the scope of permitted "reverse-enquiry"/"reverse-solicitation" in your jurisdiction?	Yes. Responding to an RFP regarding a Fund could fall within the scope of permitted "reverse-enquiry"/"reverse-solicitation". Please see section 5 above for further details regarding the permissibility of reverse enquiry based on the investor's first approach.
(c) Please could you outline whether there are any registration/notification/approval/licensing requirements which apply where an OFI responds to an RFP in respect of an Investment Management & Advisory Service from an investor in your jurisdiction? If appropriate, please cross-refer to other sections of the Memorandum in your response.	There are no registration/notification/approval/licensing requirements if the OFI's response to a RFP in respect of an Investment Management & Advisory Service.
(d) Could the activity of responding to an RFP regarding an Investment Management & Advisory Service fall within the scope of permitted "reverse-enquiry"/"reverse-solicitation" in your jurisdiction?	To the extent that the initiative (first approach) for the specific Investment Management & Advisory Service from the OFI is taken by the investor, Norwegian licensing requirements does not to apply for EEA firms. The assessment of whether the investor has taken the "first approach" must be evaluated on a case-by-case basis. Please note that also third country OFIs may, on the exclusive initiative of the customer, provide investment services and/or investment activities to Norwegian clients cf. STA section 9-36 (4) no. 2.

8.12 Relocation of Investor	
(a) What restrictions, if any, might apply where an OFI has an investor that invested in a Fund and/or that received the OFI's Investment Management & Advisory Services while the investor was in another jurisdiction but that investor has now moved into your jurisdiction ?	Assuming that the OFI does not provide additional services (i.e. outside the scope of the original investment/relationship) to that investor in respect of its original investment/relationship, no restrictions apply.
(b) Can the OFI continue to service that investor in respect of its original investment/relationship ?	Yes.
(c) If the OFI wished to conduct further marketing activities in respect of that Fund or Investment Management & Advisory Service with that investor, what considerations would apply? If appropriate, please cross-refer to other sections of the Memorandum in your response.	Generally speaking marketing of a "Fund", either a UCITS or an AIF (covering both AIFs marketed via the AIFMD Marketing Passport and Funds marketed pursuant to any private placement regime), may not be carried out unless a prior marketing licence has been obtained (or notification procedures have been complied with) pursuant to the SFA or the AIFMA. As mentioned above, inter alia under section 7.3(a), marketing of "investment services"/Investment Management & Advisory Services is not regarded as the provision of an investment service if the marketing does not constitute an integrated part of the actual provision (i.e. selling) of the Investment Management & Advisory Services. Note, however, that prior marketing may have the consequence that the "investor's first approach principle" will not be applicable. For further details see our answer in section 5 above. Any further marketing activities should therefore only be based on the client's first approach (i.e. reverse enquiry).
(d) Does the analysis depend on the type of investor that is targeted e.g. Professional Investor, Retail Investor etc?	In principle no. However, marketing towards retail investors require a specific licence, as described in section 6.1(f), 6.2(e)(iv) and 6.4(b) above. Furthermore, it is likely that the NFSA would scrutinise activities towards retail investors more aggressively.

9. PROSPECTUS REGULATION (PR3)

Questions	Answers
Please refer to section 3.7 of the <i>European Framework Document</i> . The purpose of this section is to identify the particular issues that may arise in respect of AIFs which fall into the scope of PR3.	Generally speaking, the description in section 3.6 of the <i>European Framework Document</i> is applicable from a Norwegian legal perspective. Norway has implemented PR3 in chapter 7 of the STA. For offers of securities between 1 and 8 million EUR, issuers must file a national prospectus with the Register of Business Enterprises, while securities issues in excess of EUR 8 million

Questions	Answers
(a) What are the relevant criteria for determining whether an AIF might fall within the scope of PR3 in your jurisdiction?	requires the filing of an EU prospectus. In a Consultation Paper published 22 January 2025, the NFSA proposes to not adopt a lower threshold in Norway, meaning that it is likely that the EUR 12m threshold will be applicable when PR3 is implemented in Norway. Offering of "securities" to the public is subject to prospectus requirements pursuant to chapter 7 of the STA, which transposes PR3 into Norwegian law, requiring the prospectus to be approved by the NFSA. PR3 only applies to "securities". "Securities" means 'transferable securities' as defined in Article 4(1) of MiFID II with the exception of money market instruments, having a maturity of less than 12 months. In order to qualify as 'transferable securities', the shares, units or interests in any closed-ended vehicle must also be "negotiable on the capital market". An interpretation of this may be that for any shares, units or interests to be capable of being negotiated, they must be free of any transfer restrictions. According to Norwegian legal theory, it is not a requirement that the specific instrument may in fact be negotiable. Provided that the instrument falls within the scope of the definition of "transferable securities" and the instruments normally may be negotiated on the capital markets, prospectus requirements apply. Hence, specific transferring restrictions related to e.g. a share in a company, i.a. requirement to obtain consent from the Board of Directors etc., will not be relevant in the assessment on whether the share is a "transferable security" negotiable on the capital market. PR3 provides for a number of exemptions from the prospectus requirement. Please refer to the <i>European Framework Document</i> section 3.6 for further details regarding the most relevant exemptions. Passporting of Third Country prospectuses PR3 allows a prospectus approved by the competent authority of one EEA Member State to be passported into other EEA Member States. For further information, see section 3.7 of the EFD. Under PR3 as amended by the PR3 Amendment Regulation (see section 3(d) for further details), a third country issuer can offer securities to the public in an EEA Member State after publishing a prospectus approved in accordance with the laws of a third country (a Third Country Prospectus) where the following conditions are met: the European Commission has adopted an implementing act determining that the third country framework ensures that the Third Country Prospectus meets requirements equivalent to PR3 (as amended);

Questions	Answers
	- the third country issuer has filed the prospectus with its home Member State; - the third country issuer provides written confirmation that the prospectus has been approved by a third country supervisory authority and provides the authority's contact details; - cooperation arrangements exist between the competent authority of the home Member State/ESMA and the third country supervisory authority with respect to the exchange of information and enforcement of obligations; - the prospectus meets certain language requirements; and - relevant advertisements disseminated in the EU by the third country issuer comply with certain requirements (e.g. are not inaccurate/misleading and are consistent with information in the prospectus). These new rules on equivalence apply in the EU from 4 December 2024, but has not yet entered into force in Norway. The European Commission has not yet adopted any implementing acts determining that a third country framework ensures equivalence. Where the above conditions are met, the Third Country Prospectus can be passported into other EU Member States in the same way as an approved prospectus under Article 25 of PR3 as amended. The PR3 Amendment Regulation makes certain other changes to PR3 including changes to certain prospectus exemptions and the rules governing the sequence, format and content of information to be included in a prospectus.
(b) Have the exemptions from the requirement to publish a fully PR3 compliant prospectus (summarised in section 3.7 of the <i>European Framework Document</i>) been subject to any gold-plating in your jurisdiction? In particular, please could you set out: (i) the amount specified in your jurisdiction with respect to the Value of Offering Exemption; (ii) whether any additional national requirements have been introduced in your jurisdiction with respect to offerings which are less than the amount in (i); and (iii) any other gold-plating?	Yes. The prospectus requirement only applies if the selling/offering is addressed to 150 or more persons in the Norwegian securities market, and involves a total offering amount of at least EUR 1,000,000 calculated over a 12 month period. Note that for offers between 1 and 8 million EUR, issuers must file a national prospectus with The Register of Business Enterprises, and there are also some announced future changes to the laws as set out in section 9 (a).

Questions	Answers
(c) For AIFs which fall into the scope of PR3, do the exemptions in PR3 provide the basis for the private placement of such AIFs into your jurisdiction or is it necessary to separately consider the exemptions available (if any) under your jurisdiction's private placement regime as discussed in section 7.1(a) above ?	It is necessary to separately consider Norway's private placement regime as described in section 7.1(a) above. For Non-EEA AIF or AIF Managed by a non-EEA AIFM (where the AIFMD Marketing Passport is not available), in addition to the private placement regime under PR3, the compliance with the private placement of Funds under the AIFMD requirements (Article 36 and 42 of the AIFMD as implemented in Norway) will have to be met. See section 7.1(a) above for more detail.

10. LICENCE

Questions	Answers
If a licence is required in order to be able to engage in marketing/selling a Fund or Investment Management & Advisory Services, please explain in outline only: (a) The type of licence that would be required;	Yes. The marketing and licensing requirements applicable to OFIs when marketing/selling Funds or Investment Management & Advisory Services is described throughout this Survey. Please see below a brief overview of relevant licences and references to where those are described in this Survey. A. Marketing/selling of Funds Marketing/selling of Funds is subject to the Fund being permitted for marketing in Norway. A marketing licence pursuant to the: - SFA, is necessary if the Fund is either classified as a UCITS Fund or if the Fund is classified as an open-ended non-UCITS securities fund and is marketed to non-Professional Investors. For further details see sections 6.1 and 7. - AIFMA, is necessary if the Fund is classified as an AIF and is only marketed towards Professional Investors, or if the Fund is a closed ended AIF marketed to non-Professional Investors and does not classify as a non-UCITS securities fund pursuant to the SFA. For further details see sections 4, 6.2 and 7 above. B. Marketing/selling of Investment Management and Advisory Services The provision of Investment Management and Advisory Services is subject to licensing requirements in Norway if provided in relation to "<i>financial instruments</i>" (and subject to certain conditions to partnership interests).

	For further details, see section: • 6.4(b)A and B, for Investment Management and Advisory Services carried out by MiFID II investment firms (and Credit Institutions permitted to provide MiFID II investment services), • 8.7, for Investment Advice and Portfolio Management carried out by UCITS ManCos, and • 4.5(a), for Investment Advice and Portfolio Management carried out by AIFMs.
(b) What, if any, presence in your jurisdiction the OFI would need to establish in order to obtain the relevant licence, including: (i) any specific legal form requirements (e.g. a local company or a branch);	If investment firms, AIFMs and UCITS ManCos are established and domiciled in Norway, they must as a main rule be in the legal form of a private limited company (<i>Nw. aksjeselskap, AS</i>) Note, however, that a Non-EEA domiciled OFI which is granted a permission to carry fund management activity in Norway on a cross-border basis pursuant to section 3-4 of the SFA must have a representative in Norway that is granted sufficient powers to safeguard the interests of the Norwegian investors. Pursuant to section 3-4 of the SFA, a Non-EEA domiciled OFI may be granted a specific permission to provide services such as Investment Management & Advisory Services in Norway provided that they are also licensed to provide fund management activities, however, limited to Investment Advice and Portfolio Management, either on a cross-border basis or by the establishment of a branch in Norway. It is a requirement that the OFI is permitted to carry out such services in its home state and that the OFI is under satisfactory supervision in its home state. Before the Non-EEA domiciled OFI may start its activities in Norway, satisfactory cooperation arrangements between the OFI's home state regulator and the NFSA must have been established. In the contexts of the SFA, such cooperation arrangements are only in place between: (i) Norway and (ii) the USA and the EEA-countries. Most of the rules in the SFA and appurtenant regulations will apply to the Non-EEA OFI when conducting its business activities in Norway. Local counsel is not aware of any Non-EEA OFIs having been granted a permission to provide services on a cross-border basis or by way of a branch establishment in Norway pursuant to section 3-4 of the SFA (and counsel believes it to be unrealistic to obtain such licence). A Non-EEA domiciled OFI wanting to market or provide investment services in Norway, must therefore do so through a duly licensed branch in Norway, see section 6.4, unless reverse enquiry exemption is available, see section 5.
(ii) any requirement to list/register the local presence in a commercial registry or other local register;	N/A Provided that a local branch or other entity is nevertheless established in Norway, it is required to register the branch/entity in the Register of Business Enterprises ("Foretaksregisteret").

(iii) any limitations regarding ownership of the local presence;	N/A However, if a local presence is nevertheless established, please note that the NSFA may decline an application for a licence if a shareholder with a significant ownership interest in the management company of the Fund is not considered suitable to ensure good and sensible management of the fund (SFA section 2-3 (2) and section 2-4 (4) of the AIFMA). A significant ownership interest is a direct or indirect ownership interest that represents at least ten per cent of the capital or votes in the management company, or that otherwise makes it possible to exercise significant influence over the management of the management company. Anyone who owns a qualifying holding in an investment firm shall be suitable for ensuring sound and secure management of the firm cf. Section 9-12 of the STA. A significant ownership interest is a direct or indirect ownership interest that represents at least ten percent of the capital or votes in the investment firm, or that otherwise makes it possible to exercise significant influence over the management of the investment firm.
(iv) any substance requirements that apply to the local presence;	N/A. Should a presence nevertheless be established in Norway, there are specific substance requirements in the company legislation, see item (v) immediately below.
(v) any requirements regarding locally employed staff (e.g. minimum number of directors and/or employees, any qualification or notification requirements that apply in respect of such staff); and	N/A. Should however an OFI decide to nevertheless establish a presence in Norway, the following applies: Investment Firms: Board members, the general manager and others participating in the actual management of an investment firm shall at all times have sufficient qualifications and experience and must undergo an assessment of fit and proper conduct. Members of management, may only hold one of the following combinations of positions and offices at the same time: (i) one position as general manager combined with two non-executive directorships; (ii) four non-executive directorships and (iii) the chairperson of the board cannot serve as general manager of the firm (unless NFSA gives its approval. AIFM: Board members, the general manager and others participating in the actual management of the AIFM shall at all times have sufficient qualifications and experience and must undergo an assessment of fit and proper conduct. The actual management of the AIFM must be held by at least two individuals.

	UCITS ManCos: Various requirements apply, involving that (i) the UCITS ManCos' board shall have at least five members, (ii) the unit holders in the UCITS Fund managed by the company elect at least one third of the board members, (iii) the board members who are not elected by the unit holders are elected by the UCITS ManCos' general meeting (iv) For both groups of board members, at least half as many deputies shall be elected, (v) the UCITS ManCos shall have a general manager. Board members, the general manager and others participating in the actual management shall at all times have sufficient qualifications and experience and must undergo an assessment of fit and proper conduct. The NFSA Circular (Circular 3/2023) provides detailed requirements to the assessment of suitability requirements applicable for directors, general manager, or other members of management in Financing institutions, investment companies and other regulated entities. If local presence is established as a private limited liability company there is a requirement that at least 50 per cent of the board members reside in Norway, another EU/EEA country, the UK or Switzerland. The General Manager must also reside in Norway, another EU/EEA country, the UK or Switzerland.
(vi) indication of time period and approximate costs to set up/establish local presence;	The necessary timing for obtaining a formal licence from the NFSA is unpredictable and will depend on the type of licence, the complexity of the evaluations which need to be made and, the quality, the completeness of the application submitted as well as the on the workload of the NFSA. A handling time of up to 3 – 6 months, sometimes longer, is frequently seen. Approximate costs to set up/establish local presence must be assessed on a case by case basis. The formal capital requirements are set out in the STA, AIFMA and SFA, respectively, which are dependent on the size and activities of the firm. Legal costs for establishing a licensed entity vary greatly depending on the nature and scale of the intended operation.
(c) An outline of the procedure involved in obtaining such licence including an indication of the time it would ordinarily take to obtain such licence; and	A. UCITS Funds See section 6.1. An application for the establishment of a UCITS Fund shall be decided within two months after NFSA has received a complete application. B. AIFs structured as open ended securities funds marketed to non-Professional Investors

	A formal application must be filed with the NFSA pursuant to sections 9-3 and 9-4 of the SFA and appurtenant regulations in the SFR. The NFSA has no deadline for handling the application. However, normally it may be expected that an application is handled within 3 – 6 months. C. AIFs Reference is made to section 4 of the <i>European Framework Document</i> with respect to EEA AIFs managed by EEA AIFMs. With respect to Non-EEA AIFs managed by EEA AIFMs a formal application must be filed pursuant to section 6-4 of the AIMFA. With respect to Non-EEA AIFs and EEA AIFs managed by Non-EEA AIFMs a formal application must be filed pursuant to section 6-5 of the AIMFA. The NFSA has no deadline for handling the application. However, normally it may be expected that an application is handled within 3 – 6 months. D. UCITS ManCos and Non-UCITS ManCos pursuant to the SFA UCITS ManCos may provide Investment Advice and Portfolio Management in Norway pursuant to the notification regime of the UCITS Directive, which is fully implemented in section 3-3 of the SFA. We will not further elaborate on these procedures in this Survey. However, note that the NFSA does not charge any costs for handling notifications for UCITS ManCos. Non-UCITS ManCos may be granted a permission to provide Investment Advice and Portfolio Management in Norway pursuant to section 3-4 of the SFA provided that the Non-UCITS ManCo is also licensed to provide securities funds fund management activities. The NFSA has no deadline for handling the application. However, normally it may be expected that an application is handled within 3 – 6 months. The NFSA does not charge any costs for handling applications pursuant to section 3-4 of the SFA. E. EEA AIFMs EEA AIFMs may provide Investment Advice and Portfolio Management subject to complying with the notification procedures in the AIFMD, which is implemented in section 8-2 of the AIFMA. We will not further elaborate on these procedures in this Survey. However, note that the NFSA does not charge any costs for handling notifications for EEA AIFMs. Non-EEA AIFMs may not be granted a licence to provide Investment Advice and Portfolio Management pursuant to AIFMA. F. Investment Firms
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	EEA investment firms and Credit Institutions licensed pursuant to the MiFID II/CRD may provide Investment Management and Advisory Services subject to complying with the passporting regime of the MiFID II/CRD. We will not further elaborate on these procedures in this Survey. However, note that the NFSA does not charge any costs for handling notifications pursuant to the MiFID II/CRD passporting regime. Non-EEA investment firms may apply for a specific licence to provide Investment Management and Advisory Services in Norway pursuant to section 9-36 of the STA. The NFSA has no deadline for handling the application. However, normally it may be expected that an application is handled within 3 – 6 months.
(d) Please specify the approximate costs associated with obtaining such licence (please include initial application cost together with any ongoing fees).	On 26 May 2023, the Norwegian Ministry of Finance adopted a regulation enabling the NFSA to levy regulatory fees in respect of the following types of licence applications/registration/notifications: (a) payment institutions; (b) e-money institutions; (c) account information service providers; (d) Norwegian agents of payment institutions established in another EEA country; (e) Norwegian agents of insurance institutions established in another EEA country; (f) AIF managers marketing an AIFM where the manager or fund is established outside the EEA; (g) management companies in another EEA country marketing UCITS in Norway; (h) AIF managers in another EEA country marketing of AIFs in Norway; (i) Norwegian tied agents of investment firms established in another EEA country; (j) auditors and auditing companies established in non-EEA countries, who audit annual accounts for Norwegian companies; (k) trust or company service providers; and (l) providers of exchange services between virtual currency and official currency and providers of storage services for virtual currency. In addition, annual fees may be set for the persons in letter d to k above. The new fee regime entered into force on 1 January 2025, and the NFSA have set the specific fees annually. Under the

regulation, one-off fees are capped at NOK 30 000 (approx. EUR 2 500), with a minimum set at NOK 5 000 (approx EUR 420). The annual fee is capped at NOK 10 000 (approx. EUR 835).

In 2025, the annual fee is set as follows:

- Norwegian agents of payment companies established in another EEA country: NOK 10 000
- Norwegian agents of investment firms established in another EEA country: NOK 10 000
- Managers of alternative investment funds established in countries outside Norway: NOK 7000
- Management company in another EEA country (UCITS): NOK 7000

Please note that since the fees will be decided on an annual basis, the fees for 2025 are only examples of the expected annual costs.

11. PENALTIES/SANCTIONS

Questions	Answers
(a) Is it the competent regulator that enforces the applicable laws and/or another body (e.g. the courts)?	The NFSA and the Norwegian Ministry of Finance (the "NMF") supervise the provision of investment services and marketing of Funds in the Norwegian market. Both may impose fines and violation charges and issue stop orders and sanctions. However, only the courts may impose criminal sanctions. See details below in section 11(b) – (d).
(b) Do the possible legal consequences of a breach of applicable laws in relation to the cross-border marketing and sale of Funds and Investment Management & Advisory Services into your jurisdiction include:	
(i) criminal sanctions;	(i) Criminal sanctions (fines and imprisonment of up to 1 year) on both the OFI and possibly the individuals are available for wilful or negligent breaches of licensing and prospectus requirements applicable to investment services. The same criminal sanctions are available for wilful or negligent breaches of the marketing licence requirements applicable pursuant to the AIFMA. However, criminal sanctions are not available for breaches of the marketing prohibition applicable to non-licensed securities funds pursuant to the SFA.
(ii) other sanctions (e.g. fines, loss of licence, public censure);	(ii) Civil sanctions including loss of licences, stop orders or orders of correction may be imposed by the NMF and the NFSA for breaches of licensing requirements, prospectus requirements and the marketing prohibition applicable to securities funds/Funds subject to the SFA and the AIFMA. Typically the NFSA will issue warnings (which may be public) and they are also likely to inform the home state regulator of the foreign fund/the entity in breach of licensing requirements.
(iii) civil claims;	(iii) Civil claims for damages may be raised by individuals or legal entities based on general principles of tort law to the extent that an OFI acting in breach of applicable regulations has negligently caused economic losses to be suffered by such individuals/entities. Based on recent court cases, it should be noted that (severe) breaches of regulatory provisions does not automatically entail tort liability on the part of management and board members, but will be based on a broad case-by-case assessment.

(iv) the transaction to which the activity relates becoming void or voidable (and if voidable, at whose instigation)?	(iv) Norwegian law does not contain any general principle stating that a contractual arrangement between two private parties automatically will become invalid where one of the parties has acted contrary to public law or regulation. Hence, whether any transaction/agreement may become void / voidable must be assessed based on the agreement governing the transaction, supplemented by general principles of Norwegian contracts law. Whether the agreement will be held voidable, shall according to general principles of contract law be based on a broad and specific overall evaluation of relevant factors. It cannot in our view be ruled out that a transaction, upon the instigation by the counterparty claiming that the transaction is void because of the OFI not holding the necessary authorisation at the point in time the transaction was entered into, may be deemed to be void.
Please provide details of maximum penalties (e.g. fines). Please state whether these sanctions are applicable to the OFI and/or to directors, officers or employees of the OFI and/or both.	AIFMA: The penalties for a legal entity (OFI) amounts to (i) MNOK 42 or 10 per cent of the total annual turnover according to the last approved annual accounts and (ii) MNOK 42 for individuals. The maximal amount of penalties may be set at up to twice earned profits or avoided losses as a result of the infringement, if this results in a higher fee than the amounts given in (i) and (ii). SFA: The penalties for a legal entity (OFI) amounts to (i) MNOK 42 or 10 per cent of the total annual turnover according to the last approved annual accounts and (ii) MNOK 42 for individuals. The maximal amount of penalties may be set at up to twice earned profits or avoided losses as a result of the infringement, if this results in a higher fee than the amounts given in (i) and (ii). STA: Breach of decision made by NSFA pursuant to chapter 8-15 in the STA (general conduct rules): The penalties for a legal entity (OFI) amounts to (i) MNOK 43 or 10 per cent of the total annual turnover according to the last approved annual accounts, and (ii) MNOK 43 for individuals. The maximal amount of penalties may be set at up to twice earned profits or avoided losses as a result of the infringement, if this results in a higher fee than the amounts given in (i) and (ii). Breaches of prospectus requirements: The penalties for a legal entity (OFI) amounts to (i) MNOK 47 or 3 per cent of the total annual turnover according to the last approved annual accounts and (ii) MNOK 7 for individuals. The maximal amount of penalties may be set at up to twice earned profits or avoided losses as a result of the infringement, if this results in a higher fee than the amounts given in (i) and (ii). Breach of the Market Abuse Regulations ("MAR"): The penalties for a legal entity (OFI) amounts to (i) from MNOK 9 to MNOK 127 (depending on the section under MAR in breach) or between 2

	and 15 per cent of the total annual turnover according to the last approved annual accounts, and (ii) between MNOK 5 to MNOK 43 for individuals. The maximal amount of penalties may be set at up to three times earned profits or avoided losses as a result of the infringement, if this results in a higher fee than the amounts given in (i) and (ii). Breach of regulations of disclosure of acquisitions of large shareholdings: The penalties for a legal entity (OFI) amounts to (i) MNOK 82 or 5 per cent of the total annual turnover according to the last approved annual accounts and (ii) MNOK 17 for individuals. The maximal amount of penalties may be set at up to twice earned profits or avoided losses as a result of the infringement, if this results in a higher fee than the amounts given in (i) and (ii). In terms of breaches or violation of (i) of the duty to provide information and orders, etc. (ii) regulations on takeover bids, (iii) EMIR on OTC derivatives, eligible counterparties, etc., (iv) the Regulation on Short Selling, the following applies: The penalties for a legal entity (OFI) amounts to (i) MNOK 43 or 10 per cent of the total annual turnover according to the last approved annual accounts and (ii) MNOK 43 for individuals. The maximal amount of penalties may be set at up to twice earned profits or avoided losses as a result of the infringement, if this results in a higher fee than the amounts given in (i) and (ii).
(c) Please provide the 5 most recent examples (from published reports) of the competent regulator or courts taking action against an OFI in respect of a breach of applicable laws in relation to the cross-border marketing or sale/provision of Funds and Investment Management & Advisory Services to investors in your jurisdiction.	The most typical measure to be carried out by the NFSA is to issue a "warning". A warning would state that the entity is operating in Norway in breach of the AIFMA, SFA or STA and warn the general public against doing business with such entities. Consequently, should an OFI be subject to such public warning it could cause a reputational damage. Far from all letters are public and it is therefore not possible to provide a list of the 5 most recent measures. The public warnings are typically directed against less sophisticated institutions and/or fraudsters, who operate without a licence both in Norway and its home state. The investor alerts can be found here: https://www.finanstilsynet.no/en/investor-alerts/?language=en
(d) Please comment on:	See our answer to section 11(c) above.
(i) the attitude of the regulator, courts or other body responsible for enforcement of the applicable laws; and	
(ii) any accepted or tolerated market practice	

APPENDIX 1

DISCLAIMERS: OPEN-ENDED FUND

General comment: It is generally not required under Norwegian law as such to use disclaimers. However, disclaimers and legends are customarily seen in the market. It is difficult to provide standard wording of a disclaimer which could be used for all types of Open-Ended Funds, since the content of the disclaimer will need to be drafted cautiously, taking into account the specific features of the Open-Ended Fund. The content of an appropriate disclaimer may vary depending on whether the investment vehicle in question is classified as a UCITS or an AIF and whether the marketing restrictions of the AIFMA or the SFA are applicable.

A: WRITTEN DISCLAIMERS - PPR

Wording to be used when responding to a reverse enquiry (although note caveat in section 5(c)(ii) regarding the use of standard template language in this context) :

The [securities/units/interests/shares] in the [insert name of fund] are offered upon the express and unsolicited request of the investor who has directly contacted the [insert name of the AIFM / the general partner] or their affiliates on the investor's own initiative. No active marketing of the [insert name of fund] has been made nor will it be made in Norway, and this [insert reference to document] has been sent to the investor at the investor's unsolicited request. The investor acknowledges and confirms the above and that the [insert reference to document] shall not be copied or otherwise distributed unless permitted by, and in compliance with, applicable law.

As mentioned throughout this Survey, the term "private placement regime" is not defined in Norwegian legislation or commonly used in Norwegian financial regulatory lingo. We assume, however, that the term "private placement" refers to an offer which is made in pursuant to the provisions deriving from Article 36 and Article 42 of the AIFMD. We further assume that the offering document shall not constitute a prospectus in the meaning of the Prospectus Regulation. Under such circumstances, the following disclaimer may be used:

This [insert reference to document] is not a prospectus within the meaning of Chapter 7 of the Norwegian Securities Trading Act of 2007 or the Norwegian Securities Funds Act of 2011 and the [insert reference to document] has not been, and will not be, registered with or approved by the Norwegian Financial Supervisory Authority (Nw: *Finanstilsynet*). The [insert name of the AIFM] has obtained permission from the Norwegian Financial Supervisory Authority to market [securities/units/interests/shares] in the [insert name of the AIFM] to Professional Investors in Norway pursuant to section [6-4] [6-5] of the Norwegian Alternative Investment Funds Act of 2014. Hence, nothing in this [insert reference to document] is directed to or intended for non-Professional Investors as defined in section 1-2 letter 1) of the Norwegian Alternative Investment Funds Act of 2014 in Norway. This [insert reference to document] must not be copied or otherwise distributed by the recipient.

In the event that the offering in Norway shall be made without obtaining any marketing approval under the AIFMD or any other Norwegian marketing approval regime or prospectus requirements/approval, the following disclaimer may be used:

This [insert reference to document] is not a prospectus within the meaning of Chapter 7 of the Norwegian Securities Trading Act of 2007 or the Norwegian Securities Funds Act of 2011 and the [insert reference to document] has not been, and will not be, registered with or approved by the Norwegian Financial Supervisory Authority (Nw: *Finanstilsynet*). Accordingly, this [insert reference to document] may not be made available, nor may the [securities/units/interests/shares] be offered in Norway, other than under circumstances that are deemed not to constitute marketing as defined in the Norwegian Securities Funds Act of 2011 or the Norwegian Alternative Investment Funds Act of 2014 and which do not trigger any requirement to prepare a prospectus

pursuant to Chapter 7 or to obtain any licence pursuant to Chapter 9 of the Norwegian Securities Trading Act of 2007. Hence, nothing in this *[insert reference to document]* is directed to or intended for investors in Norway. This *[insert reference to document]* must not be copied or otherwise distributed by the recipient.

If the firm that is marketing/selling the Fund is addressing the Licensing Requirement pursuant to the Third Country Firm Regime route, see the wording in Appendix 3.A. below.

B: ORAL DISCLAIMERS – PPR

N/A

C: DISCLAIMERS – RETAIL INVESTORS

Generally speaking, marketing/selling of Funds in Norway requires that the Fund has obtained a prior marketing approval/licence. Hence, the disclaimers below are drafted under the assumption that the relevant Fund is permitted for marketing in Norway. The recommended type of disclaimer/warning may vary depending on whether the Open-Ended Fund approved for marketing to retail investors/the public is a UCITS Fund or not. In the case the relevant Fund is not permitted for marketing to retail investors/the public in Norway, reference is made to the disclaimer above under section A, which may be used in such situations.

Non-UCITS Fund permitted for marketing pursuant to section 9-4 of the SFA:

The *[insert name of fund]* is registered in *[country]* pursuant to *[insert reference to applicable legislation]* and is under supervision by *[insert name of supervisory authority]*. The *[insert name of fund]* has applied to and been granted a specific marketing licence from the Norwegian Financial Supervisory Authority (Nw: *Finanstilsynet*) in accordance with Section 9-4 of the Norwegian Securities Funds Act of 2011 and the *[shares/units]* are permitted for marketing and selling in Norway by virtue letter from the Norwegian Financial Supervisory Authority dated *[date]*. *[If applicable, insert specific wording drafted to reflect conditions laid down by the NFSA.]* Each of the *[insert name of fund]*, the *[insert name of management company]* and any other entities has represented and agreed that it has complied with all applicable provisions of the Norwegian Securities Funds Act of 2011 and the Norwegian Securities Trading Act of 2007 and other relevant Norwegian laws and regulations with respect to anything done by it in relation to the *[securities/units/interests/shares]* in, from or otherwise involving Norway.

AIF permitted for marketing towards Retail Investors pursuant to Chapter 7 of the AIFMA:

The *[insert name of AIF]* is registered in *[country]* pursuant to *[insert reference to applicable legislation]* and is managed by *[insert name of AIFM]*, which is under supervision by *[insert name of supervisory authority]*. The *[insert name of the AIFM]* has applied to and been granted a specific approval to marketing the *[insert name of AIF]* from the Norwegian Financial Supervisory Authority (Nw: *Finanstilsynet*) in accordance with Chapter 7 of the Norwegian Alternative Investment Fund Managers Act of 2014. The *[shares/units]* are permitted for marketing and selling in Norway by virtue letter from the Norwegian Financial Supervisory Authority dated *[date]*. *[If applicable, insert specific wording drafted to reflect conditions laid down by the NFSA.]* Each of the *[insert name of AIF]*, the *[insert name of AIFM]* and any other entities has represented and agreed that it has complied with all applicable provisions of the Norwegian Alternative Investment Fund Managers Act of 2014 and the Norwegian Securities Trading Act of 2007 and other relevant Norwegian laws and regulations with respect to anything done by it in relation to the *[securities/units/interests/shares]* in, from or otherwise involving Norway.

Wording to be used when responding to a reverse enquiry from Retail Investor (although note caveat in section 5(c)(ii) regarding the use of standard template language in this context):

The *[securities/units/interests/shares]* in the *[insert name of fund]* are offered upon the express and unsolicited request of the investor who has directly contacted the *[insert name of the AIFM / the general partner]* or their affiliates on the investor's own initiative. No active marketing of the *[insert name of fund]* has been made nor will it be made in Norway, and this *[insert reference to document]* has been sent to the investor at the investor's unsolicited request. The investor acknowledges and confirms the above and that the *[insert reference to document]* shall not be copied or otherwise distributed unless permitted by, and in compliance with, applicable law.

D: DISCLAIMERS – AIFMD MARKETING PASSPORT

The disclaimer below is drafted based on the assumption that the AIF is an EEA AIF managed by an EEA AIFM and that the AIF is marketed to Professional Investors only.

This *[insert reference to document]* is not a prospectus within the meaning of Chapter 7 of the Norwegian Securities Trading Act of 2007 or the Norwegian Securities Funds Act of 2011 and the *[insert reference to document]* has not been, and will not be, registered with or approved by the Norwegian Financial Supervisory Authority (Nw: *Finanstilsynet*). The *[insert name of AIF]* is registered in *[country]* pursuant to *[insert reference to applicable legislation]* and is managed by *[insert name of AIFM]*, which is under supervision by *[insert name of supervisory authority]*. The issue and distribution of this *[insert reference to document]* is made in compliance with, and the *[insert name of AIFM]* has complied with all requirements, in the Norwegian Alternative Investment Fund Managers Act of 2014. This *[insert reference to document]* is by no means intended for other investors than those who are defined as Professional Investors (Nw: *profesjonelle investorer*) in the Norwegian Act on Alternative Investment Fund Managers of 2014. Each of the *[insert name of AIF]*, the *[insert name of AIFM]* and any other entities has represented and agreed that it has complied with all applicable provisions of the Norwegian Alternative Investment Fund Managers Act of 2014 and the Norwegian Securities Trading Act of 2007 and other relevant Norwegian laws and regulations with respect to anything done by it in relation to the *[securities/units/interests/shares]* in, from or otherwise involving Norway.

E: DISCLAIMERS – UCITS MARKETING PASSPORT

Wording for a UCITS Fund permitted for marketing under the UCITS IV passporting regime/section 9-3 of the SFA:

The *[insert name of fund]* is registered in *[country]* pursuant to the UCITS Directive, as implemented in *[country]*. The *[insert name of fund]* has notified the Norwegian Financial Supervisory Authority (Nw: *Finanstilsynet*) in accordance with section 9-3 of the Norwegian Securities Funds Act of 2011 and the *[shares/units]* are permitted for marketing and selling in Norway by virtue of notification letter submitted on *[date]*. Each of the *[insert name of fund]*, the *[insert name of management company]* and any other entities has represented and agreed that it has complied with all applicable provisions of the Norwegian Securities Funds Act of 2011 and the Norwegian Securities Trading Act of 2007 and other relevant Norwegian laws and regulations with respect to anything done by it in relation to the *[securities/units/interests/shares]* in, from or otherwise involving Norway.

F: DISCLAIMERS – MARKETING PASSPORTS AND MUTUAL RECOGNITION SCHEMES

Not applicable.

G: DISCLAIMER - PRE-MARKETING

For **Written Documents** - The document should clearly state that:

- it does not constitute an offer / invitation to subscribe to units / shares of an AIF; and
- the information in the document should not be relied on because it is incomplete and subject to change.

No specific **oral disclaimers**/warnings are statutorily required under Norwegian law. However, it is recommended that the content of the required written disclaimers be repeated also orally. It should also be noted that any information provided which is potentially misleading or open to false interpretation should be avoided.

APPENDIX 2

DISCLAIMERS: CLOSED-ENDED FUND

General comment: With the exception that investors shall be warned if an offer is subject to a prospectus exemption, it is generally not required under Norwegian law as such to use disclaimers. However, disclaimers and legends are customarily seen in the market. It is difficult to provide standard wording of a disclaimer which could be used for all types of Closed-Ended Funds, since the content of the disclaimer will need to be drafted cautiously, taking into account the specific features of the Closed-Ended Fund.

A: WRITTEN DISCLAIMERS - PPR

Wording to be used when responding to a reverse enquiry (although note caveat in section 5(c)(ii) regarding the use of standard template language in this context):

The [securities/units/interests/shares] in the [insert name of fund] are offered upon the express and unsolicited request of the investor who has directly contacted the [insert name of the AIFM / the general partner] or their affiliates on the investor's own initiative. No active marketing of the [insert name of fund] has been made nor will it be made in Norway, and this [insert reference to document] has been sent to the investor at the investor's unsolicited request. The investor acknowledges and confirms the above and that the [insert reference to document] shall not be copied or otherwise distributed unless permitted by, and in compliance with, applicable law.

See comment and disclaimers under Section A of Appendix 1 above for disclaimers that can be used in other scenarios which apply equally to Closed-Ended Funds. However, the following wording to be considered to warn an investor regarding an offer that is subject to a prospectus exemption.

In addition, pursuant to Regulation (EU) 2017/1129 (the "Prospectus Regulation"), the [Shares] in the [insert name of Fund] are being offered only to or placed only with professional investors (as defined in the AIFMD), in such Relevant Member State, who are (a) "qualified investors" (as referred to in Article 1(4) of the Prospectus Regulation), (b) the total number of whom is fewer than 150 (other than "qualified investors" as defined in the Prospectus Regulation) or (c) who each acquires securities for a total consideration of at least EUR 100 000 per investor, for each separate offer.

B: ORAL DISCLAIMERS - PPR

N/A

C: DISCLAIMERS – RETAIL INVESTORS

Wording to be used when responding to a reverse enquiry from Retail Investor (although note caveat in section 5(c)(ii) regarding the use of standard template language in this context):

The [securities/units/interests/shares] in the [insert name of fund] are offered upon the express and unsolicited request of the investor who has directly contacted the [insert name of the AIFM / the general partner] or their affiliates on the investor's own initiative. No active marketing of the [insert name of fund] has been made nor will it be made in Norway, and this [insert reference to document] has been sent to the investor at the investor's unsolicited request. The investor acknowledges and confirms the above and that the [insert reference to document] shall not be copied or otherwise distributed unless permitted by, and in compliance with, applicable law.

AIFs permitted for marketing and selling in Norway pursuant to the SFA may not be Closed-Ended Funds. Hence, the disclaimer below is drafted under the assumption that the relevant Fund is permitted

for marketing in Norway pursuant to a specific licence from the NFSA pursuant to Chapter 7 of the AIFMA.

AIF permitted for marketing towards Retail Investors pursuant to Chapter 7 of the AIFMA:

The [insert name of AIF] is registered in [country] pursuant to [insert reference to applicable legislation] and is managed by [insert name of AIFM], which is under supervision by [insert name of supervisory authority]. The [insert name of the AIFM] has applied to and been granted a specific approval to marketing the [insert name of AIF] from the Norwegian Financial Supervisory Authority (Nw: *Finanstilsynet*) in accordance with Chapter 7 of the Norwegian Alternative Investment Fund Managers Act of 2014. The [shares/units] are permitted for marketing and selling in Norway by virtue letter from the Norwegian Financial Supervisory Authority dated [date]. [If applicable, insert specific wording drafted to reflect conditions laid down by the NFSA.] Each of the [insert name of AIF], the [insert name of AIFM] and any other entities has represented and agreed that it has complied with all applicable provisions of the Norwegian Alternative Investment Fund Managers Act of 2014 and the Norwegian Securities Trading Act of 2007 and other relevant Norwegian laws and regulations with respect to anything done by it in relation to the [securities/units/interests/shares] in, from or otherwise involving Norway.

Wording to be used when Retail Investors should be additionally warned if an offer is subject to a prospectus exemption.

In addition, pursuant to Regulation (EU) 2017/1129 (the "Prospectus Regulation"), the [Shares] in the [insert name of Fund] are being offered only to or placed when (i) the total number of whom is fewer than 150 (other than "qualified investors" as defined in the Prospectus Regulation) or (ii) who each acquires securities for a total consideration of at least EUR 100 000 per investor, for each separate offer.

D: DISCLAIMERS – AIFMD MARKETING PASSPORT

See comment and disclaimer under section D of Appendix 1 above which applies equally to Closed-Ended Funds.

Wording to be used when investors should be additionally warned if an offer is subject to a prospectus exemption.

In addition, pursuant to Regulation (EU) 2017/1129 (the "Prospectus Regulation"), the Shares in the Fund are being offered only to or placed only with professional investors (as defined in the AIFMD), in such Relevant Member State, who are (a) "qualified investors" (as referred to in Article 1(4) of the Prospectus Regulation), (b) the total number of whom is fewer than 150 (other than "qualified investors" as defined in the Prospectus Regulation) or (c) who each acquires securities for a total consideration of at least EUR 100 000 per investor, for each separate offer.

E: [Intentionally Not Used]

F: DISCLAIMERS – OTHER MARKETING PASSPORTS AND MUTUAL RECOGNITION SCHEMES

N/A

G: DISCLAIMER - PRE-MARKETING

See Appendix 1.G above.

APPENDIX 3

DISCLAIMERS: INVESTMENT MANAGEMENT & ADVISORY SERVICES

General comment: It is generally not required under Norwegian law as such to use disclaimers when offering and/or providing investment services. However, disclaimers and legends are customarily seen in the market. It is difficult to provide standard wording of a disclaimer which could be used for all types of Investment Management & Advisory Services, since the content of the disclaimer will need to be drafted cautiously, taking into account the specific features of the Investment Management & Advisory Services. The content of an appropriate legend will vary considerably depending inter alia on whether one is acting based on or without a specific licence, and whether such licence is necessary.

A: WRITTEN DISCLAIMERS

- (i) **Wording to be used when responding to a reverse enquiry (although note caveat in section 5(c)(ii) regarding the use of standard template language in this context):**

The [securities/units/interests/shares] in the [insert name of fund] are offered upon the express and unsolicited request of the investor who has directly contacted the [insert name of the AIFM / the general partner] or their affiliates on the investor's own initiative. No active marketing of the [insert name of fund] has been made nor will it be made in Norway, and this [insert reference to document] has been sent to the investor at the investor's unsolicited request. The investor acknowledges and confirms the above and that the [insert reference to document] shall not be copied or otherwise distributed unless permitted by, and in compliance with, applicable law.

- (ii) **EEA-domiciled OFI offering Investment Management & Advisory Services pursuant to the passporting regime of the MiFID, UCITS Directive or AIFMD:**

The [insert name of OFI] is registered in [country] pursuant to [insert reference to applicable legislation] and supervised by [insert name of supervisory authority]. The [insert name of OFI] is permitted to provide [list services] in [country] and has notified the Norwegian Financial Supervisory Authority (Nw: *Finanstilsynet*) in accordance with [Alt. 1 if the OFI is a MiFID licensed entity: section 9-24 of the Norwegian Securities Trading Act/Alt. 2 if the OFI is a UCITS Directive licensed entity: section 3-3 of the Norwegian Securities Funds Act of 2011/Alt. 3 if the OFI is a AIFMD licensed AIFM: section 8-2 of the Norwegian Alternative Investment Fund Managers Act] and is permitted to provide [list services] in Norway from [insert relevant date].

- (iii) **Non-EEA domiciled OFI offering Investment Management & Advisory Services pursuant to a specific licence from the NFSA:**

The [insert name of OFI] is registered in [country] pursuant to [insert reference to applicable legislation] and supervised by [insert name of supervisory authority]. The [insert name of OFI] is permitted to provide [list services] in [country] and has obtained a specific licence from the Norwegian Financial Supervisory Authority (Nw: *Finanstilsynet*) in accordance with [Alt. 1 if licence is obtained pursuant to the STA: section 9-36 of the Norwegian Securities Trading Act/Alt. 2 if the licence is obtained pursuant to the SFA: section 3-4 of the Norwegian Securities Funds Act of 2011] and is permitted to provide [list services] in Norway from [insert relevant date].

(iv) OFIs offering Investment Management & Advisory Services without any permissions to do so in Norway:

The *[insert name of OFI]* is registered in *[country]*. The *[insert name of OFI]* is not permitted to provide any regulated activity in Norway subject to the Norwegian Securities Trading Act of 2007, the Norwegian Securities Funds Act of 2011 or the Norwegian Alternative Investment Fund Managers Act of 2014. Accordingly, the *[insert name of OFI]* has not been, and will not be, registered with, approved by or supervised by the Norwegian Financial Supervisory Authority (Nw: *Finanstilsynet*). This *[insert reference to document]* is strictly for informational purposes and should not be regarded as investment advice or an offer or solicitation to buy or sell any financial instruments or to engage in any investment services or activities. It is not intended influence the decision-making process of potential clients concerning specific financial instruments or investment services. Additionally, this *[insert reference to document]* may not be made available, nor may the *[list services]* be offered or provided in Norway, other than under circumstances that are deemed not to constitute marketing as defined in the Norwegian Securities Funds Act of 2011 or the Norwegian Alternative Investment Funds Act of 2014, which trigger any requirement to prepare a prospectus pursuant to Chapter 7 of the Norwegian Securities Trading Act of 2007 or which trigger any licensing requirements pursuant to the Norwegian Securities Trading Act of 2007. Hence, nothing in this *[insert reference to document]* is directed to or intended for investors residing in Norway. This *[insert reference to document]* must not be copied or otherwise distributed by the recipient.

(v) OFIs offering Investment Management & Advisory Services pursuant to Third Country Firm Regime:

The *[name of the OFI]* is providing Investment Management & Advisory Services pursuant to the Third Country Firm Regime set out in STA section 9-36 (6) and the STR section 9-39a. The *[insert name of OFI]* is registered in *[country]*. The *[insert name of OFI]* provides investment services to eligible counterparties only in Norway.

General comment: As outlined in section 6.4(b) of this Memorandum, a disclaimer is not a standalone solution and the actual content and conduct of the OFI must align with the assertion that the marketing information is not integral part of an investment service. This involves sharing objective, factual information without influencing client decisions, avoiding personal recommendations, and preventing direct transactions based on the marketing materials.

In addition, any marketing, solicitation or similar approach has a potential risk of impairing the possibility of invoking the investor's first approach exemption.

B: ORAL DISCLAIMERS

N/A.

C: DISCLAIMERS – RETAIL INVESTORS

The disclaimers under section A of Appendix 3 above applies equally to Retail Investors (except that the disclaimer for the Third Country Firm Regime would not be applicable as it applies to eligible counterparties only).

APPENDIX 4

DISCLAIMERS: OTHER

A: GENERAL MARKETING DISCLAIMER

See section 8.6(g) for a discussion as to whether such wording is necessary and if so what kind of wording could be used depending on the context.

This wording may be appropriate depending on the circumstances:

This communication is not directed at or intended for private individuals domiciled or resident [in Norway alternatively outside countries X, Y, Z] or businesses and other legal persons incorporated or having its place of business [in Norway alternatively outside countries X, Y, Z].

B: INTERNET DISCLAIMER

Please see section 8.5(g) for a discussion of the type of disclaimer language that could be used depending on the context, as follows:

For non-targeted pages: *This communication is not directed at or intended for private individuals domiciled or resident [in Norway alternatively outside countries X, Y, Z] or businesses and other legal persons incorporated or having its place of business [in Norway alternatively outside countries X, Y, Z].*

For targeted pages: See disclaimers in Appendices 1 –3 for a targeted page that refers to either Funds or Investment Management & Advisory Services (as applicable).

C: VIRTUAL MARKETING - DISCLAIMER

Please see section 8.5(i) for a discussion of the type of disclaimer language that could be used depending on the context.

D: MARKETING COMMUNICATIONS – DISCLAIMER

Note that if the communication is a “marketing communication” within the scope of the ESMA Marketing Guidelines, then an appropriate disclaimer is required e.g.: *“This is a marketing communication. Please refer to the [prospectus of the [UCITS/ AIF/EuSEF/EuVECA]/Information document of the [AIF/EuSEF/EuVECA] and to the [KID] before making any final investment decisions.”*

Note that where the medium does not allow for the above language, a shorter disclaimer can be used such as “Marketing communication” or #MarketingCommunication.